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[00:11:01] Thank you for joining us. This concludes this broadcast of the Senate of Virginia in Richmond, Virginia.

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[00:15:47] This is the Senate of Virginia, Richmond, Virginia, chamber.

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[00:21:07] This is the Senate of Virginia, Richmond, Virginia, Senate Chamber.

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[00:27:28] This is the Senate of Virginia, Richmond, Virginia.

[00:28:54] The Senate will come to order.

[00:33:24] The Senators will please take their seats. Those persons not entitled to the privileges of the floor will retire to the gallery. The Senators and all in attendance will please stand if you are able. We will be led in prayer this morning by Pastor Jeffrey Pickett from Hillsville Pentecostal Holiness Church in Hillsville.

[00:33:49] And following the prayer, everyone will please remain standing and be led in the Pledge of Allegiance to the flag of the United States of America by Senate Page Aubrey Toler of Hanover. In 1 Timothy 2.1.3, I exhort therefore that first of all, suffocations, prayers, intercessions, and giving of thanks be made for all men, for kings and for all that are in authority, that we may lead a quite peaceable life in godliness and honesty.

[00:34:21] And for this is good and acceptable in the sight of our God and Savior. Let us pray. Heavenly Father, we just thank you today, Lord, for each one here. And we thank you for the gathering of these leaders that are called to serve our state, our state of Virginia and our nation.

[00:34:41] Lord, we acknowledge your ultimate authority over all. And we ask for your guidance and grant wisdom to our senators and help them to clearly and have ears to listen and hands to build and touch their hearts with compassion to seek what is best for the people and not themselves.

[00:34:59] Help us inspire unity to put our fires of division to rise above with courage and bringing justice and peace and showing mercy to the challenged and needy. Protect our land, expose evil and let truth prevail.

[00:35:15] Let us be led by your light. Father God, we ask all this in the mighty name of Jesus, we pray. Amen. I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:35:46] Clerk will call the roll. All those present, please vote aye. The clerk will close the roll.

[00:36:29] You have a quorum, Madam President. Senate Journal for Friday, February 13, 2026. The senior senator from Henrico moves that the reading of the journal be waived.

[00:36:49] All in favor of waiving the reading of the journal will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[00:37:06] Ayes 36, no's 4. Ayes 36, no's 4. The reading of the journal is waived. The clerk will report any communications from the House of Delegates. The chair recognizes the senator from Eastern Fairfax.

[00:37:22] Madam President, I'm sorry, good morning. Good morning. I move to waive reading of the communication from the House of Delegates. The question is, shall the reading of the communication from the House of Delegates be waived? All in favor of waiving the reading of that communication will record their votes, aye.

[00:37:38] Those opposed, no. Are the senators ready to vote? Have all the senators voted? do any senators desire to change their vote. The clerk will close the roll. Ayes 33, noes 7. Ayes 33, noes 7. The reading of the communication is waived. The clerk will report any communications from the governor. We do not have

any, Madam President. We've now arrived at the time in the morning hour when we have the honor of welcoming our distinguished guests who are joining us today in the Senate gallery and I give my daily reminder about our procedure that a

[00:38:16] senator will rise and provide an introduction for their visitors. I will then offer the welcome on behalf of the Senate. I ask that we all hold our applause until I've had the opportunity to complete the welcome of the Senate.

[00:38:33] The chair recognizes the senator from Franklin County. Thank you, Madam President. I rise for the purposes of an introduction. The senator has the floor. Madam President, today's invocation, a very lovely invocation to get us off on the Goodfoot this morning was provided by Pastor Jeffrey Pickett of the Hillsville Pentecostal Holiness Church in Hillsville, Virginia. And he's here with his beautiful wife and co-pastor Tammy.

[00:39:01] Pastor Jeff was born in West Virginia in 1966, moved to Hillsville when he was just two years old. Carroll County has been his home ever since. But before answering God's call to the ministry, he spent 20 years working in a production line at a local glass plant. Began preaching in 2002 and has faithfully served as pastor of the Hillsville Pentecostal Holiness Church since 2008.

[00:39:25] He and his wife, Tammy, who's here with us today, have been married since 1985, proud parents of two daughters and the proud grandparents of four grandchildren, all of whom live and work and raise their families in beautiful Carroll County, serving their community in law enforcement, health care, banking, and local business.

[00:39:43] Under Pastor Jeff and Tammy's leadership, their church has experienced remarkable growth and their ministry extends well beyond the church walls. Pastor Jeff also operates a community thrift store, which has become a vital source for families throughout Carroll County, ensuring that those in need have access to affordable clothing and household essentials.

[00:40:02] Madam President, I'm proud to have Pastor Jeff Pickett with us today, a man who lives his faith through service to others, and I would ask that the Senate please join me in extending to him the warm welcome of the Senate. Thank you, Madam President. I thank the senator for that introduction and pastor if you will you and your wife Tammy will please stand thank you so much for delivering the prayers and blessing this morning we are grateful for you joining us today and appreciate all that you do as outlined by the senator in your community.

[00:40:35] thank you for your broad service in so many ways. Senators, I ask that we give the warm welcome of the Senate to Pastor Jeffrey Pickett and his wife Pastor Tammy Pickett. Thank you so much for joining us. The chair recognizes the senator from Northern Fairfax. Thank you, Madam President. I rise for two introductions. The senator has the floor. Thank you, Madam President. I'm honored to introduce the Girl Scouts who are visiting us from several different

[00:41:15] different Scout councils. The Girl Scouts of Colonial Coast, the Girl Scouts of Virginia Skyline, the Girl Scouts of Commonwealth of Virginia Council, and the Girl Scouts of the nation's capital. They'd stand please. I think they're right back there. There they are. They are here today to take part in their annual Girl Scouts Legislative Day, an event that offers the council leadership an opportunity to engage with legislators and policy makers on issues that impacts girls and nonprofits within our Commonwealth. Girl Scouts empower girls to become civic leaders by educating them on the legislative process, fostering

[00:41:52] advocacy skills, and performing platform to speak directly with policy makers about issues affecting their lives, such as STEM education, mental health, and environmental policy. They're using their voices to represent the largest and most impactful leadership program for girls in the world, the Girl Scouts, and the Girl Scout mission is to build girls of confidence, courage, and character to make the world a better place. Many Girl Scouts alumna have become country's trailblazers, visionaries, and leaders who serve in public office. Many have earned the highest award in Girl Scouts, the prestigious gold award. No matter if

[00:42:29] they earn it or not, all Girl Scouts learn important life skills like goal setting, decision making, project management, people skills, and sales skills. This is never more evident than at this time of the year. It's cookie season, and I'm a former cookie mom. So I ask you to please join me in applauding our Girl Scouts who are visiting today for their dedication to make the world a better place. I thank the Senator for that introduction, and welcome to the Girl Scouts of the Commonwealth. And as the Senator pointed out, the leadership opportunities

[00:43:04] that are developed and nurtured through the Girl Scouts is truly remarkable. We are so proud of all that you have already accomplished and looking forward to what you will continue to do throughout your lives. And I speak to as a former cookie mom and as a former troop leader, I know how impactful Girl Scout is throughout Virginia, throughout the world. Thank you for joining us today and I hope you have wonderful conversations with our legislators. Senators, I ask that we

[00:43:35] give the warm welcome of the Senate to the Girl Scouts of the Commonwealth. The chair recognizes the senator from Hampton. Madam President, I still have another introduction. My apologies. Yes, Senator, you have the floor for your second introduction. Thank you very much. I appreciate that. Today is tag day and if all of the representatives from the private colleges who are here, there are 28 member institutions of the council of independent colleges they are student leaders and campus

[00:44:12] leaders here today these visitors are participating in thanks for tag day visiting many of our members to share the importance of the virginia tuition assistance grants on their ability to afford higher education here in the best state for higher education in the nation 38 members of the general Assembly are graduates of one of these member schools including myself, I'm a graduate of Holland's, and the impact that these private colleges have on the landscape of higher education the Commonwealth is profound. While these enrolled a third of our undergraduate students, the Virginia tuition assistant

[00:44:50] grant expenditure is less than four percent of the general fund spending for higher ed and it's an incredible value for the state. These schools retained, talented Virginia students here in the Commonwealth, and they attract talent out of the state, students who often remain here and graduate and become valued members of our communities and our workforce. I came to Virginia to go to Holland's and 40 years later I'm still here. Please welcome me in welcoming these students to the gallery today. Thank you, Madam President. Thank you, Senator, for that introduction and welcome to our representatives from our independent

[00:45:29] colleges and universities. Thank you for joining us and thank you for sharing your personal stories and experiences at our private institutions with our lawmakers. We're so delighted to have you today and thank you for also sharing how important the TAG program is for you as you pursue your academic goals.

[00:45:52] Senators, I ask that we give the warm welcome of the Senate to the representatives of our private institutions, our independent colleges, and universities as they join us today for Thanks for Tag Day. The chair recognizes the senator from Hampton. Thank you, Madam President. I rise for three introductions. Senator has the floor. Thank you, Madam President. With us in

[00:46:28] the gallery are members of the Ivy Baptist Church Social Justice Ministry from Newport News as they embark on their second annual day of action. This dedicated group has committed themselves to empowering and educating their congregation and community on the importance of advocacy and civic engagement.

[00:46:45] Today, they are here to gain a deeper understanding of the policymaking process at the state level and to explore how they can be more effective in shaping the policies that impact their communities. I hope you will join me in giving them a warm welcome to the Senate. - Thank you, Senator, for that introduction.

[00:47:01] will our representatives from ivy baptist church please stand thank you so much for for being here today in the senate gallery thank you for representing the communities that you serve and for speaking to so many of our legislators on the issues that are impacting uh your your areas uh senators i ask that we give the warm welcome of the senate to the representatives of ivy baptist church the senator from hampton thank you madam president also joining us today is a

[00:47:41] group from rise for youth rise for youth and their youth leaders are helping to build a future where every young person has access to opportunities dignity and the support they need to succeed please join me in commending rise for youth and their youth leaders for their untiring commitment to youth justice and building a future where every young person in virginia thrives please welcome the rise for youth to the senate gallery thank you senator for that introduction and thank you for our representatives from Rise for Youth. We know how meaningful and impactful the work is that you do and all that you are

[00:48:16] committed to doing in pursuing issues of justice and sharing your priorities. I hope you are continuing to have excellent conversations with our representatives in their offices and thank you for the hard work that you do year after year. Senators, I ask that we give the warm welcome of the Senate to the representatives of Rise for Youth. The senator from Hampton. Thank you, Madam President. Also joining us in the gallery are students and leaders from

[00:48:56] Hampton University. Hampton University is an institution whose 158-year legacy reflects resilience, excellence, and unwavering service to the Commonwealth of Virginia. Today, HU continues to thrive under the leadership of its President, Lieutenant General Retired Daryl K. Williams.

[00:49:14] We are grateful for their leadership and commitment to educational excellence, fairness, and inclusive economic development in every community we serve. It is my honor to introduce the students and leaders of Hampton University. Please extend to them the warm welcome of the Senate.

[00:49:29] And among them is one student who is in my capstone course, so he should be studying. Thank you, Senator, for that introduction. and a welcome to the representatives, to the students from Hampton University. We're so delighted to see you today at the Capitol and especially in our Senate gallery.

[00:49:49] I know the Senator who provided that wonderful introduction has some slight connection to Hampton University, I believe, but just a reminder for her student, please do make sure that you complete the necessary work for that capstone course.

[00:50:07] We know that she is a tough, tough professor. So thank you for joining us, and thank you for the wonderful representation that you continue to provide for Hampton University. Senators, I ask that we give the warm welcome of the Senate to the representatives of Hampton University.

[00:50:33] The chair recognizes the senator from Eastern Fairfax. - Madam President, I rise for an announcement. - Senator has the floor. - Thank you, Madam President. So ladies and gentlemen, I just want to mention a couple things today.

[00:50:51] First of all, I think the course of business today is we're going to still do the -- we're going to do third read, regular -- I don't think we have any third read uncontested day because I think we took care of those on Friday. Then I've got to request the minority leader that we maybe take a 15-minute recess or so to go talk about second reads so everybody can be prepared for second reads later today.

[00:51:16] And then when we get to second, uncontested, we're going to take all those through to final passage. And then we're also going to have a supplemental calendar today with Senate bills on first reading. And then we will dispense with first reading and pass by for the day those bills.

[00:51:32] That I think is mainly the bills that came out of courts. And I don't think there were any other actions that have to go on the supplemental. Is that right? Yeah, okay. So that's the plan for today. Today will be long.

[00:51:47] Tomorrow will be longer. But I hope everybody will bear with us. Thank you, Senator. The chair recognizes the senator from Mecklenburg. Thank you, Madam President.

[00:52:04] I rise for an introduction. The senator has the floor. It is my pleasure today to recognize a group of engaged young Virginians joining us in the gallery, the young conservative leaders of Lunenburg. They're in the gallery if they could rise. These young men and women represent the next generation of civic leadership in the Commonwealth.

[00:52:24] They are students, professionals, and community members who have chosen to step into the process learn how their government works and make their voices heard. Their involvement is a reminder that our policies today shape the opportunities available tomorrow. I commend them for taking the time to be here to advocate for their principles and to participate in the democratic process.

[00:52:45] Please join me in welcoming the young conservative leaders of Lunenburg to the Senate of Virginia. Thank you, Senator, for that introduction and welcome to the Lunenburg Young Conservative Leaders. I know you have an exceptional mentor and leader yourself in the figure of our senator, and I'm sure she has provided you wonderful insights about the legislative process, about the legislation that she is prioritizing and working on.

[00:53:11] And I certainly hope you are having wonderful conversations as you are engaging with our legislative offices all throughout the day today. And we are so delighted to have you in the Senate gallery. Thank you for the work you are doing. senators i ask that we give the warm welcome of the senate to the lunenburg young conservative leaders the chair recognizes the senior senator from henrico thank you madam president matter

[00:53:46] president i hope you had a awesome valentine day weekend was it valentine's day this weekend thank you senator my madam president matter president i rise for two introductions senator has the floor

madam president uh today joining us in the gallery is scout troop 418 from saint uh stephen episcopal church in richmond a member of the capital district and the oldest active troop

[00:54:16] in the heart of virginia council uh troop 14 8 418 has been in ex uh extensive uh in existence for over 100 years current memberships include 30 boys representing seven area schools in richmond and henrico county some of the scouts are working to earn communication and citizenship in the community merit badges learning about the importance of civic engagement and effective communication i ask that you please give them a home a warm senate welcome thank you senator for that introduction and welcome to scout troop 418 thank you for the

[00:54:55] leadership that you are not just developing but also demonstrating we know that you are working hard to earn so many merit badges and to ensure that you are progressing in all of the ways in which scouting provides opportunities to grow and to lead we thank those adults who are with you today as troop leaders thank you for visiting the capital and i hope you're getting a good opportunity to talk to many of our lawmakers all throughout the day today.

[00:55:29] Senators, I ask that we give the warm welcome of the Senate to Scout Troop 418. Senior Senator from Henrico. Thank you, Madam President. Madam President, also joining us in the gallery today are advocates from Richmond Public Schools, including the superintendent, school board members, teachers, parents, and community members here visiting the capital to advocate for K-12 funding and to share the news the RPS is on the rise I hope that you will also give them

[00:56:06] the warm welcome of the Senate thank you senator for that introduction and welcome to the representatives of Richmond Public Schools I see a full array of our school board members our superintendent so many people who work in the in the school division and many of our educators and people in so many different capacities in our schools throughout Richmond. We're delighted that you are here. We're delighted for the work of advocacy that you are doing knowing that the cornerstone of our communities is our public schools. Thank you for your

[00:56:45] dedication and service. Senators I ask that we give the warm welcome of the Senate to the representatives of Richmond Public Schools. The chair recognizes the senator from Richmond City. Madam President, I rise for the purpose of an introduction. The senator has the floor. Madam President, Sigma Gamma Rho is a national collegiate sorority incorporated in 1922. The

[00:57:22] members of Sigma Gamma Rho are in the gallery. I'd ask that they would stand. Sigma Gamma Rho has served as a home for thousands of collegiate and professional women with a mission to activate in social and civic action in the spirit of its seven courageous founders who were Indiana educators.

[00:57:44] Present today is Northeastern Region Director Ms. Staunton, organizers Dr. Jacqueline May and Jasmine Tyler, and leaders from throughout the state and region. Madam President, they have never failed to serve in any capacity within the city of Richmond have one of the largest turkey giveaways and Sigma Gamma Rho has always been a part handing out turkeys helping volunteer and make sure that individuals have everything that they need and I'm just appreciative of their work and advocacy here on the Capitol Square today I would that we

[00:58:24] would offer and extend a warm Senate welcome thank you senator for that introduction and welcome to the representatives of Sigma Gamma Rho you are quite visible in that beautiful blue and gold so thank you for the representation and I just want to add my appreciation to the words of the senator

especially for all that you do for our communities I know how powerful that community services and the impact that it has on the lives of so many throughout our Commonwealth. So thank you for all that you are doing in service of others.

[00:59:02] Senators, I ask that we give the warm welcome of the Senate to the representatives of Sigma Gamma Rho. Is there any other business for the morning hour? Senator from Charlottesville. Madam President, I move that the rules be suspended and that HGR 133 on page 60 of the calendar be taken up for

[00:59:35] immediate consideration. The question is, shall the rules be suspended and HJR 133 be taken up for immediate consideration? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The rules are suspended to take up the resolution for

[01:00:10] immediate consideration. The clerk will please read the title of the resolution. H.J.R. 133, commending the Honorable J. Harvey Wilkinson III. The senator from Charlottesville. Madam President, I move the adoption of the resolution. The question is, shall the resolution be agreed to?

[01:00:34] All in favor of agreeing to the resolution will say aye. Those opposed, no. The resolution is agreed to.

[01:00:59] The chair recognizes the senator from Hampton. Thank you, Madam President. I rise for one more introduction. The senator has the floor. Thank you, Madam President.

[01:01:15] On behalf of alumna LINC member Senator Lucas and myself, I have the honor of introducing the LINCS Incorporated, an extraordinary organization dedicated to improving our communities. With over 17,000 professional women of African descent, the LINCS worked tirelessly to enhance the quality of life for individuals and families across the Commonwealth.

[01:01:36] Founded in 1946 in Philadelphia, the LINCS now boasts 299 chapters in the United States, Bahamas, and the United Kingdom. Its mission is to strengthen communities, enrich culture, and ensure economic survival for people of African ancestry.

[01:01:53] Joining us today are members from across the-- we welcome members in the Virginia chapters of the Lynx into the chamber today. So please extend to them the welcome of the Senate. Thank you, Senator, for that introduction. And welcome to the representatives of the Lynx.

[01:02:12] Your presence is certainly visible throughout Capitol today in the beautiful green that so many are wearing. And I know you're having productive conversations throughout the day today. I was so grateful for the opportunity myself to have the chance to speak to the representatives from the LINCS organization who are joining us.

[01:02:36] Thank you for your community service. Thank you for all that you do to enrich and enhance the work that is happening in so many of our different localities. Senators, I ask that we give the warm welcome of the Senate to the representatives of the LINCS organization.

[01:03:07] Is there any other business for the morning hour?

[01:03:37] The chair recognizes the senator from Eastern Henrico, if she is in the chamber. The senator from Eastern Henrico.

[01:04:06] Madam President, I rise for an introduction. The senator has the floor. Thank you so much, Madam President and members of the Senate. It is with great pleasure that I welcome the Appomattox Regional Governor's School speech and debate team, and I ask that they please rise. Wonderful. Madam President, we are honored to recognize these students for their dedication to academic excellence, civic engagement, and their thoughtful exchange of ideas that is foundational to the pillar of this very building.

[01:04:34] And Madam President, it was especially rewarding that they were able to sit in on the course committee meeting and actually witness some of the pillars of how we debate substantive issues and walk away with seeing how we can take such staunch stances, but then continue to work together at the end of that debate.

[01:04:53] And so the speech and debate programs, they cultivate skills that extend far beyond competition. And Madam President, we commend these students and their coaches for building a program rooted in collaboration. And so I'd ask that you please join me in giving them the warm welcome of the Senate.

[01:05:08] - Thank you, Senator, for that introduction. And thank you to the representatives from the Appomattox Regional Governor's School Speech and Debate Team. Please remain standing. We have yet to fully recognize you. Thank you for all that you're doing to develop these very critical skills.

[01:05:27] I'm so delighted you were able to observe your legislators in action in a committee meeting, and I hope that given all the talent and skills that you have, that you were able to provide some tips to our senators on how to effectively debate and support their positions, pro and con.

[01:05:48] I'm hoping that you will continue to do that work. We certainly look to you for leadership in so many ways. Senators, I ask that we give the warm welcome of the Senate to the representatives of Appomattox Regional Governor's School Speech and Debate Team.

[01:06:12] Is there any other business for the morning hour? The senator, the clerk will call the calendar.

[01:06:28] February 16, 2026. Regular calendar. Senate bills on third reading. Senate Bill 643. A bill relating to firearm purchase requirements penalties. The Senator from Eastern Fairfax. Thank you, Madam President. Having voted on the preventing side by which we engrossed and advanced Senate Bill 643 to its third reading, I'd move that we reconsider that vote.

[01:07:07] The question is, shall the vote by which Senate Bill 643 was engrossed in advance to his third reading be reconsidered? All in favor of that motion will record their votes aye, those opposed no, are the senators ready to vote?

[01:07:25] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, noes 0. Ayes 40, noes 0. The motion is agreed to.

[01:07:43] Senator from Eastern Fairfax. Madam President, having voted on the preventing side by which we adopted the committee substitute, I'd move that we reconsider that vote. The question is, shall the vote by which the Senate adopted the committee substitute be reconsidered? All in favor of that motion will record their votes aye.

[01:08:01] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 40, no zero.

[01:08:17] Ayes 40. Noes 0. The motion is agreed to. Senator from Eastern Fairfax. With the recommendation to be rejected, I move the committee substitute. With the recommendation that it be rejected, the question is, shall the committee substitute be agreed to? All in favor of that motion will say aye. Those opposed, no. The noes have it. The committee substitute is rejected. Senator from Eastern Fairfax. Move the reading of the floor sub. The question is, shall the reading of the floor substitute now be waived? All in favor of that motion will

[01:08:55] say aye. Those opposed, no. The ayes have it. The reading of the floor substitute is waived. Senator from Eastern Fairfax. Move the floor sub and speaking of that motion. The senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate Bill 643 was the bill that required folks who wanted to be able to purchase firearms in Virginia to obtain a certificate, permit, license, etc., do some classes, etc., a whole bunch of stuff. The bill, the floor sub before you, is a shell of

[01:09:33] that and has a very, very, very, very small piece of what was in the bill when it was introduced. The sub before you basically does two things. Number one, over in subsection C of the bill, it makes it unlawful for anybody under the age of 21 to knowingly and intentionally purchase a handgun or assault firearm in Virginia. So it basically says anybody under 21 can't buy a handgun or an assault rifle. It does not apply to hunting rifles or shotguns under seven shell

[01:10:11] that'll hold less than seven shells and then what subsection b does is it says it's unlawful for anybody under 18 to intentionally possess a handgun or assault rifle subject to the exceptions that are set forth in subsection d which i spent the better part of this weekend cleaning up because there's something running around in another part of this building which is not as clean as this but it basically says that people under the age of 18 are allowed to possess under very limited

[01:10:50] circumstances number one is when they're present at their home or the property of their parent grandparent or legal guardian with the consent of such person if they are at a shooting range getting educational classes well accompanied by an adult of at least 21 years of age if they are hunting with someone who's at least 21 and if they are training or employed as a law enforcement officer, a member of the Armed Forces, the National Guard, the Commonwealth.

[01:11:18] That's basically what the bill does now. The bill is necessary because of the decision that happened in Lynchburg last month where the circuit court judge in Lynchburg enjoined all background check, all background checks in Virginia, because currently 18 to 21 year olds cannot purchase from a dealer because the background check system isn't capable of processing people under 21 because of federal restrictions. And so passing this law will allow us to resume

[01:11:53] instant background checks for guns purchases in Virginia. So I would hope we can adopt this floor substitute the chair recognizes the senator from Rockingham president speaking the employer amendment the senator has the floor madam president of a couple of thoughts number one I appreciate the senator from Eastern Fairfax's respect for the decision of a circuit court knowing that it can be appealed I have not seen any reticence on the part of the majority to to reject

[01:12:31] the ruling of circuit court especially when it comes to redistricting but I appreciate that I do have a couple of comments particularly focused on this bill I do agree that the this floor substitute is a shell of the former version of this and I think Virginians are grateful and glad that that bill is going to be shelved it did require a or does as of right now require a license

[01:13:05] for anybody to purchase a handgun or a long gun training is required under that which interestingly includes conflict resolution training I'm pretty sure that my law three years in law school won't meet the qualifications or the requirements of that section and then the cost of that was somewhere in the neighborhood of two to three hundred dollars to get that with no cap on it and it was going to be required to be renewed every five years I am glad to

[01:13:44] see that slide out to see but this I respectfully submit is going to give us a fast track to the United States Supreme Court and may very well help those of us who want to protect the Second Amendment rights of law-abiding citizens in the Commonwealth of Virginia and beyond.

[01:14:07] This is going to create more conflicts with existing rulings across the country. The restriction on the purchase of certain guns to persons over 21 years of age and over, there's already a split in the circuits in America.

[01:14:28] The Fourth Circuit, in which we reside, has decided and ruled that these are permissible restrictions. The Fifth Circuit, on the other hand, has ruled that those violate the Second Amendment of the Constitution. This is going to exacerbate the split in the circuits on the age restriction.

[01:14:47] Also this throws in a restriction on the magazine capacity for these guns. It adds a restriction of 20 rounds. This is an issue that the Supreme Court has not addressed and I respectfully submit that It is ripe for decision and I think that the combination of these two components of this bill make it more likely that the United States Supreme Court is going to take up a challenge of this and I think rightfully and correctly restore the rights of law-abiding citizens

[01:15:23] to own and possess firearms, even those that are prohibited by this. And I would also point out that the Senator from Eastern Fairfax suggests that this applies only to quote-unquote assault weapons. It does not apply to hunting rifles and hunting weapons, and that's just not accurate. The definition of so-called assault weapons includes a wide variety of weapons, of long guns that are used for hunting and are currently in the gun cabinets of hunters

[01:16:00] across the Commonwealth of Virginia so I would hope that we will reject this and if we reject this that we will further reject the the underlying bill thank you madam president the chair recognizes the senior senator from Virginia Beach thank you madam president will the gentleman from Eastern Fairfax rise for a quick question will the senator from Eastern Fairfax yield sure just as long it's not a bunch of technical questions about guns no madam president senator from Virginia Beach has the floor. Thank you, Madam President. No, actually, this is a pretty

[01:16:39] simple question. I'm reading this. We have Girl Scouts here today. We have some Boy Scouts that were here. I'm trying to see where this would cover our ROTCs, JROTCs, 4H, Youth Shooting Sports, Youth Shooting Academies, Boy Scouts. It's like the Boy Scouts have a merit badge for both pistol and rifle, and I'm not quite sure where that would be covered under this bill.

[01:17:05] Senator from Eastern Fairfax. Madam President, that actually came up in some of my conversations this weekend with people, and I believe that would be covered under, on lines 43, any person while accompanied by an adult less than 21 years of age actually engaged in lawful, I'm sorry, that's hunting, I'm sorry, 40 to 42, any person while accompanied by an adult less than 21 years of age is present in a lawful shooting range or firearm education class.

[01:17:31] So I think if they have an adult with them and they're at a lawful shooting range firearm education class than they could possess. Madam President one quick follow-up if I may.

[01:17:46] Will the senator yield? Senator from Virginia Beach. Madam President and again I'm not trying to harm the bill I'm just trying to see I still don't think JROTC ROTC where they're marching with this they're not at a firearms range they're not they're not doing an educational firearms class i'm just trying to see where this would kind of fit and i i'm having a hard time trying to make this fit in here somewhere senator from eastern fairfax um madam president doesn't explicitly

[01:18:22] exempt rotc or jrotc in 40 on lines 46 through 48 um but again if they're i guess if they're not at a shooting range and they're not hunting then that would not be exempt so they couldn't march around with an assault rifle or march around with a handgun marching they'd have to be training with it at a lawful shooting range with an adult madam president I thank the gentleman for answering the questions and I'm

[01:18:57] assuming that it's going to also run afoul with places like VMI where the senator is the senator speaking to the bill bill at this point senator has the floor. Madam President, speaking to the bill, I believe that this will also cause VMI for their marching and some of the other colleges and universities to run afoul of this as well, because I don't see that really fitting into this. And I hope if this does move forward that we figure out how to tighten it up for that class. Thank you. The chair recognizes the senator from

[01:19:36] King George. Thank you, Madam President. Speaking to the substitute. The senator has the floor. Madam President, I would, in addition to what the gentleman from Virginia Beach and Rockingham said, I would ask the senator from Eastern Fairfax to draw his attention to the lines 46 through 47, where it provides an exception, but only if you're engaged in official training or carrying out duties of either law enforcement or as a member of the armed forces.

[01:20:13] So, all of our universities that engage in ROTC programs would be violating the law and each one of those young people would now be guilty of a misdemeanor. But more than that, you could be a police officer at age 20 and you could use these weapons as part of your law enforcement, but have them stored and not actually be engaging in your official activities, pick that weapon up, you possess it, or be near your person, now you're guilty of a class one misdemeanor and you lose your job.

[01:20:50] Same thing with military. You can join the military at 18. They train you how to shoot these weapons. If you pick one up while you're not training or at war, you're now guilty of a class one misdemeanor and you get kicked out of the military.

[01:21:09] And I appreciate the gentleman trying to work through this, but it's a very, very complicated body of law. And I think the best thing we could do is put this bill to rest for good.

[01:21:24] The Senator from Isle of Wight. Thank you, Madam President. Would the Senator yield for a question? Will the Senator from Eastern Fairfax yield? Senator from Isle of Wight. Thank you, Madam President.

[01:21:40] Just speaking to Senator, I just was reading through it, so I'm not trying to cause undue harm, but I did notice that when the other Senator brought up the question, in our area we have JROTCs that do honor guard or funerals to be able to gain experience, and this doesn't provide an exemption for them.

[01:21:55] I just want to bring that to the patrons' attention. Thank you, Madam President. Senator from Eastern Fairfax. yeah madam president i'm not sure i've ever seen an honor guard carrying assault rifles as opposed to the sort of ceremonial like you know rifles with the chrome and all the other stuff on them that they spin around and make noise i don't know what you call those but um this this doesn't prohibit them from carrying all rifles it just prohibits them from carrying assault rifles and

[01:22:27] i would um so um depends what they're carrying i guess that's all i would say the question is shall the floor substitute be agreed to all in favor of that motion will say aye aye those opposed no the chair is not certain and we will have a floor i'm sorry we will have a recorded vote all in favor of agreeing to the floor substitute will record their votes aye those opposed no are

[01:23:06] the senators ready to vote have all the senators voted do any senators desire to change their vote The clerk will close the roll. Ayes 21, noes 19.

[01:23:21] Ayes 21, noes 19. The floor substitute is agreed to. Senator from Eastern Fairfax. Move the bill to be engrossed and advanced to its third reading. The question is, shall the bill now be engrossed and advanced to its third reading?

[01:23:37] All in favor of that motion will say aye. Any opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 118, a bill to amend and reenact related to Virginia lottery, casinos, internet gaming, authorizing penalties.

[01:24:13] The Senator from Hampton. Thank you, Madam President. I move the Senate Bill 118 pass in speaking to that. The Senator has the floor. Senate Bill 18 will legalize iGaming in the Commonwealth of Virginia and dramatically curtail Virginia's thriving illegal iGaming market and generate upwards of $14 billion in new taxable revenue over the first five years and tens of billions of dollars every subsequent five years in perpetuity.

[01:24:44] iGaming has already generated billions of dollars in markets like Pennsylvania, New Jersey, West Virginia, and Michigan. And they have experienced, over the years, expansion of their iGaming market. With that explanation, Madam President, again, I move the Senate Bill 118 pass.

[01:25:05] The Senator from Franklin County. The Senator has the floor. Senator, is your microphone on? Thank you, Senator.

[01:25:21] Thank you, Madam President. Madam President, speaking to the bill. I think in the history that I've been here and watched how gaming and gambling have come to the Commonwealth of Virginia, I think it's been pretty consistent that in the beginning, when I represented, of course, Danville in that area, I was totally against casino gambling.

[01:25:41] I was totally against any kind of game. But I was on the losing side of that vote, and casinos came in, sports betting came in. All sorts of betting came in. Then I took the position that if we were creating a gaming industry, then we should let Virginia small businesses participate. And so you saw my support both in court and on this floor and in committees for skill games. But members of the Senate, today I rise in strong opposition to Senate Bill 118. If this is new for me, I'm not going to

[01:26:17] mince words. We are being asked to take the single most addicted vice in human history, the smartphone. We all know it. We've all passed bills to kind of restrict children's usage of it, to keep them focused on what they have in school rather than focused on that addictive smartphone. That smartphone,

a device that has already rewired the brains of our children, that has already driven anxiety, depression, and suicide rates in young people to historic levels. And now we're being asked to put a slot machine on it. Let that sink in for a moment. We have spent the last decade in this country

[01:26:56] watching what smartphones have done for a generation. We've watched teenagers unable to them down at the dinner table in the classroom in bed at two o'clock in the morning we've watched social media algorithms destroy the mental health of our daughters we've watched screen addiction hollow out the attention span of our sons every parent in this chamber knows what i'm talking about every grandparent in this chamber has seen it with their own eyes and now now the general assembly of the commonwealth of virginia in this very body of the senate are being asked to look look at that device that glowing rectangle that already has a chokehold on every young person in

[01:27:35] this state and say you know what this needs you know what this smartphone needs blackjack slots roulette 24 hours a day seven days a week from every bathroom every bedroom every school bus in virginia madam president that is not modernization that is madness now if you give me a moment let me talk about the delivery system because the proponents of this bill want to talk about regulation and responsible gaming and consumer protections. But they don't want to talk about the weapons that they are loading these games into. The smartphone is the most

[01:28:13] sophisticated, behavioral manipulation tool ever placed in a human hand. It was engineered from the very beginning to be addictive. The same dopamine loops, the same variable reward schedules, the same infinite scroll mechanisms that make social media impossible to put down.

[01:28:30] Those are the exact same psychological mechanisms that power slot machines and casino games. So what this bill does is to take an already addictive device and load it with the most addictive form of gambling known to behavioral sciences.

[01:28:46] Harvard School of Public Health has studied this. Online casino gambling is 10 times more harmful than traditional in-person gambling. Not twice as harmful. Not three times as harmful. 10 times. Because there's no friction.

[01:29:02] There's no drive to the casino. There's no getting dressed, no parking lot, no hostess checking your ID at the door. There is nothing between the impulse and the act except a thumb swipe. You can gamble in the shower. You can gamble before you get out of bed. You can gamble at a red light.

[01:29:18] You can gamble during your child's school play. A psychiatrist profiled in the Wall Street Journal described it herself because she knew she had a problem. She's a trained medical professional who treats addiction and she herself could not stop. The apps wouldn't let her.

[01:29:36] They sent her push notifications. They sent her promotional offers. They sent her please come back messages designed by the same behavioral psychologist who makes slot machines impossible to walk away from. That is the device. That is the delivery system, Madam President.

[01:29:52] And this body is being asked to approve it for every single person in Virginia, regardless of their age, so long as they have a smartphone. Now the casinos say, oh, you gotta be 21. But I want every member of this chamber to think about how well age verification works with anything online.

[01:30:11] You voted for and passed a bill to restrict the access of children to pornography. But many of those platforms have found a way, our very strong law, to protect children. Think about how well it works

for social media.

[01:30:31] It doesn't work. We all know it doesn't work. Researchers surveyed the boys right here in Virginia, 17 years old, and found that the overwhelming majority have already made sports betting a part of their lives and have sports betting apps on their phones.

[01:30:49] not 21 ladies and gentlemen not 21 madam president 17. now we're going to add fuel full casino gaming on top of that on top of sports betting to their cell phones the majority of high school students in this country were reported gambling in the past year the majority of college students living on campus are betting on sports calls to virginia's own problem gambling hotline from young adults have skyrocketed since online betting expanded treatment intakes have doubled

[01:31:22] and that's before iGaming started we've already lit the match with sports betting this senate bill is pouring gasoline on it Dave Ramsey a man who has helped millions of people get out of debt looked at what FanDuel and DraftKings are doing to young men in this country and said and I'm quoting him FanDuel is a portal to hell they're screwing an entire generation of young men that is not a politician talking that's a that's not a lobbyist the man who sits across the table from families who are drowning in debt and drowning in debt because the

[01:31:58] app told them that they could win big. And it gets worse. Because these companies don't just sit back and wait for people to find them, they hunt them. They hunt them. They use AI-driven advertising to target specific communities, specific zip codes, with surgical precision. Study after study has shown that African American and minority communities are disproportionately targeted and disproportionately harmed. Morgan State University published a comprehensive study that concluded, and I want you all to hear this very clearly, That iGaming will cause "severe public health, mental health, financial and other problems

[01:32:36] in all communities." It's not my characterization, that's Morgan State's characterization. And then they turn around and they've broken promises to us.

[01:32:54] We went to Norfolk and said, "A casino will bring jobs." We went to Bristol and said, "This will revitalize your economy." We went to Danville and said, "This is your path forward." We went to Portsmouth and said, "Trust us." People moved for those jobs. People trained for those careers.

[01:33:09] dealers, hospitality workers, security staff, food service employees, hotel workers, maintenance crews, an entire ecosystem of Virginia families built their lives around the promises that we made for these casinos. And now barely three years later, this body's considering a bill that's gonna gut those jobs, hollow out those casinos, will turn those bustling gaming floors into ghost towns.

[01:33:33] You wanna know what happens when this state legalizes iGaming? Ask Pennsylvania, ask Michigan, ask New Jersey. thousands upon thousands of casino workers lost their jobs and finally let's talk about the funding comp the most insulting part of this bill in my opinion is the name that they put on the money the bill creates something called the modern public education fund 95 of the i gaming tax revenues goes into this fund and that name is designed to do one thing one thing only give every member of this body a talking point i voted for education funding but here's what

[01:34:12] they're not telling you virginia has already a proven functioning educational funding mechanism it's called the virginia lottery and we do this i gaming here the virginia lottery is going to go away we're going to lose hundreds of millions of dollars the lottery will not be able to compete with the

draft kings and the fan duels they'll crush them it won't even be a fair fight every independent analysis of states of legalized eye gaming shows massive cannibalization of lottery

[01:34:44] revenue. 42 states have said no to iGambling. 42. Think of that. In fact, where they've had iGaming has derailed their system of lottery and affected their people with the addiction that comes with it. Ladies and gentlemen, I would urge you to vote no on Senate Bill 18. I appreciate my intrusion

[01:35:22] upon your time, but this is one of the most major decisions we are going to make in the Commonwealth of Virginia probably this year one of the major ones because it is going to affect the people that we serve we allowed casinos we have lottery we have sports betting 700 million plus per month bet in Virginia on sports betting every month 188 to 200 million in revenues profits every month we've done enough please let's not go down this route we can't say the horse the the horses have

[01:36:01] left the barn because the barn door is open we can shut it here we can protect our children and our fellow virginians and that is our duty and we must thank you madam president the chair recognizes the senator from orange thank you madam president i rise to speak to the bill the senator has the floor madam president i wish to thank my colleague from franklin for articulating really thoroughly what's happening and i sit here as a member who worked on gaming for

[01:36:38] a number of years and we've worked really really hard to put safeguards in to protect the most vulnerable i also know that we worked on fentanyl here and we uh we made fentanyl madam president a weapon of terror and we've cracked down on dealers of fentanyl and madam president uh you know illicit drugs sometimes can take one person in one time and making them an addict and sometimes people are resistant to that but i can tell you in reading headlines one right now we're killing the youth of america calls growth for crackdown on u.s

[01:37:15] gambling madam president over the weekend i saw a video about the number of young men that are addicted to gambling madam president i spoke to my son over the weekend who is a college student who told me every one of his buddies does some form of gambling and he said a couple of them are underwater and their parents don't know. Madam President, I think this is a is a step too far.

[01:37:42] You've heard my colleague from Franklin talk about how many states have outlawed it. If we don't want it, we can outlaw it. A recent study by the National Council on Problem Gaming found that betting on campus had surged to 75 percent and that six percent of students were addicted to gambling or nearly double the national average madam president i just happen to be engaged to a forensic psychologist who works on addiction and she changed my mind to where i'm a no on this because i've said all along as the subcommittee chairman for gaming let's get it all out let's

[01:38:17] not create winners and losers and let's regulate it but after consulting with her and her telling me what we're about to do to our youth i can't in good faith vote for this bill thank you madam president the chair recognizes the senator from Roanoke thank you madam president speaking briefly to the bill the senator has the floor thank you madam president every dollar lost in gaming takes a dollar out of our local communities and sends it to a corporation far away I'm not enthusiastic about casinos but at least the casino exists somewhere in the Commonwealth and

[01:38:55] down the street from it there's a restaurant and there's a hotel and there's more economic activity attached to it. This takes the worst parts of the casino and has none of the redeeming qualities of it. There's no other businesses near it that benefit from it. We are extracting money from our own

constituents sent to corporations that I fear are going to be highly involved in our own elections going forward. I have a great concern about the massive growth of gaming in the Commonwealth and I think I appreciate the comments of the

[01:39:31] senator from Franklin about what this is doing to our young people and Madame President I hope we will not advance the bill the senator from Hampton thank you madam president if no one else wishes to speak because I was looking for chicken little because certainly the senator has the floor thank you madam president I would hope that we would not be disingenuous in our opposition to Senate bill 118 because certainly I heard a lot from the senator from Franklin but I did

[01:40:08] not hear about his opposition to skill gaming which he championed and I did not hear about the fact that I gaming is already here is illegal here I lottery is here folks are already doing what he has railed against for about 15 minutes So what Senate Bill 118 will do is to put parameters around something that is illegal.

[01:40:44] We are trying to make something that is illegal, legal. And children are prevented from using this. It identifies the verification safeguards that banks use to confirm an identity that protects against underage access.

[01:41:01] And unlike lottery, iGaming allows adults 21 plus to create an account, whereas lottery is 18 plus. So, Madam President, I hope that we will not allow our emotions and over-dramatize the future.

[01:41:21] We can torture the data until it confesses, but that doesn't make it true. And I'm certainly not one who's about the business of harming the African-American community, given that I'm a member of that community.

[01:41:38] And I certainly hope that it will be the pleasure of the body to pass Senate Bill 118. The question is, shall Senate Bill 118 pass?

[01:41:54] All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any Senators desire to change their vote? The clerk will close the roll.

[01:42:12] Ayes 19, noes 20. Ayes 19, noes 20. The bill does not pass. Senator from Western Henrico. Madam President, having voted on the prevailing side by which we rejected Senate Bill 118, I'd like to reconsider the vote.

[01:42:37] The question is, shall the vote by which Senate Bill 118 did not pass be reconsidered all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close

[01:43:08] the roll 38 no zero the motion is agreed to the bill the vote will be reconsidered senator from Hampton madam president I move the Senate bill 118 passed by for the day the question is shall senate bill 118 pass oh without objection senate bill 118

[01:43:38] goes by for the day senate bill 496 a bill relating to secure storage of handguns unattended locked vehicle penalty senator senior senator from fairfax thank you madam president i move that the bill passed and speaking to that motion the senator has the floor thank you madam president the epidemic of guns stolen from cars continues we're on track this year in the richmond area for over a thousand guns stolen from cars in the hampton roads area over a thousand hundreds in lynchburg all over

[01:44:12] the state all over america it used to be that guns were mostly stolen in burglaries but that's changed because as someone who testified in front of the courts committee from the citizens defense league said our cars have become shopping carts especially for young people who are stealing these uh stealing these weapons what the bill does is creates a class 4 felony for failure to store the gun properly and the way that you can do that is in a locked console in the in the passenger compartment of the car a locked glove

[01:44:46] box or a hard-sided securely fashioned storage box that's tamper-proof in the car which is which is certainly my preference and so that's how they can be stored it exempts police officers from the requirement anyone carrying an antique of a firearm from that and anyone who reports a stolen weapon will not be held accountable to the class for misdemeanor the let me just tell you that just quickly the story of Richmond juvenile detention center I was there

[01:45:24] about six weeks ago eight weeks ago and there were 38 kids there 82% of them were there on gun charges with 29 kids I can't remember a dozen gun charges from my 17 years in Fairfax County running the juvenile detention center and as we look around the country we find this is an explosion of this problem all over the place Memphis 3,000 a year this has become the vehicle by which kids you know get these guns either firsthand secondhand but this is where our illegal guns begin here in the Commonwealth of Virginia and in many, many parts of the country.

[01:46:04] And we have to bring this under some kind of control. And so the problem we have, and I'll finish the story on Richmond, is they have five units in Richmond detention, five.

[01:46:22] And they have to divide the youth up by neighborhoods because of the enmity between kids in the different neighborhoods. happens when a young man gets a gun or a young woman gets a gun it stirs the fear in other persons that hey I might need one too they're over in that neighborhood they're arming up we got to arm up too and the next thing you know we have a detention home that has to separate those kids it's gotten out of hand it's gotten out of control this creates a class for misdemeanor for failure to store your gun in an unattended vehicle only in an

[01:46:54] unattended vehicle. And so I move again that the bill pass. The Senator from King George. Madam President, would the Senator yield for a question? Will the senior Senator from Fairfax yield? I yield.

[01:47:11] Senator has the floor. Madam President, I would ask the gentleman if there's been a flurry of activity of people stealing guns from boats in Fairfax County. Senator from Fairfax. I'm unaware of the statistics on that matter, but I'm sure there are people who improperly store guns in all kinds of places.

[01:47:34] Madam President, would the gentleman yield for another question? Will the senator from Fairfax yield? I yield. Senator has the floor. Does the senator realize that his bill includes a boat in the definition of a vehicle, and so now you have the same requirements that you would for cars having to lock it into some compartment if it were in a boat.

[01:48:04] Senator from Fairfax. That is what the definition certainly indicates. Senator from King George. Would the gentleman yield for another question? Senator, will you yield? I yield. Senator has the floor. Madam President, if the gentleman is aware that we are now going to have to lock them up in a boat and that there is no data of the need to do that in a boat, why are we requiring people to lock them up in a boat if it's not necessary?

[01:48:36] Senator from Fairfax. Madam President, that would only be an unattended boat. And while there are certainly a number of marinas in Virginia, they pale in comparison to the number of vehicles that we have in the Commonwealth. but those marinas would be when those boats are unattended we'd be just as subject to the potential theft as as anywhere else I don't know that that that is the is the case here but we've now announced to the rest of the world to you know that guns are held in boats in marinas as well but I think the the

[01:49:12] law should apply there as well senator from King George I thank the senator Madam President. The question is, shall Senate Bill 496 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 20, Ayes 20, noes 19.

[01:49:51] Ayes 20, noes 19. Senate Bill 496 passes. Senate Bill 609, a bill relating to revenues, taxes, gaming, and lottery. The Senator from Portsmouth.

[01:50:07] Thank you, Madam President.

[01:50:23] Madam President, I move that the bill passed. The Senator has the floor. Okay, speaking to the bill, Madam President, all it does is makes technical changes to to describe distribution from the gaming proceeds fund in revenues percentages terms rather than tax terms.

[01:50:40] That's all it does. The question is, shall Senate Bill 609 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[01:51:01] Ayes 20, nos 19. Ayes 20, nos 19. Senate Bill 609 passes. Senate Bill 1, a bill relating to minimum wage.

[01:51:23] The Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the bill pass. Speaking to the measure. The Senator has the floor. Thank you, Madam President. Senate Bill 1 increases the minimum wage incrementally to $15 per hour by January 1, 2028.

[01:51:41] The bill codifies the adjusted state hourly minimum wage of $12.77 per hour that is affected January 1st, 2026, and increases the minimum wage to $13.75 per hour effective January 1st, 2027, and then to $15 per hour effective January 1st, 2028. Effective January 1st, 2029, and annually thereafter, the bill requires the minimum wage to be adjusted to reflect increases in the consumer price index. The question is, the chair recognizes the senator from Eastern

[01:52:20] Fairfax. Thank you, Madam President. Speaking of the bill. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senator, I hope we will support this legislation. And there's a couple things I want to say about it. First of all, this legislation is overdue. I think a lot of us back in 2020 wanted to see us to go to $15 an hour. We can only get to about $12.50. But if go back and if you take the minimum wage that we adopted the highest minimum wage we adopted in

[01:52:54] 2020 and you throw it into the u.s bureau of labor statistics inflation calculator you will learn that the inflation over the last six years has basically eaten up um virtually all of of what we enacted 12.50 back in in 2020 is equal to about 15 today and so um it's important that we do this so that we keep the promise that we made to voters when we enacted the minimum wage change that we did in 2020.

[01:53:25] And this, one other thing I just wanted, one anecdote I just want to have that really brought things home to me when we were looking at this last time. I had a constituent I represented in a child support case that I did as a favor to somebody.

[01:53:42] And when I was doing my intake of him, he told me he worked at Chipotle and he lived down the street from me on Route 1. And I said to him, oh, you work at the Chipotle right up on the top of the hill.

[01:53:59] And he said, no, you don't work there. I work at the Chipotle in Union Station in Washington, D.C. And I was like, why would you work at a Chipotle in Washington, D.C., instead of one that's like about a quarter mile from your house? He said, well, in Washington, D.C., the minimum wage is a lot higher.

[01:54:18] And so this person was commuting by bus and on the metro every day to go work at Chipotle in Washington, D.C., because Washington, D.C. had a minimum wage that was more competitive than ours. And I give that anecdote to just point out that what we're doing will give us, not only will it, I think, make things more affordable for all of our families who will be able to afford to live in the communities in which they work, they'll be able to afford, hopefully, being able to buy

[01:54:55] health insurance, provided that what the Trump administration did on the tax credits doesn't price the health insurance exchange out of their reach, but will also, I think, get more people, alleviate the needs of more families to need government services, and I think net net, this is a bill that will pay dividends to all of us and to taxpayers' dividends long term, and we've heard a lot about affordability for the last year.

[01:55:28] This bill is a quintessential affordability bill. And if we're listening to voters and we're listening to Virginians, everybody in this chamber should be voting for this. I'd hope we could support the bill. The chair recognizes the senator from Lynchburg. Thank you, Madam President.

[01:55:46] I rise to speak to the bill. The senator has the floor. Thank you, Madam President. I think everybody on this side of the aisle agrees that we want people to earn a proper living and a proper wage for the work that they perform.

[01:56:02] The problem with this bill is that it treats, we just heard from the senator from Eastern Fairfax, who lives in Fairfax, and he's talking to somebody in his district who then could go into Washington, D.C. And the cost of living in Fairfax is quite different than it is in Campbell County or Bedford County or the city of Lynchburg or Lee County or Scott County or Bristol or Abingdon.

[01:56:29] And the thought that we can have a set minimum wage that applies equally to Fairfax as it does to the bottom triangle of the Commonwealth of Virginia is not realistic. And I also have a constituent in my district that I was speaking to last week on a completely separate issue.

[01:56:51] But he brought up that the minimum wage bill was going to be addressed and told me he operates a pretty successful business in the Lynchburg area. employs several hundred people. He said if this goes up, he is not likely to be able to continue to pay his employees this wage when it goes up. And he pointed out that Tennessee and North Carolina do not have a minimum wage as high as what we are about to pass in Virginia. And he pointed

[01:57:30] out how easy it would be to do any further expansion in Tennessee or North Carolina or West Virginia. And this is just one of the many policies that I'm afraid the Commonwealth is adopting this

General Assembly session that is going to send our employers, their businesses, and their expansions to other states. And this is just one death by a thousand cuts that I'm afraid we're about to pass this year. I would ask my fellow senators to vote against this

[01:58:06] bill. The chair recognizes the senator from Rockingham. Madam President, speak in the bill. The senator has the floor. Madam President, I marvel at the ability of my friends on the other side to characterize everything as an affordability bill. As I understand it, affordability means lowering the cost of living. This bill does just the opposite. It raises the cost of labor and therefore raises

[01:58:45] the cost of everything else. It raises prices. When you raise wages, businesses raise prices. Restaurants raise menu prices. Child care centers raise tuition. Grocery stores raise prices. Home repair, landscaping, elder care, all of those things go up and it hits working families twice.

[01:59:14] They may get a small raise on the paycheck, but then they pay higher prices absolutely everywhere else. It does nothing about the real drivers of cost. It does nothing about housing supply restrictions it does nothing in this bill to reduce energy bills it does nothing to reduce state tax burdens and moreover this is something that's going to hurt the some of the very people it is intended to help you know there are a

[01:59:51] lot of kids in the marketplace who are looking for their first job who may not qualify as skilled labor who may not be able to justify that fifteen dollar an hour price for their services they're not going to get a job it's going to increase automation more people are going to be forced out of the workplace and as well-intentioned as this is I'm afraid that it is pointing us in the right direction and most assuredly it is not an affordability bill the chair

[02:00:28] recognizes the senator from Roanoke. Thank you madam president, speaking briefly to the bill. The senator has the floor. Thank you madam president. The labor market, the competition there is not simply against the folks next door or down the street or around the world, it's also against technology. And every time we artificially increase the minimum wage through statute, it incentivizes further displacement of workers in several places. And several restaurants where you used to be greeted by a friendly person that had a job that they were able to provide and

[02:01:07] grow in that job, they're no longer there and you now meet a machine that does that and that opportunity is lost. Madam President, I also want to speak briefly. For a long time we had the practice of not mentioning individual companies here on the floor of the Senate even when we were discussing something that only applied to one utility or the other and I think that was a pretty good practice but since they've already been mentioned I just want to highlight that in 2021 according to this press release it's still available online Chipotle increases wages resulting in $15 per hour average wage and provides path to six-figure compensation in three years for their management positions I

[02:01:46] don't think it's really fair to pick on one company and say one thing when it appears that what's publicly available says different I'm not sure the time of that story that was told, but the suggestion was that it was pretty recent. So Madam President, I hope that we will not continue down this path.

[02:02:04] There's a lot of conversation about how what might work in downtown Richmond doesn't work in very rural Virginia. In my part of the Commonwealth, you don't even have to travel that far. Something that might make a lot of sense in downtown Roanoke in the market will not make sense in Elliston or Shawsville, and the result will be that store just won't exist in Shawsville or Elliston in denying consumers

the opportunity to purchase there and also denying the opportunity for the local folks there for close employment. Thank you Madam President. Senator thank you for the reminder of the decorum of the Senate and it is our collective hope that we observe that

[02:02:43] decorum moving forward. Thank you Senator. The chair recognizes the Senator from Western Prince William. Thank you Madam President. Madam President speaking to the bill. The Senator has the floor. Thank you Madam President. So as I like to do whenever this bill comes up, I always like to look at what is the cost of a studio apartment in the city of Manassas Park. Now, for people who don't know, Manassas Park is about, in good traffic, about an hour or so outside of D.C. You can also take the VRE to get there from Union Station, as we heard earlier. So if you ever have someone who, you know, works in Union Station and they want to come out and come to Manassas Park at the end of the day, come take the VRE. We'd

[02:03:21] to have you now in order to do this i like to look at okay what is the cost of that studio apartment in manassas park right now as i'm looking and you can follow along with me if you'd like at apartments.com you can see a studio for one thousand six hundred forty nine dollars a month now when you break this down that comes out in a year to nineteen thousand seven hundred eighty The minimum wage right now in Virginia at $12.77 an hour, that comes out to $26,561.60 a year.

[02:03:54] So, for this 589 square foot studio apartment, you will not even be able to qualify for that studio apartment if you work full time 40 hours a week.

[02:04:09] You can't. You won't be able to qualify for it. Even if you did, if they managed to waive all the qualification things necessary, you would be left with $6,773.60 for everything else that you had in the year.

[02:04:27] Now let's say you have about $200 a month in utility costs and all the other sort of things that go along with it. And that's pretty low if you manage to get that. At that point, all of your other spending for groceries, for everything else that you need for the entire rest of the year would be $4,373.60. Madam President, the way I always look at the minimum wage is this. You should be able to afford a studio apartment if you work 40 hours a week, no matter what your job is. You should be able to afford a studio apartment. This is not

[02:05:06] grand here. We're not talking about even multiple bedrooms. We're not talking about even bedrooms at this point. A studio apartment, not even with a garage. You can't qualify for that on your own right now in Virginia. We are trying to do a little something more to help out people so that when you make an honest wage, you put in your 40 hours a week, you can afford housing. Thank you very much, Madam President. The chair recognizes the senator from Arlington. Thank you, Madam President. Madam President, I rise to speak in favor of the bill. Senator has the floor. Thank you,

[02:05:45] Madam President. This is a financial stability bill for Virginia families. When families come closer to making a living wage, there is a reduction of applications for food stamps, a reduction for local housing subsidies, and even a reduction in some cases for Medicaid.

[02:06:07] we are enabling families to become more stable to be able to support themselves and to be able to care for their children increases in the minimum wage have also resulted in less employee turnover which saves which saves companies money and a higher retention for employees they're also willing to go through more training and develop a longer relationship if you will with their employer it's also important to note that studies have shown consumer spending increases when there

[02:06:45] is an increase in the minimum wage folks who are living very close to that minimum wage have pent up demand that they have to spend money on so this in fact will be an infusion into our economy i don't know about the the arguments that folks are making the doom and gloom this is not doom and gloom. This is something that is a positive and actually can help all communities in the Commonwealth thrive. I do hope it is the will of the body to

[02:07:17] pass this measure. Thank you. The senator calls, recognizes the senator from Baudetat. Thank you Madam President, speaking to the bill. The senator has the floor. So, Madam President, I'd just like to point out to everybody, it's not doom and gloom, but that's not what we're saying, because everything will, everybody will will survive but it also doesn't actually have a net positive effect in the long run when you raise the minimum wage particularly when you do it artificially and make it make it

[02:07:53] climb prior to the actions that we took just before the covet crisis which took us the posture that we're currently in it was very unusual to see many people paying minimum wage it was still there but it was very very rare to see that because people didn't want enough workers to take the jobs we've now jacked things up to the point where you have more making that when we take it all the way to 15 you will have significant numbers of companies where that's all they can afford to pay but there will be also companies I've been my companies in service industry where we have always

[02:08:29] paid well above minimum wage whatever the percentage is above that and when we do that and this goes up to $15 the percentage above minimum wage is what we will have to raise our wages to which means I will also have to raise the wages for everybody in the company and that's fine, we'll do that, but that also means that we will have an immediate price increase that will be pretty staggering and that will raise the prices. And in my service industry, what that will mean and any other that's in the service industry position, what you're going to end up having then is certain people out there that are consumers of that, that rather than going through a company that provides protections like

[02:09:06] insurance for the person that's receiving the service, whatever it is, be senior care or lawn care or whatever they won't do that they'll go with somebody that they can just pay cash under the table that means the taxes won't be being withheld that means payroll taxes won't be being paid that means in some cases income tax won't be being paid because it'll be paid cash money under the table that means that the worker will have no protections at all for unemployment insurance and won't have any in any possibility of any sort of benefits that they would be afforded if they're continuing to work for a companies. So you'll drive a certain sector of this further underground. You'll also reduce the

[02:09:42] number of people that can continue to afford, but the companies that stay in business, and I will, will raise their prices, maintain the margins that we all have to make to be able to stay in business, and we'll just do less business at a higher price, and we'll still be okay, and it'll be fine.

[02:10:04] What won't move for those of us that are my age and have been around for a while is that if we have been wise, the only debt that we have is on fixed interest, low interest mortgages on real property, and that won't change at all.

[02:10:22] So the beneficiaries will ultimately be the people that already don't need the benefit, and as the prices go up across the board, it's going to be a problem. The other thing to point out is that when you look at just consumer price indexes going up, the consumer price index will go up as raw dollars.

[02:10:41] It will if we do this. But it will not go up because activity increases. It will go up because prices go up. And that is always what happens. And what will also happen is everybody that is earning minimum wage today, 24 months down the road after the fact, will be at the exact same economic position that they are in today because the adjustments of the cost of living will have gone up accordingly.

[02:11:06] And by tying it to the CPI going forward, what will continue to happen is a steady progression of inflation that will go at a disproportionately higher rate in Virginia than the surrounding states who haven't done this.

[02:11:23] And it will be problematic. It's not gloom and doom. It's just the fact of the way it will work because it always does, but that's okay. So I don't expect this to have any bearing on it, But I just wanted to make sure everybody is aware of exactly what we're doing. Thank you, Madam President. The Senator from Norfolk.

[02:11:41] Thank you, Madam President. Speaking to the bill. The Senator has the floor. Thank you, Madam President. In 1989, I got my first job. I thought I was in high cotton. Minimum wage was $3.35. I got paid $5 an hour. I was in high cotton. Gas was $1.20.

[02:11:57] I had my little car, $5, would fill it up for the week, probably about 10 days. That is not the case now. While minimum wage was never meant to support a family of four, and it was meant as an entry level, it is the floor and not the ceiling, so many people are working one, two, and three jobs because they cannot make ends meet.

[02:12:22] As a business owner, I'm a business owner, small business, my husband is a business owner, none of our people make minimum wage. We can't recruit quality folks at minimum wage because they just won't work for that amount of money. And when we have people who are working, we want to be fair with them. These are the people who are answering our phones. These are the people who are seeing our families. These are the people who are meeting our customers. These are the people who are the directors of our first impressions

[02:12:56] for our businesses. These are the people who are making the products. We are not bazillion dollar profit earners living in mansions and owning yachts. We are small business owners, just like those that my friends across the aisle speak of. But we want to ensure that the people who work for us are fairly compensated for the work that they do that sustains us and sustains our family.

[02:13:25] My husband's business has been in business for 75 years, and they didn't do that by paying people the bare minimum. They did that by making sure that they took care of the people that worked for them. If corporations and businesses were being fair, if they were taking care of the people who worked for them and made them the bazillion dollars in profits that they earn, we wouldn't even be having this conversation in the first place.

[02:13:54] minimum wage is the floor it is by no means a real sustainable wage but what it does do is it goes a long way to help people make ends meet and get to the next level in their professional bit in their professional lives and i hope that everyone in this chamber will see that we'll see the dignity and work we'll see the value in work and we'll see that people are struggling and this will help them to struggle just a little a little bit less and vote yes on this bill thank

[02:14:26] you madam president seeing no other senators who wish to speak on senate bill one the question is shall senate bill one pass all in favor of the motion madam president i just want to make one

one last statement the senator from portsmouth i didn't have to say much about this bill because i knew half the folks in this room would stand up and say something but not only would the person not be able to afford a studio apartment when would they be able to eat? Madam President with that again I move that the bill passed. Does the senator from Roanoke

[02:15:04] wish to speak? The question is shall Senate bill 1 pass? All in favor of the motion will record their votes aye those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 20, noes 19. Ayes 20, noes 19. Senate bill 1 passes Senate bill 25 a bill to direct the director of the Department of Energy to identify and develop training resources to advance workforce

[02:15:43] development and offshore wind industry the chair recognizes the senator from Eastern Prince William thank you madam president madam president I move the bill passes speaking to the bill the senator has the floor thank you madam president this bill prioritizes training access for veterans local workers and and historically economically disadvantaged communities by partnering with higher education institutions, vocational technical schools, apprenticeship programs, and historically black colleges or universities to create pathways into offshore wind careers.

[02:16:19] It includes provisions for developing a much needed pre-hire soft skills program for manufacturing trades, offshore wind products, and services providers and maritime workers. The bill directs the Virginia Department of Energy to identify and develop training resources specifically for offshore wind careers.

[02:16:37] This bill also requires an assessment of industry needs to inform curriculum development. I hope it is the will of the body to pass the bill. - The question is, shall Senate Bill 25 pass? All in favor of that motion will record their votes, aye.

[02:16:53] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:17:09] Ayes 20, noes 19. Ayes 20, noes 19. Senate Bill 25 passes. Senate Bill 34, a bill relating to incapacitated persons finding of lack of capacity to understand act of voting.

[02:17:28] The Senator from Arlington. Thank you, Madam President. Madam President, I move that the bill pass and speaking to the motion. The Senator has the floor. Thank you, Madam President. Under our current law, if you're a subject of a guardianship or receivership, the default position is you would lose your right to vote.

[02:17:49] What this bill does is it flips that and says an individual will retain his right to vote unless the judge specifically issues a decision otherwise. And that decision would have to rest on a determination that the person lacked the capacity to understand voting and the impact of voting.

[02:18:11] This bill passed the Senate last year 38 to 0. So I hope it is the will of the body to pass this measure again. The question is, shall Senate Bill 34 pass? All in favor of that motion will record their votes aye.

[02:18:28] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. I was 37, no's 1. Ayes 37, noes 1, Senate Bill 34 passes.

[02:18:48] Senate Bill 43, a bill to direct the Department of Energy to evaluate and assess the benefits and impacts of best practices and implementation recommendations for demand response programs report.

[02:19:04] Senator from Western Prince William. Thank you, Madam President. Madam President, speaking to the bill. The Senator has the floor. Thank you, Madam President. The clerk described exactly what the bill does. So with that, I move past the bill. The question is, shall Senate Bill 43 pass?

[02:19:20] All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:19:45] Ayes 21, noes 17. Ayes 21, noes 17. Senate Bill 43 passes. Senate Bill 62, a bill relating to modification of sentence for marijuana-related offenses.

[02:20:01] The Senator from Portsmouth.

[02:20:19] Without objection, Senate Bill 62 goes by temporarily. Senator from Portsmouth. Thank you, Madam President. I apologize.

[02:20:36] Madam President, first of all, I move that the bill passed. Speaking to that measure. The Senator has the floor to speak to Senate Bill 62. Thank you, Madam President. what it does, it creates a process by which persons convicted of certain felony offenses involving the possession, manufacture, selling, giving, distribution, transportation, or delivery of marijuana committed prior to July 1, 2021, who remain incarcerated or on community supervision on July 1, 2026, may receive an automatic hearing to consider modifications of such

[02:21:12] person sentence the provision of this bill sunset on july 1 2029 the question is shall senate bill 62 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 21, noes 17. Ayes 21, noes 17. Senate Bill 62 passes. Senate Bill 141,

[02:21:53] a bill relating to elections, political campaign, advertisements, synthetic media penalty. The senator from Central Fairfax. Thank you, Madam President. I move that the bill passed and speaking to that. The senator has the floor. Thank you, Madam President. Senate Bill 141 is a bill that we saw in this chamber last year and that actually ended up, uh, uh, being vetoed by the governor. So we're hoping it gets to a different governor, uh, this year, but this bill requires a disclosure on synthetic media, uh, as defined in the bill, um, when it's

[02:22:29] used in political campaigns. Uh, the only difference in this bill or we, uh, included was the fact that if there is a staged event used, uh, such as a lookalike, uh, for the purposes of specific type of campaign media as well the rapid development of this deep fake technology has already impacted our elections and with that I urge this body to vote yes on this so that we can establish a fair playing field for future elections the senator from Eastern Fairfax speaking to the bill madam president the senator has the floor thank you madam president first

[02:23:08] of all I just want to thank the center from from Central Fairfax for carrying Picking up this bill from last year, I carried this last year before I got it to the governor who decided he didn't like it. I just want to remind everybody that this bill can go both ways.

[02:23:26] AI can go both ways. Fake ads can go both ways. And this bill does not ban AI-generated ads at all. All it says is that if you're going to use a deepfake or you're going to use AI in political advertising, you've got to put a disclaimer on it so the voters know they're not looking at something that's real. And what some studies have found is that if you don't do this, it creates something called the liar's dividend, where it actually benefits candidates to lie. And I would

[02:24:04] submit that we wouldn't be the first state to do this. There's several other states to do it. Put this disclaimer on AI, including the super woke state of Texas. So, Madam President, I would say that this is not a partisan issue. I think election misinformation ought to be a bipartisan concern.

[02:24:28] Voters ought to know the difference between real and fake stuff they're watching on TV. And if we don't do something about this soon, every one of us in here is eventually going to be the victim. And we're going to end up having some situation where some election gets decided based on some fake ad.

[02:24:47] And somebody's going to be in here saying we should have done this a year ago or two years ago or five years ago. Right now, we have the opportunity to do something. I think we ought to take the bull by the horns and adopt this legislation now. And I'd hope we could see bipartisan support for this. The question is, shall Senate Bill 141 pass?

[02:25:08] All in favor of that motion will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:25:27] Ayes 34, noes 4. Ayes 34, noes 4. Senate Bill 141 passes. As we go forward, I'm going to be reading the page number before the bill number because we have a problem with LIS.

[02:25:48] So, page 8, Senate Bill 198, a bill relating to admissibility of statements by individuals with developmental or intellectual disabilities in certain cases. The chair recognizes the senator from Arlington.

[02:26:05] Thank you, Madam President. Madam President, I move that the bill pass. And speaking to the motion. The senator has the floor. In certain criminal cases, in the pretrial phase, If an individual is diagnosed as being on the autism spectrum, or with a developmental disability has identified in our code, the defendant or the individual's attorney may petition the court to ensure that statements made to law enforcement are not admissible.

[02:26:41] And the judge will make a determination based on the preponderance of evidence. Of course, the Commonwealth Attorney can also prepare a response. There is a reenactment clause on this bill, so it would not take effect unless the General Assembly acts on this measure again next year.

[02:27:03] I hope it is the will of the body to pass the bill. The question is, shall Senate Bill 198 pass? All in favor of that motion will record their votes, aye, those opposed, no. Are the senators ready to vote?

[02:27:19] all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 21, noes 17. Ayes 21, noes 17. Senate Bill 198 passes.

[02:27:39] Page 9. Senate Bill 223, a bill to establish the distributed energy resources task force. Reports sunset. The senator from Western Henrico. Thank you Madam President, Madam President. I move the bill passes speaking to that motion.

[02:27:59] the senator has the floor thank you my president president members of the body everybody knows that we have an energy problem demand is up we don't have supply to meet it uh and this is a bill to look at how can we best utilize distributed energy uh if we do not want to have to buy build expensive new infrastructure if we do not want to have to build a ton of utility solar one way we can do that is to make sure we're maximizing how we use distributed energy we've taken some good steps this session uh to to to promote distributed energy but we are leaving a lot on the table and so this bill is trying to figure out ways to maximize ders so i move passage

[02:28:37] the question is shall senate bill 223 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 20, no 17, rule 36-1. Ayes 20,

[02:29:06] no 17, rule 36-1, Senate Bill 223 passes. On page 9, Senate Bill 257, a bill relating to health insurance coverage for prescription and non-prescription opioid antagonists. The Senator from Arlington. Thank you, Madam President. Madam President, I move that the bill pass, and speaking to that motion the senator has the floor thank you madam president this is a bill that's been endorsed by the joint commission on health care what it does is it says that for one

[02:29:42] opioid antagonistic prescription or non-prescription drug and eat one antagonist in either of those categories shall be offered at the lowest cost tier that the insurance schedule offers it's It's intended to make treatments more affordable.

[02:30:02] There's also a requirement that there be a public notice. So an individual buying a non-prescription antagonist will have to go to the pharmacy station to get the insurance benefit. That is the bill. I hope it is the will of the body to pass it.

[02:30:20] The question is, shall Senate Bill 257 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 37, Noes 1. Ayes 37, Noes 1. Senate Bill 257 passes. On page 10, Senate Bill 278, a bill relating to drug manufacturers permitting and

[02:30:57] registration certain conditions related to 34B covered drugs. The junior senator Senator from Loudoun. Thank you, Madam President. I move the bill pass and speaking to that motion. The Senator has the floor. Madam President, Senate Bill 278 is now a section one bill directing the Secretary of Health and Human Resources to convene a stakeholder workgroup to study and evaluate the impacts of the federal 340 drug pricing program in our commonwealth.

[02:31:28] The goal is to provide this General Assembly with a comprehensive data-driven assessment on governance, patient access in rural and underserved communities, and importantly transparency measures to inform any potential legislative action we may take in the future.

[02:31:45] I hope it's the will of the body to adopt this bill. Thank you. The question is, shall Senate Bill 278 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote?

[02:32:00] Have all the senators voted? Do any senators desire to change their vote? - The clerk will close the roll. - Ayes 39, no zero. - Ayes 39, no zero. Senate Bill 278 passes.

[02:32:16] - Page 10, Senate Bill 333, a bill relating to electric generation from remediated mine gas renewable portfolio standards. - The Senator from Tazewell.

[02:32:32] - Thank you, Madam President. I move the bill pass and speaking of that motion. - The Senator has the floor. Madam President, Senate Bill 333 is actually a substitute that got passed out of committee is a grant program that will allow the methane gas that is escaping into the atmosphere, causing harmful things to happen to actually be captured and used for energy production.

[02:33:03] And so with that motion, I move that the bill pass. The question is, shall Senate Bill 333 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:33:27] Ayes 39, noes 0. Ayes 39, noes 0. Senate Bill 333 passes. Senate Bill 361 on page 11, a bill relating to health insurance coverage for contraceptive drugs and devices.

[02:33:45] The Senator from Eastern Prince William. Thank you, Madam President. Madam President, I move the bill pass and speaking to the bill. The Senator has the floor. Thank you, Madam President. This bill requires health insurers, corporations, and health maintenance organizations to offer coverage for contraceptive drugs, devices, or therapeutic equivalents without cost sharing.

[02:34:03] This legislation will provide coverage for care that is prescribed from your doctor and also available over-the-counter. Legislation similar to this passed both the Senate and the House in both 2024 and 2025 before being vetoed by the previous governor. I hope it is the will of the body to pass it again.

[02:34:21] The question is, shall Senate Bill 361 pass? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[02:34:38] The clerk will close the roll. Ayes 23, noes 16. Ayes 23, noes 16. Senate Bill 361 passes. Page 11, Senate Bill 369. A bill relating to specialty civil court dockets, business and complex litigation dockets established.

[02:35:04] Criteria for eligible actions. The senator from Eastern Prince William. Thank you, Madam President. madam president move the bill passes speaking to the bill the senator has the floor thank you madam president this bill establishes a specialty docket known as the business and complex litigation docket to assist circuit courts with certain civil actions that involve specialized legal issues complex context intricate transactions multiple parties or other complicating factors the bill also requires that such eligible action has a minimum amount and controversy of 1 million dollars the bill also enumerates several types of civil actions that are ineligible for such specialty

[02:35:43] dockets but creates an exception for any such action that demonstrates extraordinary circumstances that will require specialized docket management i hope it is the will of the body to pass the bill the question is shall senate bill 369 now pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 36, noes 3. Ayes 36, noes 3. Senate Bill 369 passes. Madam President. Senator from Franklin County.

[02:36:22] Pardon me, Madam President, but having voted on the prevailing side by which SB 361 passed, I now move that we reconsider that vote. The motion is to reconsider the vote by which Senate Bill 361 on

page 11 passed. Shall the vote be reconsidered? All in favor of that motion will record their votes aye.

[02:36:50] Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no zero. Ayes 39, no zero. The motion is agreed to. Senator from Eastern Prince William. Thank you Madam President. Having previously spoken on the bill I ask that it it pass. The question is shall

[02:37:24] Senate Bill 361 be agreed to? All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 23, noes 16. Ayes 23, noes 16. Senate Bill 361

[02:37:50] passes. Page 12. Senate Bill 376. A bill relating to motor vehicle collisions, preservation, and collection of certain mobile telephone data collision reports. The senator from Eastern Fairfax. Thank you, Madam President. I move the bill passes. Speaking to that motion. The senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate Bill 376 is a follow-on to sort of a policy area that I've been working on now for about gosh probably 15 years since a family

[02:38:30] came to me in Fairfax whose son was was killed by a driver who was distracted by texting and the bill is basically an effort to try to create greater accountability for people who drive while all distracted. The bill does a couple things. I have an understanding of the problem. When an auto collision occurs, the information that's contained in somebody's telephone or in other electronics often is not preserved for when a lawsuit ends up being brought a year or two or three later. And so basically what the bill does is it says that whenever a collision occurs and

[02:39:10] somebody who's injured sends a letter to, well, first of all, it requires the law enforcement officer to collect information about people's cell phone, their cell phone carrier, and about their phones so that the attorney for an injured person can then write to the carrier and ask the data be preserved for a two or three year period so that if litigation becomes necessary, that data can then be obtained. The one other thing it does, which is also important, is you all may have noticed that a lot of auto insurance companies have now started to use something called telematics in order to provide adjustment information to figure out what rates to set people's insurance

[02:39:47] rates at. What that means is they put an app on your phone so that while you're driving it can detect whether you're speeding or whether you're abruptly braking or having engaged in other risky driving behaviors and they use that information in order to adjust your insurance premiums to make you a better driver. Well that information could be very useful in the event of a collision but there's no way to know whether a specific driver has it or not until after you file suit and start seeking and by then the data is all destroyed. So the bill also allows somebody to reach out to an insurance carrier to ask them was you're insured using a telematics app that has this data and if

[02:40:24] so preserve it. So with those few things put together Madam President I think this bill will help create more accountability for people who engage in risky driving behavior like distracted driving which is resulting in more and more deaths and injuries on our roads every year and costs all of us money. So Madam President I hope we can pass this bill to ensure that the laws we pass have some teeth and people will stop engaging in such risky behavior. The question is shall Senate bill 376 pass? All in favor of that motion will record

[02:40:58] their votes aye those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 23, noes 16. Ayes 23, noes 16. Senate bill 376 passes. Page 13. Senate Bill 382, a bill relating to smart solar permitting platform, established residential solar energy systems.

[02:41:33] The Senator from Eastern Fairfax. Thank you, Madam President. I move the bill to pass. And speaking of that motion. The Senator has the floor. Madam President, this is another in the litany of affordability bills you're going to see this session. You might ask yourself, why is a solar permitting bill an affordability bill?

[02:41:54] Well, I'll tell you for a couple reasons. Well, number one, producing your own solar power is cheaper than buying it from the power company. And anything we can do to allow people to get themselves free of the grid, to be able to generate their own power and to generate it cheaply, will save Virginians money over the long term.

[02:42:17] But more importantly, one of the reasons that a lot of people don't put solar panels on their property is because it can sometimes be expensive. And one of the things that drives up the cost of installing a solar panel system on your roof is the cost of permitting.

[02:42:34] And in many localities, permitting a solar installation can be very paper-consumptive and time-intensive. So what this bill does is it requires the Department of Energy, DHCD, I think, to sit down together and to come up with a standard online solar permitting application.

[02:42:55] so you can just go on a website type in your information give them a credit card hit submit and apply for your permit and it creates this standard online form thing that then other localities can take to use in their localities in lieu of doing all this uh complicated paperwork and so if every if everybody was to do that it estimates that automated permitting could lower the cost of the standard solar system by between six and seven thousand dollars so just imagine saving people six to seven thousand dollars on a solar installation that's what this bill does

[02:43:35] and i would hope that we could pass this to make solar more affordable and available to as many virginians as possible especially as we try to figure out ways to generate more electricity to deal with our uh um our increased demands that we're having placed in our system the chair recognizes the senator from Lynchburg thank you madam president rise speak to the bill the senator has the floor thank you madam president listen to that it brought up some other thoughts on some other issues to hear the senator from Eastern Fairfax complain about the cost for permitting for solar I wonder if the

[02:44:14] senator from Eastern Fairfax has thought about the cost of permitting for nuclear that is really expensive so if we could eliminate the cost of permitting for solar and for nuclear it would be very helpful and beneficial to the Commonwealth nuclear being one of the primary sources of power already in the Commonwealth and the expansion with small modular reactors if we could decrease the cost of permitting for that would be one of the major sources for carbon-free electricity for the Commonwealth so I hope we'll all

[02:44:48] consider those thoughts for decreasing permitting and bureaucratic costs for clean energy thank you madam president the question is shall senate bill 382 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the role Ayes 22, noes 17.

[02:45:19] Ayes 22, noes 17. Senate Bill 382 passes. Page 14. Senate Bill 448, a bill relating to electric utilities, energy storage resources, Department of Energy to develop model ordinances, work groups, reports.

[02:45:48] The senior senator from Henrico. Thank you, Madam President. I move passage of the bill and speak into that. The senator has the floor. Thank you, Madam President. Madam President, SB 448 establishes standards and goals for energy storage and helps ensure the reliability and affordability of our grid and I hope the body will act favorably upon this legislation and renew my motion to pass this legislation.

[02:46:22] The question is, shall Senate Bill 448 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote?

[02:46:37] The Clerk will close the roll. Ayes 22, noes 17. Ayes 22, noes 17. Senate Bill 448 passes. On page 15, Senate Bill 518, a bill relating to prevailing wage rate for public works, contracts, definitions, penalty.

[02:47:00] The Junior Senator from Virginia Beach. Thank you, Madam President. passed speaking to that motion the senator has the floor thank you madam president sb 518 prevailing wage rate for public works um there's an issue that's kind of more personal to be many of you may not know that when i was a freshman in college i became a young father and so i was a full-time student at virginia tech i was an athlete and i had a young son to take care of and so my freshman year in the spring time i came home and got a job working concrete

[02:47:35] on the construction line with a hard hat or the mall gloves working in this virginia heat in the humidity made me a tougher person but also made sure i had to take care of my family provide for my young son and provide for my family keeping the roof right ahead and trying to put food on the table and so i was proud to be one of the three patrons for sb 518 and basically this bill just extends the prevailing wage law to cover institutions of higher learning and local government projects accepting more than $250,000 of state funding.

[02:48:10] Some changes that were made in commerce and labor basically removed projects from receiving financial assistance from state agencies or localities from required prevailing wage coverage, but also requiring prevailing wage or state-funded projects by localities.

[02:48:29] One of the things that we wanted to make sure that was that grants to localities are typically competitive, meaning that localities that are not willing to pay prevailing wage, that they do not have to accept state funding if they do not want to pay prevailing wage.

[02:48:44] VACO was neutral on this language. And where this prevailing wage applies is that this legislation adds prevailing wage requirements to two categories, to two or three institutions of higher education and to state-funded projects With that, Madam President, move the bill pass.

[02:49:04] The question is, shall Senate Bill 518 pass? All in favor of that motion will record their votes aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[02:49:21] Ayes 20, noes 19. Ayes 20, noes 19. Senate Bill 518 passes. Page 16, Senate Bill 619, a bill relating to Electric Utilities Certificate of Operation for HALO facilities.

[02:49:40] The junior senator from Loudoun. Thank you, Madam President. I move the bill to pass and speaking to that motion. The senator has the floor. Madam President, Senate Bill 619 requires large new facilities exceeding 90 megawatts to obtain a certificate of operation from the State Corporation Commission beginning January 1, 2027, creating a statewide review to assess cumulative impacts on grid reliability, infrastructure, and ratepayers before coming online.

[02:50:08] Currently, these high-load facilities projects are approved without a coordinated state-level process to evaluate their combined effect on our energy system. By adding this coordinated oversight, we support responsible economic growth while protecting grid reliability, environmental quality, and long-term energy security for Virginians.

[02:50:30] I hope it will be the will of the body to pass this bill. Thank you. The question is, shall Senate Bill 619 pass? All in favor of that motion will record their votes. Aye, those opposed. No, are the senators ready to vote?

[02:50:45] Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 23, noes 16. Ayes 23, noes 16.

[02:51:00] Senate Bill 619 passes. Senate Bill 659, a bill relating to solar interconnection grant program established. Report sunset. The Senator from Chesapeake.

[02:51:16] Thank you, Madam President. Madam President, I move the bill pass in speaking to the bill. The Senator has the floor. Thank you. SB 659 establishes the solar interconnection grant program to award grants on a competitive basis to public bodies to offset costs associated with interconnection of solar facilities to the grid.

[02:51:33] The bill requires the priority be given to solar facilities located on previously developed project sites. The program is administered by the Division of Renewable Energy and Energy Efficiency of the Department of Energy. This bill does have a sunset of July 1st, 2027.

[02:51:48] Madam President, I renew my motion that the bill pass. The question is, shall Senate Bill 659 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? all the senators voted. Do any senators desire to change their vote? The clerk will close the roll.

[02:52:14] Ayes 30, Noes 8, Rule 36-1. Ayes 30, Noes 8, Rule 36-1, Senate Bill 659 passes. Senate Bill 690 on page 17. A bill relating to Department of Criminal Justice Services, powers, and duties, local and regional jails, repeal of model addiction recovery program. The junior senator from Loudoun. Thank you, Madam President. I move the bill pass and speaking to that motion. The senator has the floor. Madam President, Senate Bill 690 is a joint commission on health care recommendation

[02:52:54] that streamlines how we deliver substance use treatment in our jails. The bill provides a requirement for a separate model addiction recovery program and instead consolidates, the bill removes the requirement for a separate model addiction recovery program and instead consolidates those resources into the broader jail mental health pilot program.

[02:53:16] This aligns funding with the community needs, strengthens continuity of care from incarceration back into the community and prioritizes current grantees to prevent gaps in service as we respond to the fentanyl crisis. I hope it's a will of this body to adopt this bill. Thank you.

[02:53:33] The question is, "Shall Senate Bill 690 pass? All in favor of that motion will record their votes aye, those opposed no. Are the Senators ready to vote? Have all the Senators voted? Do any Senators desire to change their vote?"

[02:53:48] The Clerk will close the roll. Ayes 37, noes 2. Ayes 37, noes 2. Senate Bill 690 passes. On page 18, Senate Bill 731, a bill relating to private companies providing public transportation services employee protections report.

[02:54:16] The Senator from Central Fairfax. Thank you, Madam President. I move that the bill pass. And speaking to that. The Senator has the floor. Thank you, Madam President. Senate Bill 731 provides that any locality that uses a private company to provide public transportation services must require that the private contractors pay wages and benefits equal to what the localities pay its own employees.

[02:54:40] This bill was something that we brought back from last year, but with the additional changes that it does not impact any of the existing collective bargaining agreement and also adds that the Department of Rail and Public Transportation convened a working group to determine how bridge the gap between private and public sector transit employee benefit as well so with that explanation I'm renew my motion that the bill pass the question is shall Senate bill 731 pass all in favor of that motion will record their

[02:55:16] votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll. Ayes 20, noes 19. Ayes 20, noes 19. Senate Bill 731 passes. Page 18, Senate Bill 758, a bill relating to solar energy facility work, prevailing wage rate, apprenticeship requirements, civil penalties report. The junior senator from Virginia Beach. Thank you, Madam President. Move

[02:55:53] the bill passes. Speaking to that motion. The senator has the floor. Thank you, Madam President. As demand for solar construction increases, workforce shortages and heavily reliance on transient labor become more likely. Establishing a baseline labor standards help promote skilled and trained workers, save job sites, predictable project delivery, and reduce turnover.

[02:56:12] This bill does not create tax incentives, exemptions, or financial incentives of any kind. This is just a labor standards bill as well, and this bill is prospective and predictable. The requirements apply only to future construction contracts and do not affect existing projects, financing arrangements, or agreements that are already in place.

[02:56:33] With that, I move the bill to pass. The question is, shall Senate Bill 758 pass? All in favor of that motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted?

[02:56:50] Do any senators desire to change their vote? The clerk will close the roll. As 20, no, 19. Ayes 20, Nose 19, Senate Bill 758 passes. Page 19, Senate Bill 759, a bill relating to unemployment benefits, increased weekly benefit amounts.

[02:57:18] Senator from Eastern Fairfax. Madam President, could that bill go by temporarily? Without objection, Senate Bill 759 goes by temporarily. Page 19, Senate Bill 770, a bill relating to trespass by Hunters and Fishers, penalty.

[02:57:45] the senator from orange thank you madam president has the bill passed and speaking to that the senator has the floor madam president members of the body uh the senior senator from fairfax myself have tried to work over the last several months to try to uh de-escalate between the uh animosity between landowners and dog hunters a tradition that is long and rich in the commonwealth originally i had a bill that i thought could address that and we found out from the dog

[02:58:20] hunters that what they needed was more enforcement well lo and behold i found out one of the things that dog hunters had a break on was the ability to trespass and they had a originally a class three trespass a class three misdemeanor trespass if they were to trespass on your property while hunting game so i listened and i changed the bill and i said well let's make a stiffer penalty on the bad dog hunters just going after the bad people so we uh we changed the bill to just

[02:58:56] does nothing else but change uh the classification of the misdemeanor to which you would be charged for illegally hunting on somebody's property to just a regular class one misdemeanor if you were forbidden to trespass somewhere else this is what you'd be charged with So let me talk a little bit about what it costs each year. The DWR, Department of Wildlife Resources, just for that small period of hunting that happens during the year, the total cost is just for patrol functions alone is about $775,000 a

[02:59:34] year with over 1,344 calls just for the 24-25 season and so madam president this is just a small step forward to try to go after bad hunters and try to de-escalate the problem we have with landowners and dog hunters the senior senator from Fairfax thank you madam president speak to the bill the senator has the floor Madam President, I rise to support the bill.

[03:00:09] Trespassing is trespassing. And we're going after a targeted group of people here who just aren't behaving themselves and treating their neighbors to the intrusion of their dogs on their property. And you know, you can stop your car on the highway and step onto someone's property to take a picture of a beautiful landscape and you're trespassing.

[03:00:30] Class 1 misdemeanor, you know, you unleash a herd of dogs on somebody's property disrupting their peace and quiet and harassing their animals. And it's not a class one misdemeanor, it's less. So I think this is fair. I think it gets at the right target.

[03:00:46] And I appreciate the senator from Orange for putting this bill forward. And I ask you to support the bill. The senator from Botetok. Yes, would the patron yield for a question?

[03:01:01] Will the senator from Orange yield? Gladly, Madam President. Senator from Botetok. Thank you, Madam President. I'd ask the Senator if there's anything in this bill as it currently stands now that has anything at all to do with right to retrieve the dogs or any of the other areas that certain of the dog hunters have been the most really anxious about preserving going forward.

[03:01:27] The senator from Orange. Madam President, I would answer the senator no. It doesn't change anything other than the classification and level of trespass to which a person who is hunting on your property illegally would be charged with.

[03:01:44] It doesn't change the dates to which you can hunt the original bill from where you can hunt different seasons for black powder or a bow or a rifle. None of that. All it does, very simply, is take a Class 3 misdemeanor to make it a Class 1 so we can go after the bad actors.

[03:02:05] Senator from Botetourt. Thank you, Senator. The question is, shall Senate Bill 770 pass? All in favor of that motion will record their votes aye. Those opposed no.

[03:02:20] Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll. Ayes 14, noes 25.

[03:02:37] Ayes 14, noes 25. Senate Bill 770 does not pass. Page 20. Senate Bill 794, a bill relating to Virginia Health Care Protection Act established.

[03:02:54] Prohibition on extradition for certain crimes penalties. The chair recognizes the senior senator from Loudoun. Thank you, Madam President.

[03:03:10] I move the bill pass in speaking to that motion. Senator has the floor. Thank you, Madam President. This is a bill that seeks to provide protections around our health care providers that are providing what is lawful care here in the Commonwealth of Virginia and ensure that they can continue to do their job without fear of being extradited or otherwise criminally prosecuted for conduct that they provide here in Virginia that is lawful. We've seen how health care has shriveled up in other states as doctors have been unable or to provide the health care that they believe that is is their job to provide madam president so this these protections

[03:03:49] on the folks here in Virginia who are providing the care here thank you madam president the question is shall Senate bill 794 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 20 nose 19 eyes 20 nose 19 Senate bill 794 passes

[03:04:21] on page 20 Senate bill 807 a bill relating to hunting within certain areas of Monroe Bay prohibited prohibited Westmoreland County the senator from King George thank you madam president move the bill pass and speaking to that the senator has the floor thank you madam president so what this bill does is it would restrict hunting in a small sliver of water in between the town of colonial beach and the shores of westmoreland county i will tell you all that this was a request by both the town

[03:05:02] and the county board of supervisors unanimously so the town council voted unanimously to request me to carry this bill the board of supervisors of westmoreland county voted unanimously to ask me to carry this bill and i know that some folks don't like limiting hunting but if i can explain it briefly imagine that madam president's desk is the county of westmoreland and madam clerk and her staff's desk would be the town of colonial beach it would be that much water you couldn't hunt in back there and everybody can still hunt in all this area

[03:05:39] in what's called the potomac river although you wouldn't want to hunt today you know why because dc water has dumped about 500 million gallons of raw sewage into the potomac water and it is not fit for man or beast right now but after it's cleaned up you could still duck hunt all in this area in all seriousness what's happened um 50 60 70 nobody's ever hunted in this little sliver of water and somebody figured out that you could and so they've been shooting

[03:06:14] next to the marinas, next to the restaurants, next to people's houses. They kill ducks called ruddy ducks that you can't eat. They let them wash up on people's shores. They don't even retrieve them.

[03:06:30] They do take pictures of the buddy ducks and put them on Facebook and they taunt the people who don't like it. And so all the town and the county are trying to do is put an end to this because these

couple people just don't know how to behave.

[03:06:46] And I know some of you don't want to vote for it, but I'd ask you to look at this like a charter change because I think it's special legislation and I really need 27 votes. The question is, shall Senate Bill 807 pass?

[03:07:05] All in favor of that motion will record their votes aye, those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[03:07:25] The clerk will close the roll. Ayes 19, noes 20. Ayes 19, noes 20. Senate Bill 807 does not pass. Returning to page 19, Senate Bill 759.

[03:07:45] The senior senator from Henrico County. Having voted on the prevailing side in which SB 807 failed to pass, I wish to reconsider that vote. The question is, shall the vote by which Senate Bill 807 did not pass be reconsidered?

[03:08:09] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[03:08:26] Ayes 39, noes 0. Ayes 39, noes 0. The motion is agreed to. Senator from King George. should it go by temporarily without objection senate bill 807 goes by temporarily returning to page 19 senate bill 759 a bill relating to unemployment benefits increase weekly benefit amounts the senator from alexandria thank you madam president i move the bill pass

[03:09:03] in speaking to that motion. The senator has the floor. This bill SB 759 would increase our unemployment benefits by $48 a week. Virginia's maximum weekly benefit is less than 30% of the average weekly wages in Virginia and they do not automatically adjust with inflation or rising wages. The last year we passed a bill to raise the wages unemployment benefits by $100 a week. That was adjusted by Governor Youngkin to 48 we accepted that amendment but this even

[03:09:39] with this additional $48 increase we're still very low and last year when we asked for the hundred dollar increase I circulated it to the Chamber of Commerce and other business interests and no one opposed it they all recognized I guess that that it's time for an increase for our very low unemployment wages that are already currently in the code. Thank you. I move the bill pass. The question is, shall Senate Bill 759 pass? All in favor of that motion will record their votes aye, those opposed no. Are the senators

[03:10:14] ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 39, no zero. Ayes 39, no zero. Senate Bill 759 passes. Senator from eastern fairfax um madam president before we move to recess for a bit to go work on second reads could we return for the morning hour for a few folks to do some introductions

[03:10:54] without objection the senate will return to the morning hour the chair recognizes the senator from western fairfax thank you madam president i rise for four introductions did you say 40 senator hi i said four the senator has the floor thank you well today in the gallery we are joined by a determined group of students their families and staff from edu futuro and i asked them to stand up please edu futuro is an organization that supports students and their

[03:11:31] parents in achieving higher education and workforce development opportunities in fairfax and arlington counties each year they serve nearly 4 000 youth and adults providing students with a path to high school graduation and college enrollment through multiple programs while while simultaneously training and inspiring parents through their um programs today ed de futuro has brought more than 40 students and parents from fairfax and arlington counties and these community members are

[03:12:07] represented by several of my colleagues here who've had the opportunity to engage directly on legislative issues through this visit edu futuro continues its mission of empowering latino youth and families by fostering leadership civic participation and community engagement providing participants the opportunity to meet with their senate senators and delegates and i ask that you give them a warm welcome thank you senator for that introduction i i remind our visitors and our

[03:12:47] one senator that we hold applause we hold applause until i've had the opportunity to provide the welcome of the senate and i thank the senator for that introduction and welcome to the representatives of edufuturo thank you for the hard work that you continue to do we're delighted that you are here in the Senate gallery and delighted that you are visiting our legislators to share the priorities and the efforts that you are making to represent all of our communities. Senators, I ask that we

[03:13:17] give the warm welcome of the Senate to the representatives of Edufuturo. Senator from Western Fairfax. Madam President, in the gallery joining Edufuturo is my intern Andrea Mariscal Guzman Andrea reached out to me last year and said hey you're my senator and I need to meet you and talk to you about a few things and I was just so impressed

[03:13:51] by her passion and the work that she has done in our community and with Edo Futuro and I said come to Richmond with me this session and that's exactly what she's done and she's been an incredible part of my team so incredible that the administration said hey she is just a little too good to stay with you senator we want her to come to us and she has just accepted a position in the Virginia Department of Education and I'm just so ecstatic for her and for the work that

[03:14:26] she will continue to do on behalf of the youth of the Commonwealth and I hope you join me in thanking her and giving her a warm welcome of the Senate thank you senator for that introduction and congratulations and welcome to Andrea Mariscal Guzman thank you for the work that you did in our senator's office and we certainly wish you all the best as you move now into your new role helping so many across the Commonwealth in the Department of Education senators I ask

[03:14:58] that we give the warm welcome of the senate to miss guzman senator from western fairfax madam president my next introduction is for the coalition of asian pacific americans of virginia kapova if they would please stand i think they're behind me the coalition was founded in 2002 and is a statewide non-profit organization committed to advancing the interests and well-being of asian pacific american communities in the commonwealth through their work in civic engagement and

[03:15:37] education cultural advocacy and protection of civil liberties kapava serves as a unifying voice for the api communities across virginia by providing critical information on state and local policies and creating forums for public engagement they empower asian pacific americans to participate fully and effectively in the civic life of the commonwealth please join me in thanking them for being here and welcoming them today thank you senator for that introduction

[03:16:11] and welcome to the coalition of asian pacific americans of virginia thank you for the consistent and hard work that you do representing so many of our communities across the commonwealth and we're delighted to have you joining us in the senate gallery senators i ask that we give the warm welcome of the senate to the coalition of asian pacific americans of virginia the senator from western fairfax thank you madam president for my last introduction today in the gallery we have

[03:16:49] make us visible virginia they are if they would stand up are they here yes behind me um they are a state chapter of make us visible a volunteer-led non-profit organization committed to advancing the the inclusion of Asian American history in Virginia's K-12 schools and the development of free educational resources.

[03:17:12] By working alongside educators, families, and community partners across the Commonwealth, they support the thoughtful integration of educational standards and promote greater understanding of Asian American contributions to Virginia's history. And I have had the pleasure of working with the chapter who happened to be several of my constituents for multiple years now.

[03:17:38] So I thank them for their continued advocacy and I ask you to join me in welcoming them today. - Thank you, Senator, for that introduction and welcome to Make Us Visible Virginia. Thank you for your advocacy work and ensuring that we have a comprehensive and full telling of our histories across so many communities here in Virginia.

[03:17:59] And thank you for the work that you are sharing as you visit our legislators' offices. Senators, I ask that we give the warm welcome of the Senate to make us visible Virginia.

[03:18:15] The chair recognizes Senator from Central Fairfax. - Thank you, Madam President. I rise for two introductions. - Senator has the floor. - Thank you, Madam President. I'm honored to introduce today to the Senate a group of dedicated young leaders seated in the gallery, the Virginia Young Democrats, if they could stand.

[03:18:35] These young people represent high school students, college students, and young professionals from every corner of our commonwealth. They are the grassroot engine of the Democratic Party and the future of Virginia leadership. And some of them have actually, are the reason why I am here, specifically the gentleman in the gray, Mr. Gilman Kuda, who was my field director.

[03:18:58] And Madam President, with that, I wish that you give them the warm welcome of the Senate. - I thank the Senator for that introduction and welcome to the representatives of Virginia Young Dems. Thank you for the work that you are doing in talking to so many of our legislators about the priorities and the issues that impact young people all across Virginia.

[03:19:21] I was delighted to welcome you all this morning in my office and wish you a very productive and good day while you're here in Richmond. Senators, I ask that we give the warm welcome of the Senate to Virginia Young Dems.

[03:19:43] The senator from Central Fairfax. - Thank you, Madam President. And today we also have the Fairfax Democratic Asian Pacific Islander Caucus and the Democratic Asian Americans of Virginia in the gallery with us. So this organization represents the fast-growing demographic in our commonwealth.

[03:20:05] From Northern Virginia to Hampton Roads, DAV worked tirelessly to ensure that the diverse voice of our AAPI communities, whether they're Indian American, Vietnamese, Korean, Filipino, or

Chinese are heard in the halls of the Capitol.

[03:20:24] They have been advocating for language access, education, and voting rights to ensure that democracy is stronger and more inclusive. And there are a few of them where specifically Rose Chiu and DeWita who have been instrumental in my involvement with the AAPI community and really getting into the political world.

[03:20:43] And it means the world that they get to see me in this chamber through the hard work that they have put in over the years. And with that, Madam President, I ask that you give them the warm welcome of the Senate. Thank you, Senator, for that introduction. And welcome to the Fairfax Democrats Asian Pacific Islander Caucus and the Democratic Asian Americans of Virginia.

[03:21:05] Your hard work in so many different capacities, whether it's advocating on issues, prioritizing the concerns that we are focused on throughout our General Assembly session, and working to get voters educated and knowledgeable about the concerns that are facing all of us is critically important.

[03:21:25] Thank you so much for your representation, and Senators, I ask that we give the warm welcome of the Senate to the Asian Pacific Islander Democratic Caucus, as well as the Democratic Asian Americans of Virginia.

[03:21:44] The chair recognizes the Senate from Western Prince William. Thank you, Madam President. Madam President, I rise for an introduction. The Senator has the floor. Thank you, Madam President. Madam President, joining us in the gallery today, all the way from my hometown in Manassas, is the metal jackets of Osborne Park High School, if they could please rise.

[03:22:02] - All right, Madam President, Team 2068, who I'm happy to be representing as I always do whenever they come into town. They are our future engineers. They're our future builders. They are also quite literally on the other side of the fence from my district and the senior senator from Prince William's district.

[03:22:19] But we are grateful to both be representing the students here along with their fearless leader, Denise Carroll. And I'll tell you, they've been coming down here for years advocating for initiatives that are really important for our future scientists and our future engineers including the senator from franklin's bill sb 105 this year with the stem plus c competition grant fund which we passed out of here earlier and i was happy to be a co-patron on along with the senior senator from loudon and they also advocated for universal free school breakfast that i've championed we are so grateful and happy that they've made the journey down here today to tell us what's important to them so i hope it's going to be the will of the president to please wish them a warm senate welcome thank you senator for

[03:22:56] that introduction and welcome to the metal jackets of Osborne Park High School. Welcome to your teacher also Denise Carroll for for joining us. Thank you for the work that you are doing in advocating on so many critical issues around STEM, around opportunities for young people to develop the skills and the knowledge to pursue so many emerging careers here in Virginia. We thank you for your support for the the bill that has been consistently sponsored by the senator from Franklin County and we certainly wish you a very productive day

[03:23:32] as you are here in Richmond. Senators I ask that we give the warm welcome of the Senate to the metal jackets of Osborne Park High School. I do believe there is no other business for the morning

hour. Senator from Eastern Fairfax. Thank you Madam President. Madam President I think we're gonna take the second readout contested through and then recess after that. So, Madam President, I move that all

[03:24:11] the Senate bills on second reading on the uncontested counter on pages 21 through 41, Senate Bill 620 through 824, be advanced through engrossment and third reading in the block after the adoption amendments thereto. Any senator designing a move bill from the block shall do so after the clerk has read the number of the bill. The question is, shall all Senate bills on second reading on the uncontested calendar on pages 21 through 41 Senate Bill 620 through Senate Bill 824 now be engrossed in advance to their third reading in the block after the adoption of the amendments thereto that any

[03:24:47] senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill all in favor of that motion will say aye any opposed no the ayes have it the motion is agreed to the clerk will read the number of the bills. Senate bill 620 reported from the Committee on Rehabilitation and Social Services with substitute and from the Committee on Finance and Appropriations with a substitute. The senator from Alexandria. First with the recommendation it be rejected I move the substitute from the Committee on Rehabilitation and

[03:25:23] Social Services be agreed to. With the recommendation that it be rejected the question is shall the substitute from the Committee on Rehabilitation and social services be agreed to. All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is rejected. Senator from Alexandria. Now I move the committee on finance and appropriations substitute be agreed to. The question is, shall the substitute from the committee on finance and appropriations be agreed to? All in favor of that motion will say aye. Any Any opposed, no.

[03:25:58] The ayes have it. The substitute is agreed to. On page 22, Senate Bill 73, reported from the Committee on Education and Health and from the Committee on Finance and Appropriations with the substitute.

[03:26:13] The junior senator from Loudoun. Thank you, Madam President. I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Any opposed, no.

[03:26:28] the ayes have it. The substitute is agreed to. Senate Bill 132 on page 22. Reported from the Committee on General Laws and Technology with a substitute. The senator from Chesapeake. Thank you, Madam President. Madam President, I move that the substitute from General Laws and Technology be agreed to. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senate Bill 233 on page 23 reported from the Committee on Commerce and Labor with the substitute and from the Committee on Finance

[03:27:06] and Appropriations. The senator from Baudetat. I move the committee substitute from Commerce and Labor be agreed to. The question is shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Any opposed? Any opposed no? The ayes have it.

[03:27:27] the substitute is agreed to. Senate Bill 23, page 23, Senate Bill 245, reported from the Committee on Education and Health with the substitute and from the Committee on Finance and Appropriations. The senator from Baudetat. Thank you, Madam President. I now move that the committee

substitute from the Committee on Finance and Appropriations be agreed to. Senator, I believe you're moving the substitute from Education and Health. I'm sorry, it is from Education. Yeah, sorry about that.

[03:27:56] The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Aye. Any opposed, no. The ayes have it. The substitute is agreed to.

[03:28:12] Page 24, Senate Bill 260, reported from the Committee on Finance and Appropriations with a substitute. The Senator from Franklin. Thank you, Madam President. I now move that the Committee substitute from Finance and Appropriations be agreed to.

[03:28:30] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion, we'll say aye. Aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senate page 24, Senate Bill 267, a bill to direct the Department of Energy and the State Corporation Commission to conduct a comprehensive analysis of existing electric utility infrastructure, Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations.

[03:29:07] The Senator from Western Henrico. Madam President, I move the committee substitute. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Aye. Any opposed, no. The ayes have it. The substitute is agreed to.

[03:29:26] Madam President, I move we engrossed. Senator, we're in the uncontested calendar. Page 25 Senate bill 270 reported for the Committee on Rehabilitation and Social Services with the substitute and from the Committee on Finance and Appropriations with the substitute Senator from Western Henrico. We're present with the recommendation that we reject the substitute from rehab and social services. I move we adopt the substitute The question with the recommendation that it be rejected the question is shall the substitute from the Committee on Rehabilitation and Social Services be agreed to

[03:30:01] to. All in favor of that motion will say aye. Those opposed no. No. The no's have it. The substitute is rejected. Senator from Western Henrico. Madam President, I move we adopt the substitute from Senate Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed no. The ayes have it. The substitute is agreed to. Page 25, Senate Bill 299. Report it from the Committee on Education and Health.

[03:30:36] Page 25, Senate Bill 310, reported from the Committee on Commerce and Labor with a substitute. - The Senator from Tazewell. - Madam President, I move the Committee substitute be agreed to.

[03:30:54] - The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye. Those opposed, no, the ayes have it. The substitute is agreed to. - Page 26, Senate Bill 329, Reported from the Committee for Courts of Justice with the substitute, and from the Committee on Finance and Appropriations with the substitute.

[03:31:17] The senior senator from Loudoun. Madam President, with the recommendation that we reject the substitute from the Committee for Courts of Justice, I move we agree to the substitute from the Committee of Courts of Justice. With the recommendation that it be rejected, the question is, shall the substitute from the Committee for Courts of Justice be agreed to?

[03:31:35] All in favor of the motion will say aye. Those opposed, no. No. The noes have it. The substitute is rejected. Senator from Loudon. Madam President, I move we agree to the substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to?

[03:31:54] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Page 26, Senate Bill 374, reported from the Committee on Education and Health with a substitute and from the Committee on Finance and Appropriations with the substitute.

[03:32:12] The senior senator from Loudoun. Thank you, Madam President. Madam President, with the recommendation, we reject the substitute from the Committee on Education and Health. I move we agree to the substitute. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Education and Health be agreed to?

[03:32:29] All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is rejected. Madam President, I move we agree to the substitute from the committee on finance and appropriations the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion we'll say aye those opposed no the ayes have it the substitute is agreed to page 27 senate bill 394 reported from the committee on finance and appropriations page 27 senate bill 401 reported from the

[03:33:08] committee on general laws and technology with the substitute the senator from isle of white Thank you, Madam President. I move that the substitute from the Committee on General Laws be moved. Agree to? Agree to, sorry. The question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye.

[03:33:30] Those opposed, no. The ayes have it. The substitute is agreed to. Page 28, Senate Bill 405, reported from the Committee on Finance and Appropriations. Page 28, Senate Bill 409, Reported from the Committee on Rehabilitation and Social Services.

[03:33:50] Page 28, Senate Bill 423. Reported from the Committee on Commerce and Labor with a substitute, and there is a floor substitute. The senior senator from Loudoun. Madam President, with the recommendation we reject the substitute from the Committee on Commerce and Labor, I move the substitute from Commerce and Labor.

[03:34:09] With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to. All in favor of that motion will say aye. Those opposed, no. The noes have it. The substitute is rejected.

[03:34:26] Senator from Loudon. Thank you, Madam President. Madam President, I move that we agree to the floor substitute on Senate-- Senator-- I move the reading of the floor substitute be waived. The question is, shall the reading of the floor substitute be waived. All in favor of that motion will say aye. Those opposed no. The ayes have it.

[03:34:52] The reading is waived. Senator from Loudoun. Madam President, I move that we agree to the floor substitute in speaking to that motion. The Senator has the floor. Madam President, this bill is very similar to the bill that came out of Commerce and Labor. The only difference is line 60 through 64. There are two enactment clause provisions there that restate or clarify, I guess, existing law or what the bill is

intended to do, which is not contradict the findings of a case that's before the SEC and that it be implemented consistently with federal law.

[03:35:26] The last portion is that there is an effective enactment date of July 1, 2027 without I move the floor substitute. The question is, shall the floor substitute be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is, the floor substitute is agreed to. Page 29, Senate Bill 490, reported from the Committee on General Laws and Technology with the substitute and from the Committee on Finance and Appropriations with the substitute.

[03:36:01] Senator from Western Henrico. Thank you, Madam President. Madam President, with the recommendation that we reject the substitute from general laws. I move the substitute. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is rejected. Senator from Western Henrico. Thank you, Madam President. Madam president i move that we adopt the senate finance and appropriations substitute the question is

[03:36:38] shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion we'll say aye aye those opposed no the substitute the eyes have it the substitute is agreed to page 29 senate bill 497 reported from the committee on commerce and labor with the substitute the senator from loudon madam president i move the substitute from the committee on commerce and labor be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion we'll say aye any opposed no the eyes have it the

[03:37:13] substitute is agreed to page 30 senate bill 524 reported from the committee on education and health with the substitute and from the committee on finance and appropriations with the substitute the senator from charlottesville i move the substitute from the committee on education health Senator, I think we need to reject the substitute from the Committee on Education and Health.

[03:37:43] I apologize, with a recommendation that the substitute from the Committee on Education and Health be rejected, I move that it be adopted. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Education and Health be agreed to?

[03:38:04] All in favor of that motion, we'll say aye. Those opposed, no. Aye. The no's have it. The substitute is rejected. Senator from Charlottesville. I now move the committee, move adoption of the committee, substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Page 30, Senate Bill 540, reported from the

[03:38:39] Committee for Courts of Justice. Page 31, Senate Bill 555, reported from the Committee on Education and Health with the substitute and from the Committee on Finance and Appropriations. The Senator from Colonial Heights. Madam President, I move that the Committee substitute from Education and Health be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye.

[03:39:08] those opposed no the eyes have it the substitute is agreed to page 31 Senate bill 556 reported from the committee on rehabilitation and social services with an amendment the senior senator from Loudoun thank you madam president madam president I move the amendments from the committee on

rehabilitation social services the question is shall the amendment from the committee on rehabilitation and social services be agreed to all in favor of that motion

[03:39:42] will say aye. Those opposed, no. The amendment is agreed to. Page 32, Senate Bill 559, reported from the Committee for Courts of Justice. Page 32, Senate Bill 564, reported from the Committee on Rehabilitation and Social Services with a substitute, and from the Committee on Finance and Appropriations with an amendment. The Senator from Colonial Heights. Madam President, Madam President, I move that the Committee Substitute from Rehabilitation and Social Services be agreed to.

[03:40:17] The question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Colonial Heights. Madam President, I move that the Committee Amendment from Finance and Appropriations be agreed to.

[03:40:37] The question is, shall the amendment from the Committee on Finance and Appropriations be agreed to? in favor of that motion will say aye those opposed no the ayes have it this amendment is agreed to page 33 Senate bill 568 reported from the committee on education and health with the substitute the senator from Colonial Heights madam president I move the committee substitute from education and health the question is shall the substitute from the committee on education and health be

[03:41:12] agreed to all in favor of that motion will say aye those opposed no the Ayes have it. The substitute is agreed to. Page 33, Senate Bill 574, reported from the Committee on General Laws and Technology. Page 33, Senate Bill 580, reported from the Committee on Education and Health with amendments. The Senator from Lynchburg. Yes, Madam President, I move the Committee amendments from the Ed and Health. The question is, shall the amendments from the Committee on Education and Health be agreed to? All in favor of that motion will say aye.

[03:41:49] any opposed no the ayes have it the amendments are agreed to page 34 senate bill 594 reported from the committee on commerce and labor with a substitute the senior senator from virginia beach wasn't me yet the senior senator from virginia beach thank you madam president madam president i move the committee on commerce and labor substitute the question is shall the substitute

[03:42:24] from the committee on commerce and labor be agreed to all in favor of that motion we'll say aye Any opposed, no. The ayes have it. The substitute is agreed to. Page 34, Senate Bill 602, reported from the Committee for Courts of Justice.

[03:42:42] Page 34, Senate Bill 603, reported from the Committee on Education and Health. Page 35, Senate Bill 635, reported from the Committee on Finance and Appropriations with the substitute.

[03:42:58] The Senator from Hanover. Thank you, Madam President. Madam President, I move the committee substitute from finance be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The few ayes have it.

[03:43:18] The substitute is agreed to. Page 35, Senate Bill 729, reported from the Committee on Finance and Appropriations. Page 36, Senate Bill 735, reported from the Committee on Rehabilitation and social services with the substitute the senator from york madam president i move that the committee substitute be agreed to the question is shall the substitute from the committee on rehabilitation and social services be agreed to all in favor of that motion will say aye

[03:43:53] those opposed no the ayes have it the substitute is agreed to page 36 senate bill 736 reported from the committee on finance and appropriations with the substitute the senator from taswell madam president i move the committee substitute be agreed to the question is shall the substitute from the committee on finance and appropriations be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to page 37 senate bill 748 reported from the committee for courts of justice with amendments the senator from hampton thank you

[03:44:32] madam president i move the committee amendments be agreed to the question is shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye those opposed no the ayes have it the amendments are agreed to page 37 senate bill 779 reported from the committee for courts of justice with amendments the senator from rockingham not impressed i move the committee amendments the question is shall the amendments from the committee for courts of justice be agreed to all in favor of that motion will say aye

[03:45:07] those opposed no the ayes have it the amendments are agreed to page 38 not one page 39 senate bill 813 reported from the committee on finance from the committee on education and health with the substitute and from the committee on finance and appropriations with the substitute the senator from portsmouth thank you madam president madam president i move that the substitute from the committee on education and health be agreed to the question is shall the i'm sorry yes senator

[03:45:44] we must first reject the senate the education and health substitute madam president with the recommendation that it be rejected i move that the committee substitute be agreed to with the recommendation that it be rejected the question is shall the substitute from the committee on education and health be agreed to all in favor of that motion will say aye those opposed no no The noes have it. The substitute is rejected. Senator from Portsmouth.

[03:46:15] Thank you, Madam President. Madam President, I move that the committee substitute from the Senate from Finance and Appropriations Committee be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Page 39, Senate Bill 815, reported from the Committee on Education and Health.

[03:46:42] page 39 senate bill 816 reported from the committee on general laws and technology page 40 senate bill 817 reported from the committee on education and health with a substitute the senator from roanoke thank you madam president i move that the senate adopt the committee substitute from education and health for senate bill 817. the question is shall the substitute from the committee on education and health be agreed to. All in favor of that motion

[03:47:20] will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from, I'm sorry. Page 40, Senate Bill 818, reported from the committee on commerce and labor with a substitute. The senator from Roanoke. Thank you Madam President. I move that the Senate adopt the commerce and labor committee substitute the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion will say aye aye those

[03:47:53] opposed no the ayes have it the substitute is agreed to page 40 senate bill 820 reported from the committee on education and health page 41 senate bill 822 reported from the committee on education and health page 41 senate bill 824 reported from the committee on education and health the question is shall

the Senate bills now be engrossed and advanced to their third reading all in favor of that motion will say aye

[03:48:28] those opposed no the ayes have it the bills are engrossed and advanced to their third reading the chair recognizes the senator from Eastern Fairfax Madam President I move that all the Senate bills now on third reading on the uncontested counters pages 21 through 41 Senate bills 620 through 824 that the rules be suspended and the third constitutional reading of the titles be dispensed with the question is shall the rules be the suspended and the third reading of the titles of the bills be dispensed with all in favor of that motion will record their votes aye those opposed no are the senators ready

[03:49:05] to vote have all the senators voted do any senators desire to change their vote The clerk will close the roll. Ayes 39, no 0. Ayes 39, no 0. The reading of the titles is dispensed with.

[03:49:22] The bills are now before the Senate on their final passage. The Senator from Eastern Fairfax. Madam President, I move that all of the Senate bill is now on third reading on contested calendar. Pages 21 through 41, Senate Bill 620 through 824 be placed on their final passage in a block. Any Senators that already move the bill from the block should do so after the clerk has read the number of the bill.

[03:49:42] The question is, shall the Senate bills on the uncontested calendar, third reading, pages 21 through 41, Senate Bill 620 through Senate Bill 824 now be placed upon their final passage in the block with the understanding that any senator desiring to remove a bill from the block will do so after the clerk has read the number of the bill.

[03:50:03] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The motion is agreed to. The bills are now before us in the block. The clerk will read the number of the bills.

[03:50:16] Senate Bill 620, Senate Bill 73, Senate Bill 132, Senate Bill 233, Senate Bill 245, Senate Bill 260, Senate Bill 267, Senate Bill 270, Senate Bill 299, Senate Bill 310.

[03:50:45] Madam President. Senator from Western. Prince William. Madam President, may SB 310 please come out of the block. Without objection, Senate Bill 310 on page 25 is out of the block. Senate Bill 329, Senate Bill 374, Senate Bill 394.

[03:51:10] Madam President. Senator from Western Prince William. Madam President, SB 394, please come out of the block. Without objection, Senate Bill 394 is out of the block. Senate Bill 394, Senate Bill 401, Senate Bill 405.

[03:51:32] Senate Bill 409, Senate Bill 423, Senate Bill 490, Senate Bill 497, Senate Bill 524, Senate Bill 540, Senate Bill 555, Senate Bill 556, Senate Bill 559, Senate Bill 564, Senate Bill 568,

[03:52:11] Senate Bill 574, Senate Bill 580, Senate Bill 594, Senate Bill 602, Senate Bill 603, Senate Bill 635, Senate Bill 729, Senate Bill 735, Senate Bill 736, Senate Bill 748, Senate Bill 779, Senate Bill 813,

[03:52:48] Senate Bill 815, Senate Bill 816, Senate Bill 817, Senate Bill 818, Senate Bill 820, Senate Bill 822, Senate Bill 824.

[03:53:05] The question is, shall the bills in the block pass, that is, all bills except for Senate Bill 310 on page 25 and Senate Bill 394 on page 27?

[03:53:28] All in favor of the passage of the bills will record their votes aye, those opposed no, are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[03:53:45] The clerk will close the roll. Ayes 39, noes 0. Ayes 39, noes 0. The bills in the block pass. Returning to page 20, Senate Bill 807.

[03:54:06] Sorry, page 25.

[03:54:24] Okay, I was in the wrong category. Page 25, Senate Bill 310.

[03:54:43] Senator from Tazewell. Thank you, Madam President. Speaking to Senate Bill 310 and moving its passage. The senator has the floor. Senate Bill 310 provides a framework for the CPCN decisions and an element of certainty to the process. This framework and certainty is necessary for economic investments and development of infrastructure to meet Virginia's growing energy needs. Basically what this bill just puts a shot clock for the

[03:55:16] CPCN to to get these either approved or denied. It does not guarantee approvals of application it just guarantees a review and the determination of transmission applications there is parts of the commonwealth in southwest virginia been one of them that is looking for economic investments and when we have opportunities for these type of projects to go in southwest virginia we would like for them to be reviewed in a timely matter and without this they can drag that process out and of course investors can go to other states and so with that

[03:55:57] explanation i move the bill's passage the question is shall senate bill 310 on page 25 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll Ayes 36, Nose 3, Senate Bill 310 passes.

[03:56:29] 27, Senate Bill 394. The Senator from Western Fairfax. Madam President, I move the bill pass in speaking to that.

[03:56:45] The Senator has the floor. Madam President, this bill has two parts. The first part directs the Board of Education in consultation with the VDOE and other stakeholders to publish guidance for the safe, ethical, and equitable use of AI in instructional settings in public schools with a particular focus on protecting and addressing privacy concerns of our students and it requires that the guidance ensures student data privacy so that AI tools are not using student data to train external AI models and that AI models allow teachers

[03:57:23] to monitor student use. The second part of this bill establishes the AI Innovation and Education pilot program that will allow whatever funds are available to be distributed to schools who need help with some of these programs because the reality is AI is in our schools right now.

[03:57:47] There are no guidelines, no guardrails around it. are ways that it can be used particularly helping our teachers with their lesson planning and monitoring of student progress and we need this legislation in place so with that i move the bill the question is shall senate bill 394 on page 27 pass all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any

[03:58:22] senators desire to change their vote. The clerk will close the roll. Ayes 38, noes 1. Ayes 38, noes 1. Senate Bill 394 passes. Returning to page 20, Senate Bill 807.

[03:58:46] The senator from King George. Can I go by for the day? Without objection, Senate Bill 807 goes by for the day. Senator from Eastern Fairfax. Madam President, we've been at it for what three and a half

hours now, so I would ask that we stand in recess for 15 minutes

[03:59:22] so folks can powder their nose and figure out what they're doing on second read, regular. And upon recess, the Democrats could meet back here in the closet, I'd appreciate that. The Senate stands in recess for 15 minutes, Senator from Hanover.

[03:59:43] Republicans could venture downstairs before powdering their nose. We greatly

[03:59:49] appreciate it. The Senate will be in recess. I'll return to order. Go. Regular

[04:28:17] calendar, Senate bills on second reading. Senate Bill 15, a bill relating to driver improvement clinics, motorcycle driver improvement clinics, motorcycle driver improvement clinic fund created, reported from the Committee on Finance and and appropriations with the substitute the senator from roanoke madame president i'd

[04:28:44] ask the bill go by for the day with without objection senate bill 15 goes by for the day senate bill 783 a bill relating to law enforcement agencies or localities agreements from federal with federal authority for certain immigration enforcement's limitations collection of data

[04:29:14] Reported from the committee for courts of justice with a substitute there are and from finance and appropriations with the substitute and there are Floor amendments the senator from Central Fairfax Thank you madam president madam president with the recommendation that the substitute From the committee of courts of justice be rejected. I move that the substitute be agreed to With the recommendation that it be rejected, the question is,

[04:29:52] shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. No. The noes have it. The substitute is rejected. Senator from Central Fairfax. Thank you, Madam President.

[04:30:08] Madam President, I move that the substitute from the Committee of Finance and Appropriations be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[04:30:27] Madam President, I move that the reading of the floor amendments be waived. Senator, let's take the floor amendments in order. the the first set of amendments are introduced by the senior senator from Henrico. Yes thank you. The senior senator from Henrico. Madam President I move the floor amendment waive reading of the floor. The question is shall the reading of the

[04:31:04] floor amendment number one proposed by the senior senator from Henrico be waived. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The reading of the floor amendment is waived. Senior Senator from Henrico. Thank you, Madam President. Madam President, this amendment prevents federal agents during the time the polls open an hour before and hour after they are closed, shall not conduct any immigration enforcement

[04:31:40] activity within 500 yards of the polling place. And that is what the floor amendment does. The question is, shall the floor amendment number one, the Bagby amendments, be agreed to? All in favor of that motion, we'll say aye. Those opposed no seeing seeing a number of hands this will be a recorded vote the question is shall the floor amendments introduced by the senior senator of

[04:32:20] Henrico be agreed to all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senator's desire to change their vote. The clerk will close the roll. Ayes 20, noes 19. Ayes 20, noes 19. The floor amendments by the senior senator of Henrico are agreed to. The senator from Eastern Henrico. Thank you madam president.

[04:32:55] I move the reading of the floor amendment. The question is, shall the reading of the floor amendment number two introduced by the senator from Eastern Henrico be waived. All in favor of that motion will say aye. Those opposed, no. The reading of the floor amendment number two is waived. Senator from Henrico. Thank you, Madam President. I move the floor amendment and speak into that motion. The senator has the floor. Thank you, Madam President. In a recent annual report by Homeland security it was revealed that ICE is using a expanded version of several

[04:33:34] surveillance technology tools and so this floor amendment would prohibit ICE from surveilling residents of the Commonwealth and we explicitly list out the types of banned technologies that we prohibit their use by but further we do allow for I do allow for an exception for the most egregious crimes as noted in those specific sections regarding unlawful individuals who've been convicted of those violent crimes. And so with this, I hope we can pass the floor amendment again.

[04:34:04] The Senator from Rockingham. Madam President, where I speak to the floor amendment. The Senator has the floor. Madam President, you know, it's real popular to bash ICE these days, and I get that.

[04:34:19] And I understand that there have been controversial actions, but the impact of this amendment is much more far-reaching, I believe, than even the patron may be, maybe, intends.

[04:34:38] ICE does a lot more than simply enforce immigration laws. It does a lot more than secure our borders. ICE has a statutory obligation to actively participate in drug trafficking enforcement.

[04:34:55] It has a statutory obligation to participate in the interdiction of human trafficking and child exploitation. It is actively engaged in the investigation of financial crimes and money laundering.

[04:35:14] It has the responsibility for investigating and interdicting cybercrime, intellectual property theft, and weapons and export violations. And I really seriously question whether we really want to prohibit ICE from engaging in surveillance activities with respect to the wide range of activities that ICE actually does engage in beyond immigration.

[04:35:50] It is engaged in the investigation and prevention of transnational organized crime, cultural property and antiquities theft. This is much more far-reaching than simply attacking what's going on in other parts of the country and is calculated to have wide-reaching effects well beyond those polarizing activities that ICE has been engaged in.

[04:36:22] And as a consequence, I would respectfully hope that my colleagues would vote against this floor amendment. chair recognizes the senator from Eastern Fairfax. Thank you Madam President speaking to the motion. The senator has the floor. Thank you Madam President. You know this this amendment I think the others are not focused on drug interdiction or human trafficking and I would submit that if ICE had not doubled their force to 22,000 people over the last year and turned into the president's

[04:37:01] you know, personal enforcement agency going into people's homes without warrants, doing just mass arrests, doing racial profiling, I don't think you'd be seeing these types of amendments.

[04:37:16] But the reality is, is that ICE has been totally and completely out of control, unbound by any kind of law or constitutional restrictions whatsoever. And they need to stay in their lane, and I'm sure the DEA and the FBI are perfectly good enforcing our drug laws or dealing with human trafficking or looking at money laundering or or crime it would strike me that that that is that those kinds of things are outside of ice's lane and the last thing that I think ice needs to be able to do their job right now which is immigration enforcement is having doing

[04:37:55] mobile phone surveillance using drones using surveillance technology using facial recognition and all kinds of other things to basically go way beyond what President Trump said he was going to do. Remember when he ran for office, he said he was going to focus on going after violent criminals. And it turns out that the vast bulk of people they've been going after don't have any kind of violent crime history or violent crime convictions or violent crimes pending. People that are just out living their lives and doing their jobs. And they're using

[04:38:30] these kinds of technologies to track people down and round them up and then that's not what people voted for and that's why you've seen approval for ICE go underwater in the last six months is because these federal abuses and so if any Virginia law enforcement agencies want to partner with ICE then ICE needs to live by Virginia rules and that's what these amendments say and I think most Virginians would agree with that they don't want some extra legal constitutionally you know legally unbound organization running around, running into their home, or tracking people down without following the Constitution of the law. And I

[04:39:08] would hope we would support the amendment. The Senator from King George. Thank you, Madam President. Speaking to the amendment. The Senator has the floor. Madam President, I am the first one to admit that I don't want any government surveilling me and but this has really far-reaching effects and even if assuming everything that the senator from Eastern Fairfax said was true if I

[04:39:44] read this correctly this would stop law enforcement ice homeland security of which they are a division of from stopping a terrorist attack on citizens of Virginia.

[04:40:00] They would not be able to use any of these methods, even if they knew that there was a serious terrorist attack that was about to happen at a specific site in Virginia.

[04:40:16] They would be forbidden from using any of these technologies. And I would submit to you that you're probably going to need to use all these technologies to stop a terrorist attack. So while you want to bring fairness and warrants and things like that, and I get it, to the mission of ICE, I think this one's going to go way too far, and we may live to regret this.

[04:40:47] The chair recognizes the senator from Western, Prince William. Thank you, Madam President, Madam President, speaking to you in a moment. Senator has the floor. Madam President, I couldn't help but notice one of the comments that was made earlier about that this was happening in other places across the country. I want to tell you a story from what happened in my district, in western Prince William County, my hometown Manassas.

[04:41:07] Headline from NBC Washington: "Just Following Hispanic People: Citizen Detained by ICE Questions Vote for Trump" Subhead: Manassas' man said he was pulled over on his way to work by agents looking for another man. This was a story that was reported March 6, 2025. I'll get to the bulk of this: "When my constituent said he was driving to work Wednesday with two other men when he was stopped

by ICE agents on Loman Drive in Manassas, a short distance from his home. He said he was confused by what was happening, why agents surrounded the pickup truck. Quote, and they just got out of the car with the guns in their hands and say, turn off

[04:41:40] the car, give me the keys, open the window. You know, he said, everything was really fast. He said the agents said the name of a man they were seeking for deportation order, someone who had given this man's home address. This man told them that wasn't his name. He didn't know anyone by that name and offered to show them his real ID compliant Virginia license quote they didn't ask me for any ID I was telling the officer if I can give him ID but he just kept my hands up not moving after that he told me to get out of the car and put the handcuffs on me and then he went to me and said how did I get

[04:42:18] into this country and if I was waiting for a court date or if I had any case And I told him I was an American citizen, and he looked at his other partner like, you know, smiling. Like saying, can you believe this guy? Because he asked the other guy, quote, do you believe him?

[04:42:35] My constituent said he was uncuffed and immediately released after showing his driver's license, and the two men who were with him were taken into custody, and he didn't know why. My constituent then said the experience shook his faith in the immigration enforcement efforts of the president for whom he voted.

[04:42:51] Quote, because like I said before, I was a Trump supporter, he said, I voted for Trump the last election, but because I thought it was going to be the things, you know, like just going against criminals, not every Hispanic looking like that they will assume that we were all illegals. Quote, that's what they're doing now. They're just following Hispanic people. That's how one of my constituents who had a gun drawn on him by people under the current laws that we have, that was his experience. That should never happen to an American citizen anywhere in any of our districts. How was that justified? There's got to be accountability for stuff like this. That was

[04:43:28] not okay and it should have never have been okay. Thank you, Madam President. The Senator from Bhattata. Thank you, Madam President. I don't know, I've got a question. I don't know exactly who to direct it to, so I will, absent anyone else, I will address this, if you will, to the who's looking at his phone, the Senator from Rockingham, if he might be willing to rise for a question. Will the Senator from Rockingham yield for a question? I yield. Senator from Bottington. Thank you, Madam President. And this is, anyone else that knows this can feel free to

[04:44:07] weigh in on this, because I don't discount any of what has been shared about overstepping of authority on that. My question is just, do we have the authority to do this? Because I'm not an attorney I my limited understanding of these things I thought that a state couldn't directly prohibit a federal agency like ice from carrying out a federally authorized function and you can you can prohibit our our organizations from assisting with that but I didn't know that we could that we could prohibit

[04:44:45] them and have that be valid and I'm just wondering if the senator might be able to clarify that or help me better understand how we would go about doing this. The Senator from Rockingham. Madam President, I looked at this bill I think on Friday and my recollection without looking at it is these are conditions for any cooperation between ICE and agencies in Virginia and that this restricts the things that immigration customs can do under any

[04:45:21] agreement or cooperative effort with with ICE but the point is that even even assuming that the actions in connection with immigration that my friend from Western Fairfax or my friend from Eastern or Western Prince William or Eastern Fairfax submit are the focus of this those are immigration functions and And the point is that ICE, it's immigration and customs, and it is actively engaged in many other functions.

[04:46:00] So if the point of this is to put a fine point on the immigration issue that my friends on the other side seem especially fixated upon, this doesn't do that. This interferes with the ability of ICE to keep our state, our localities, and our country safe.

[04:46:25] It would be easy to limit it to simply immigration actions, and frankly, just modifying the first sentence would have done that. But this is clear that it's a messaging amendment, one that is attempted to politicize ICE no matter what it's doing in whatever capacity, whether it's keeping our community safe, whether it's fighting international terrorism or cyber crimes or transnational organized crime.

[04:47:01] It is interfering with our ability to cooperate on those fronts as well. I thank the senator. The senator from Eastern Fairfax. Thank you, Madam President, to speak of the amendment. The senator has the floor. Thank you, Madam President.

[04:47:18] There's nothing unconstitutional or illegal or wrong about the bill. What it basically says is that if any constitutional officer or local government wants to enter into a 287G agreement, they can only do so if ICE will agree to do certain things in return.

[04:47:33] So it restricts Virginia law enforcement. And just for the record, Madam President, I want to note that WRIC just reported recently that of all the 6,600 people that were arrested by ICE in Virginia, 74 percent had no criminal conviction, and only 25 percent had ever been convicted of any kind of crime.

[04:47:56] ICE has been picking up people in Virginia well in excess of what was promised, and these amendments are needed if they're going to operate in Virginia to rein them in.

[04:48:10] The question is? Madam President. Senator from Eastern Henrico. If no one else wishes to speak to the floor amendment. Senator has the floor. Thank you, Madam President. I just want to point out to clarify some of the missed things that have been stated. First and foremost, our obligation is to Virginians. So this isn't about fear mongering. This isn't about incidents that have occurred in other places. This is specifically about Virginians. And so I want to clarify that this does not prohibit ICE working with any other agencies to conduct investigations uh as referenced earlier in

[04:48:47] some of the other comments furthermore i want to point out the last three lines of this amendment that says this prohibition shall not apply to the use of surveillance technology to investigate detain or arrest any person who was not lawfully present in the united states and so as it pertains through other investigations that need to occur regarding some of the most egregious incidents like some of the examples that have been given this prohibition does not prevent that from continuing to occur we're very deliberate

[04:49:22] in structuring this and ultimately again this is about making sure that when ice is coming into contact with Virginians that we have guardrails and that we have structure to how that interaction occurs because the the idea that this is going and to have far-reaching impact.

[04:49:40] The far-reaching impact that is happening right now is ICE's unchecked, unlimited power, generally speaking, and in the use of this surveillance technology. So I would again say that this is not about messaging, it's not about politicizing ICE, but it is about protecting Virginians and making sure that we're putting Virginians first and their interactions with this unchecked federal agency.

[04:50:05] And so I will move that we pass these four amendments. The question is, shall the floor amendments number two introduced by the senator from Eastern Henrico Pass? All in favor of that motion will say aye.

[04:50:24] Those opposed, no. Seeing eight hands, this will be a recorded vote. All in favor of agreeing to the motion will record their votes, aye.

[04:50:40] Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll. Ayes 20, noes 19. Ayes 20, noes 19.

[04:50:57] Floor amendments number two are agreed to. The chair recognizes the senator from Central Fairfax. Thank you, Madam President. I move the reading of the amendment number three be waived.

[04:51:17] The question is, shall the reading of floor amendment Number three, introduced by the Senator from Central Fairfax, be waived. All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The reading of the floor amendment is waived.

[04:51:33] Senator from Fairfax. Thank you, Madam President. I move that the amendment be agreed to and speaking to that motion. The Senator has the floor. Thank you, Madam President. The amendment number three is really that no federal agent shall enter into someone's home without a judicial warrant.

[04:51:50] um a recent memo that came out where ICE agents were instructed that they can forcibly fully enter someone's home without a judicial warrant we are simply saying if they would like to do business with us uh that at 2 a.m they cannot enter into anyone's house unless there's a there's a reasonable uh warrant um and the way ICE has been acting this does not make our community safe this does not make our country safe and this does not make Virginians feel safe in their own home and I hope that the whole chamber would agree that you

[04:52:26] don't want somebody randomly without identification or without any type of reasoning to just come into your house in the middle of the night the senator from King George thank you madam president with the senator from Central Fairfax. Nor, which one is it? Fairfax. I agree with the Senator, Madam President, on this one, except... Senator? I'm sorry. Are you asking a question?

[04:52:58] I am. Yield for a question. Will you yield? I yield for a question. The Senator has the floor. I agree with the gentleman on this issue. I don't think anybody should enter anybody's home without a warrant, but I would ask the Senator, is he aware of a principle under the law called exigent circumstances and what What that principle says is if there is something happening in there such that people are, their lives are at risk or something like that, then officers are entitled to come in under what's known as exigent circumstances.

[04:53:36] Did he intend to preclude those circumstances where those officers would be coming in to try to save somebody's life? Senator from Fairfax. To answer the gentleman from King George's, the amendment specifically says for the purpose of conducting any immigration enforcement activity, and that is exactly what we're dealing with.

[04:53:56] Anything outside of that, we're not dealing with that here. Madam President. Senator from King George. Then will the gentleman yield for? Will the gentleman yield for another question? I will yield for another question. Senator from King George.

[04:54:12] So then I would, I guess I would ask, does the Senator believe that we still have the principle of exigent circumstances under this, because I'm concerned that we do not? Senator from Central Fairfax. Thank you, Madam President. I, you know, I believe we still do, based on how this amendment was written, it is specifically to any immigration enforcement activities.

[04:54:36] Thank you, Madam President. The question is, shall the floor amendments number three introduced by the Senator from Central Fairfax be agreed to. All in favor of that motion will say aye. Those opposed, no.

[04:54:56] The ayes have it. The amendments are agreed to. Seeing eight hands, this will be a recorded vote. All in favor of agreeing to the motion will record their votes, aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote?

[04:55:21] the clerk will close the roll ayes 33 noes 6 eyes 33 noes 6 the floor amendments number three are agreed to the senator from hampton thank you madam president i move that we waive the reading of floor amendment number four the question is shall the reading of floor amendment number four introduced by the senator from hampton be waived all in favor of that motion will say aye those opposed no the eyes have it the reading is waived senator from hampton thank you madam

[04:56:01] president i move that we agree to the amendment and speaking to that the senator has the floor thank you madam president amendment number four states that uh the this amendment adds uh a provision to any 287g agreement requiring that ice agents conducting immigration enforcement in virginia must comply with the laws that we passed in 2020 regarding law enforcement use of force uh and additionally madam president in 2020 this body enacted chapter 7.1 in the wake of the murder of george floyd that law represents the general assembly's considered judgment about

[04:56:38] the minimum standards of conduct we expect from anyone making an arrest or conducting a detention in the commonwealth of virginia it bans chokeholds it restricts firing into moving vehicles it sets clear standards for when deadly force may be used it requires officers to intervene when they witness excessive force and it imposes real penalties including felony charges for violate for violations and with that explanation uh madam president i move that we adopt the amendment the chair recognizes the senator from eastern fairfax thank you madam president speaking of the motion the senator has the floor thank you madam president i want to thank the senator from

[04:57:18] Hampton for introducing this amendment and reminding everybody of the work that we did in 2020 to codify best practices for law enforcement. I want to make sure that everybody understands if they choose to vote against this, what they're voting against. In 2020 we put in Virginia law that law enforcement is prohibited from using neck restraints. If you think it's okay for ICE to do a chokehold that's illegal under Virginia law, then you can vote against this. We also prohibited by statute with the support of Virginia law enforcement that

[04:57:55] it is illegal in Virginia to shoot a gun into a moving motor vehicle even if it has a poet in it that is illegal under Virginia law that's law enforcement best practice and that's what the statute says we also codified use of force rules about when you can use deadly force the circumstance upon which you have to

give a warning before you use deadly force at the time we didn't think to say you can pull a gun off somebody and then shoot them but nobody

[04:58:30] ever thought that would ever happen but we do have in code the circumstances under which an officer can use deadly force if you don't think that ice officers should be restricted the way Virginia law enforcement officers are when they use deadly force you can vote against this amendment given the things that we've seen going on in Minnesota and around the country there are 32 ice custodial deaths this year, the highest we've ever seen in America? Do you think those kinds of things are okay? Go ahead and vote against this. Madam President, I would hope we could all agree that if we're gonna work with ICE,

[04:59:09] if anybody wants to work with ICE, that ICE will agree to follow Virginia laws when it comes to how police are to interact with their citizens and when they want to use force. The question is, shall the floor amendment number four be agreed to. All in favor of that motion will say aye. Those opposed no. Seeing at least eight hands, this will be a recorded vote. All in favor of agreeing to the floor amendment will record their votes aye. Those opposed no. Are the

[04:59:48] senators ready to vote? Have all the senators voted? Do any senators desire to change their vote. The clerk will close the roll. Ayes 36, Noes 3. Ayes 36, Noes 3. Floor Amendments number 4 are agreed to. The Senator, the Senior Senator from Loudoun. Thank you Madam President.

[05:00:25] Madam President, I move the reading of the floor amendment and speaking to that move i'm sorry wave wave reading of the floor amendment the question is shall the reading of the floor amendment number five introduced by the senior senator from loud and be waived all in favor of that motion will say aye those opposed no the eyes have it the reading is waived senator from loudon madam president just uh speaking to the floor amendment

[05:01:01] um madam president this is senator do you move that they'd be agreed to uh yes madam president i move it be agreed to the senator has the floor thank you madam president madam president speaking to that um this this floor amendment is um something that traditionally happened um whenever there were multi jurisdictions involved and um something like a shooting occurred traditionally what would happen um when i was a local prosecutor we would work very closely and very intimately with federal authorities and traditionally when there was a shooting of some type the locals would be there they would investigate the federal

[05:01:40] authorities would be there they would investigate they would cooperate they would share information they would secure crime scenes and they would make sure that there was an investigation that was done and madam president I I think that was for several reasons not the least of which that the people who are governed by the government it's important to have the consent of the government of the governed and that includes having transparency around the use of force particularly whenever it's used by someone who holds a badge in a gun and carries the authority of law and of the country or the locality madam

[05:02:18] president madam president what we have seen in Minnesota though with the shooting of Renee good with the shooting of Alex pretty is that when those occurred we saw exactly the opposite we saw that local authorities local law enforcement were shut out of the investigation we saw that a narrative came out that was inconsistent with thankfully some of the people standing around who were able to capture what happened and madam president i read in the new york times um just this morning about eight other shootings by law enforcement

[05:02:53] and we saw in minnesota a federal prosecutor stand up i believe it was yesterday and dismiss a charge because, Madam President, the original stories that they were told by people who carried a badge and a gun and who worked for the United States government were completely inconsistent with the facts of what actually happened.

[05:03:09] Madam President, federal law enforcement, like many other law enforcement, do share some protections because of their job, but contrary to what the Secretary of Homeland Security said, those protections are not absolute. Madam President, in this country, Madam President, we believe that no one is above the law no matter what badge they carry no matter what gun they carry and no matter what uniform they wear so madam president as a prosecutor one of the most important things to ensure that justice is done is that you have access

[05:03:49] to evidence chain of evidence what is there what isn't there madam president so when people are shut out of that process it makes it difficult if not impossible to ever pursue or proceed on a prosecution should one be necessary and it certainly makes it impossible for people to have any kind of confidence that any kind of investigation that was done was thorough or that it came to the right conclusion or the fair and just conclusion so madam president whenever we see people turn other law enforcement away and refuse to allow them to investigate or take a look or see about something that looks like it may be a crime that occurred in their jurisdiction where they are charged with

[05:04:28] investigating crimes and actions that occur in their jurisdiction madam president that looks like a cover-up and madam president i don't think that's something that we should be here in virginia willing to accept so madam president i would say that this particular floor amendment deals with transparency it deals with good governance it deals with understanding that

[05:04:58] we entrust our law enforcement to not only enforce the law but to protect the people who aren't who their safety is entrusted to so madam president i'd ask that the members of this body vote in support of what has been a long ongoing tradition between locals and federals whenever there's something serious like a shooting that occurs and to affirm the no badge is an

[05:05:34] absolute shield nor does it place anyone above the law thank you madam president question is shall floor amendments number five introduced by the senior senator from loudon be agreed to all in favor of that motion will say aye those opposed no there being at least eight hands this will be a recorded vote all in favor of supporting the floor amendments number five will record their

[05:06:11] votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll as 27 knows 12. ayes 27 knows 12 floor amendments number five are agreed to the senator from central fairfax thank you madam president

[05:06:47] i move that the bill be engrossed in advance to its third reading the question is shall senate bill 783 now be engrossed in advance to its third reading all in favor of that motion will say aye those opposed no the ayes have it the bill is engrossed and advanced Senate Bill 121, a bill relating to minimum wage farm laborers and farm employees, temporary foreign workers, reported from the Committee on Commerce and Labor with an amendment and from the Committee on Finance and Appropriations with a substitute.

[05:07:24] The Senator from Eastern Prince William. Madam President, I move that the Commerce and Labor Amendment be rejected. With the recommendation that it be rejected, the question is, Shall the

amendment from the Committee on Commerce and Labor be agreed to?

[05:07:41] All in favor of that motion will say aye. Those opposed, no. The no's have it. The amendment is rejected. Senator from Central, Senior Senator from Loudoun.

[05:08:01] Madam President, I move waiting, I waive the reading of the floor, and I will get it right. The question is, shall the floor amendment for Senate Bill number 121 be waived?

[05:08:16] All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The reading of the floor amendment is waived. Senior Senator from Loudoun. Thank you, Madam President. Madam President, this floor amendment keeps in the work from the senator from eastern Prince William County.

[05:08:37] and it just removes the individuals who are who were previously stricken who are back included in the bill in lines 48 and 49 those are your h2a h2b visas I have a significant portion of my district that has agricultural and farm workers wineries and as part of that madam president many people in my district reach out to me and talked about how these programs are highly regulated at the federal level and provide protections to those individuals and so this bill just keeps those people in in the bill and doesn't doesn't strike

[05:09:14] them out madam president and with that I would move that we agree to the floor amendment floor substitute the question is shall the floor substitute senator from Eastern Fairfax the senator has the floor thank you madam president and first of all I just want to thank the senator from Eastern Prince William County for working on this amendment to this bill. The H-2A, H-2B exemption was something that we put into the minimum wage law back in 2020 when we amended the minimum wage. And that exemption is

[05:09:51] really important to actually not a whole lot of people and businesses on this side. There's a little bit on this side. There's some, for example, in my district, there's some people that lifeguard pools uh some folks in hospitality that um businesses that use this exemption but what i've heard mainly from is the seafood industry on the eastern shore uh perhaps in the northern neck middle peninsulas uh the uh forestry industry out in the valley uh this exemption is really important too and um and also some some of our larger hotels like and i'm sure the i'm not

[05:10:26] supposed to name businesses but big old hotels out in the mountains I think use this program as well and I just want to say that I think it's important for many of these businesses to remain competitive to still have access to this program and to maintain our business environment and our jobs that we have I think maintaining these exemptions are important and so I'd hope we could all support support these this amendment to this bill the senator from Rockingham madam president speaking the amendment senator has the floor appreciate the

[05:11:05] magnanimity of my friend the senator from Eastern Fairfax in giving this due to my part of the state and I guess this side of the aisle but I would also point out that by voting for this we are also bestowing a great benefit to Northern Virginia because the landscaping business is covered under this as well so I would likewise encourage the members to vote for this so that folks in Northern Virginia can have their

[05:11:37] lawns appropriately landscaped by participants in this international program. The question is, shall the floor substitute introduced by the senior senator from Loudoun be agreed to, call in the senator from Prince William.

[05:12:02] Thank you, Madam President. Speaking to the floor, substitute. Senator has the floor. Thank you, Madam President. So I wasn't going to speak on this. I was just going to let this go. But because at the end of the day, you have to have the votes.

[05:12:20] And oftentimes, you don't get everything you want on the first go round. And you have to sometimes just get what you can get come back around and fight another day however i just want to be very clear what we are doing here it is a clear democratic value to ensure that everyone gets paid at least the virginian minimum wage because all work has dignity and we should be ensuring that every person no matter your color your creed your religion where you come from who you love no matter what that you're able to work one job and put food on the table that you're able to provide for your family and so we have

[05:12:55] been very intentional about ensuring that that happens so in 2019 and 2020 we removed a lot of the provisions in the virginian minimum wage it had a lot to do with racism who shine shoes and people who would park cars people who were typically paid less than a minimum wage they were allowed to do that for so long and we know that this is a vetress of jim crow because at the end of the day they were very crystal clear when we did when they did the fair labor standards act that the negro and the white man should not get paid the same and so we're in this space now where

[05:13:34] 93 percent of these migrant seasonal workers are brown three percent are african-american and we are still in a place where we can't come to terms with the fact that we want everyone to get paid the same we have to remember that we have american farm workers but we also have migrant seasonal farm workers the people who come here to pick our fruit to cultivate to harvest to package it all to do the jobs that none of us will do and as a thanks we say to them we're going to give you the bare minimum and treat you less than as a second class person right they're doing the jobs to help feed our families to put food on our table food that they can't even afford that's who we're

[05:14:13] talking about here and so i just want to be very crystal clear especially now during black history month what we're doing we're still saying there are winners and losers some people will get paid what you deserve and others will not so while i do not agree and i want to be very clear on this floor substitute i understand that moving the ball forward is the goal and we're going to live to fight another day and hopefully move to a place where every single person is treated with dignity every person could work one job and put food on the table every single person gets paid the

[05:14:48] virginian minimum wage because that's exactly what you should do that's fair and that's just i ask that the bill be engrossed and i'm sorry we vote and then it'd be engrossed and moved on to surgery we senator we still need to vote on the floor substitute first then i will call on you the question is shall the floor substitute the floor substitute introduced by the senior senator from Loudoun be agreed to. All in favor of that motion will say aye. Those opposed, no. The ayes

[05:15:25] have it. The floor substitute is agreed to. Senator from Eastern, Prince William. Thank you, Madam President. I now move that the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 121 now be engrossed and advanced to its third reading? All in favor of that motion will say aye those opposed no the ayes have it the bill is engrossed and advanced senate bill 644 a bill relating to labor and employment payment of wages minimum wage and overtime wages

[05:16:03] misclassification of workers civil actions reported from the committee on commerce and labor with the substitute and from the committee on finance and appropriations the senator from Eastern Fairfax four minutes the committee substitute the question is shall the substitute from the Committee on

Commerce and Labor be agreed to all in favor of that motion will say aye those opposed no the ayes have it the substitute is agreed to senator from Eastern Fairfax with the way of reading

[05:16:35] of the floor amendment the question the question is shall the reading of the floor amendments be waived all in favor of that motion will say aye those opposed. No, the ayes have it. The reading of the floor amendments is waived. Senator from Eastern Fairfax. Move the floor amendment. Speaking of the motion. Senator has the floor. Thank you, Madam President. Ladies and gentlemen, Senate, this floor amendment amends one small part of this omnibus bill about worker misclassification, minimum wage, prevailing wage, and employee

[05:17:14] retaliation the floor amendment before you simply rewrites the remedies section of the employee retaliation provision there were a couple changes that were requested by the attorney general's office and i believe um dolly as well that would allow them to become parties to an employee retaliation or to bring an employee retaliation action which is what the the first sentence you see says. Secondly, there was some questions about exactly what the burden, what you have to show in

[05:17:48] order to prevail, which is what the first paragraph is about. The next subparagraph, F, I drafted to sort of make it a little clearer about exactly what damages can be sought when one of these actions is brought and exactly who is entitled to injunctive relief and under what circumstances.

[05:18:05] The way the bill was written, it was kind of muddy. And then subsection G clarifies what the statute limitations is and how accrual works accrual is when the statute of limitations starts to run under existing law it's one year that says it's two and says that it starts to run when when the matter is discovered and then the last enactment clause was something that dls told me needed to be added to the bill it was not added during the original process so um but basically this deals with employee retaliation situations that is when employees is ends up being terminated because they reported a violation of state or federal law or a regulation of their employer and the employer

[05:18:43] fires them for that uh or they testify in like an administrative proceeding and are fired for testifying it's those kinds of situations and i would hope we adopt this floor amendment which made i think makes the bill a little clearer which will hopefully avoid some unnecessary litigation because people don't know what it says as britain the question is shall the floor amendments be agreed to. All in favor of that motion will say aye. Those opposed, no. The ayes have it. The floor

[05:19:20] amendments are agreed to. Senator from Eastern Fairfax. Move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 644 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have

[05:19:37] the bill is engrossed and advanced a bill relating to cyber stalking penalty reported from the committee for courts of justice with a substitute and from the committee on finance and appropriation

[05:20:08] and there is a floor substitute the senator from mecklenburg madam president with the recommendation that the substitute from the committee on courts of justice be rejected i move that the substitute be agreed to with the recommendation that it be rejected the question is shall the substitute from the committee for courts of justice be agreed to all in favor of that motion will say aye those opposed no the nos have it the substitute is rejected senator from

[05:20:46] mecklenburg madam president i move reading of the floor substitute wave reading of the substitute the question is shall the reading of the floor substitute now be waived all in favor of that motion

will say aye those those opposed no the eyes have it the reading of the substitute is waived senator from mecklenburg um madam president uh move the floor substitute and speaking to that the senator has the floor um the floor substitute for senate bill 673

[05:21:22] i have worked with a number of senators on this stanley perry carol foy favola my commonwealth attorney the commonwealth attorney association to come to this final version that we hope will in any anybody that i left out please forgive me um we've come to a version that i hope everyone can agree to. We have addressed concern raised in the committee. I know the body will see a path to look favorably on this important bill to protect survivors. The substitute includes amendments

[05:21:58] offered by Senator Carol Foy. We crafted the substitute to treat the first violation as a misdemeanor and a second conviction within five or ten years as a felony. Two communications are separate and distinct, not a continuous set of texts. For example, two communications on separate days with a distinct break between them.

[05:22:19] Additionally, in line 41, we struck the previous language in violation of subsection D of 18.2-60.3. This was holdover language from the violation of a protective order statute and may be read to create a felony for subsequent stalking only in circumstances relating to an order entered under 18.2-60.3D, which is not the intent of the bill.

[05:22:45] I hope it'll be the favor of the body to adopt the floor substitute. The question is, shall the floor substitute for Senate Bill 673 be agreed to?

[05:23:01] All in favor of that motion, we'll say aye. Aye. Any opposed, no. The ayes have it. The substitute is agreed to. Senator from Mecklenburg. Madam President, I move that we engross in advance to the third reading.

[05:23:16] The question is, shall Senate Bill 673 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[05:23:33] Senate Bill 688, a bill relating to campaign finance, campaign contribution limits, contingency, reported for the Committee on Privileges and Elections with an amendment. And there is a floor amendment. Senator from Eastern Fairfax.

[05:23:51] uh thank you madam president i'd move the committee amendment senator do you wish to first reject the committee amendment so we can move to the substitute oh i didn't realize the sub yes with the recognition be rejected i'd move the committee substitute with the recommendation that it be rejected the question is shall the amendment from the committee on privileges and

[05:24:29] elections be agreed to all in favor of that motion will say aye those opposed no no the no's have it the amendment from the committee on privileges and elections is rejected senator from eastern fairfax reading of the committee i'm sorry the floor sub the question is shall the reading of the floor substitute be waived all in favor of that motion will say aye those opposed no the ayes have it the reading is waived senator from fairfax the floor sub to speak of that motion senator has the floor thank you madam president senate uh senate bill 688 is a bill that would

[05:25:07] impose campaign finance contribution limits, but only after the Attorney General has certified that Citizens United is no longer the law of the land. It's a campaign finance trigger law, so to speak, to borrow terminology from the folks that use this method to deal with Roe v. Wade.

[05:25:32] The Senate Privileges and Elections Committee made an amendment to the bill where they added reenactment clause to the the limits on how much you can spend each kind of campaign this floor sub retains that but by making that amendment to the bill and committee it disrupted other parts of the bill which this now clarifies so this now makes clear that the limits should should citizens united

[05:26:06] be repealed would apply to would not apply to a candidate's own committee so you're not restricted on what you can spend if you raise it it also makes clear that the contribution limits apply per year and not per election cycle because there's some ambiguity about what an election cycle is for us because we run once every four years and house one runs once every two and governor's races are every four and so it just has a limit per year of contributions and that's basically what the bill did to clean those things up so that it actually makes some sense given the

[05:26:39] amendments that were made in committee the senator from hanover madame president with the senator yield for question will the senator yield how you senator has the floor madame president maybe i have the wrong substitute but said it was 2 16 at 12 0 9 pm and when it references candidates for statewide office senate or house delegates or any other candidate they all say after it in an election cycle so can you tell me how that is per year versus for senate or governor or

[05:27:16] attorney general not four years well if you look at senator from eastern fairfax thank you man president you look at line 67 through 68 that basically says that code section isn't the law unless it's reenacted by a future general assembly so basically that code section's out and we added annually in um let me see and find it um uh in uh on line 33 where it says a person or committee should not make contributions aggregating more than 2500 annually that used to say per cycle

[05:27:54] and that provision is not subject to reenactment clause so that would actually go in code but not be effective until the attorney general certifies citizens united is not the law of the land anymore madam president would the senator yield for additional questions will the senator yield senator from hanover madame president would the senator show me where a entity like a labor union or private individual could is limited from spending as much as they want in election as long as they're not giving it directly to a candidate or candidate committee senator from

[05:28:34] Fairfax? Madam President, I think under 24.2, 48, 11, which is lines 18 through 20, I think that would limit expenditures or expenditures in a campaign over per year and but again that kind of restriction would only be constitutional if Citizens United were repealed, which is why it's subject to that

[05:29:11] that trigger. Madam President, would the senator yield for additional question? Will the senator yield? Will yield? Senator from Hanover. Madam President, under that language in 18 through 20, is a person or committee or business or entity prohibited from saying, "Senator from Western Fairfax is a horrible person with all the money in the world that they wanted to"? Is there any limit on what they can

[05:29:45] use to talk about that particular thing that happens to be during election year senator from fairfax madam president um would say the senators i think you can say it as much as you want walking around the street or to your friend or whatever but as soon as you do it with money that's when this is implicated and this says you can't spend more than 25 000 per year um in a in a campaign Madam President, would Senator yield for an additional question?

[05:30:23] Will the senator yield? I yield. Senator from Hanover. Madam President, I'd ask the senator if he can show me where you're prohibited for saying that. I understand what the senator is saying, that they

can't be involved in a campaign, they can't maybe tell somebody how to vote, but is there any prohibition on saying somebody's a great person or horrible person with as much money as you want i don't see that in lines 18 through 20. so if the senator could point me where it is senator from fairfax

[05:31:04] madam president what first of all this i don't well it kind of relates to the floor sub changes versus the bill overall but the uh section 24.2 948 11 has to do with aggregate expenditure limits So it limits the amount that an individual or a person, which, of course, could be an incorporated entity, and it also limits what a committee can spend per year on campaigns.

[05:31:37] So it would limit that. Madam President, would the senator yield for one more question? Will the senator yield? I'll yield. Senator from Hanover. Madam President, maybe I'm not asking it the right way, but if it's in a campaign, you're talking about whether to vote for, or get somebody is there any prohibition of just saying positive or negative things about a person if you don't tell people how to vote during that year what's where's the prohibition there

[05:32:09] senator from fairfax um i get what he's saying now madam president so i think you're talking about the kinds of stuff you typically see out of a 501c4 right now um and um i'm not i'm not sure if it would get into that or not the way it's written.

[05:32:29] I think you're talking about expenditures that directly advocate the election or unelection of somebody as opposed to senators really good on an issue or somebody really bad on an issue. I'm not sure it gets into that kind of 501c4 spending the way it's written right now.

[05:32:45] I'd have to go analyze it further. Madam President, speaking to the amendment. The Senator has the floor. Madam President, I think you can tell by some of the questions. Some of this would become law if the AG decided that a condition precedent has been made.

[05:33:02] It's not a condition precedent that says that the case has to be overturned by the United States Supreme Court, but just if there's a determination that there's some thought that it's no longer the law. But even, and I would say more problematic, is the fact it does not prohibit individuals or groups from spending as much money as they want to say an individual is bad on an issue or a bad person or makes bad decisions, it just can't use that same money to say and don't vote for them.

[05:33:37] So Madam President, this is going to set up a system where you won't know necessarily where the money's coming from. So the people against something or the people for something have unlimited amounts that they can spend and maybe not even have to be disclosed, but the candidate is limited in what they can have to respond. It is much better that we have campaign finance laws that say if you're spending the money, everybody knows who it is. You might not like who's spending the money, you might love who's spending the money, but everybody knows. This will set up a

[05:34:14] system where people can be attacked for their views or supported for their views and the public won't even know who they are so madam president this also sets up a time frame that may or may not ever happen we just don't know and some of this law will go into effect some of it won't go into effect it's the supreme court would have to have a different view of what the first amendment to the constitution says and that's you have free speech you might not like that speech you might

[05:34:49] not be the speech you would want presented but people have the right to say it and to set up a campaign finance system that says somebody can say all types of things about you that are good or all types of things about you that are bad but you're limited in how you can respond does not seem to be a way

to create fair transparent and better elections i would hope we would not support the amendment the senator from lynchburg thank you madam president i rise to see if the

[05:35:23] senator from eastern fairfax will rise for a question will the senator yield i yield senator from lynchburg thank you madam president and looking at this bill would this bill apply let's say there was like a special referendum coming up on a constitutional amendment and people were pouring tens and 20 and 30 million dollars from out of state to support that unconstitutional gerrymandering amendment would this bill apply to that senator from fairfax um madam president i i

[05:35:57] i think so um it obviously depends it depends on exactly what the communication was if it says candidates does it it doesn't senator from that's it does it it says candidates it doesn't say anything about issues does it senator from fairfax sorry i'll yield um madam president what it talks about is committees and so if there are committees under and committees are defined under 40 24.2 title 14 24.2 i think or political sorry political party committees and campaign committees

[05:36:33] are defined this talks about committees other than those and there are other kinds of committees that are defined in title title 24.2 which i think some of this would apply to so if it was if you're talking about an expenditure from a committee like that it would be covered if you're talking about a 501c4 i'd have to go research that a little more madam president further question will the senator yield tell you senator from lynchburg it looks like you list the amount for

[05:37:05] candidates statewide senate etc but there is no limited amount set for statewide referendums for instance would the senator agree to that senator from fairfax madam president sort of uh again that that part of the bill is what got the most consternation on the committee because people had a hard time trying to figure out what the right cap was to set for a governor's race a a Senate race, a delegate race, et cetera.

[05:37:35] And that was why the P&E committee threw a reenactment clause on that part of the bill because they didn't feel comfortable with picking the caps. So that part of the bill didn't get any work in committee. It just got effectively taken out. So the reason I had to make these floor amendments, which I think we're debating not the merits of the overall bill, was to make the rest of the bill work because there were some loose ends after you took that out.

[05:38:02] And then Madam President, further question. Will the Senator yield? I yield. Senator from Lynchburg. Thank you, Madam President. Are there penalties or will there be penalties spelled out for violations? Senator from Fairfax.

[05:38:19] The penalties are contained in 24.2, down at the very last article of the title. There's a whole series of penalties for violating 24.2. Some are crimes, some are civil infractions. I thank the gentleman.

[05:38:34] I tried to pull it up, and it wasn't coming up. Thank you. The senator from York. Madam President, will the senator from Eastern Fairfax yield for a question? Will the senator yield?

[05:38:52] I'll yield for answers about my floor substitute. Senator from York. Thank you. Let me phrase it into two questions. The one on lines 46 and 47, you're talking about an election cycle.

[05:39:12] And would you consider an election cycle to be our entire four years? That's the way I interpret it, or is the election cycle, what is the duration of an election cycle? The Senator from Eastern Fairfax.

[05:39:28] And a reminder to all Senators, please direct the questions through the Chair. I don't see those words on lines 46 or 47. 26, 27, Madam Chair. 26, 27, hold on. Again, Madam President, I'll say this again.

[05:39:47] That part of the bill is subject to a reenactment clause, so the committee kind of stopped working on it. after they made those amendments, which is what created the need for the floor sub. And I didn't do any further work on that section either because it's not going to be the law. And so that's why it's inconsistent with the amendments to the part of the bill.

[05:40:06] They're going to become law. No more questions, Madam President. Thank you. Thanks. The Senator from Roanoke. Madam President, I also have a question and would like to ask the Senator from Eastern Fairfax if he'll yield.

[05:40:24] Senator, will you yield? Sure. Thank you for a bill that's not going to become the law for at least a decade. Sure. Thank you, Madam President. As I'm trying to go back and forth between the bill, the substitute, and the current floor amendment and the nature of the substitute, I'm trying to decipher what's the penalty for violation of this.

[05:40:49] Senator from Eastern Fairfax. Madam President, I'd have to go back and look at 24.2. I believe there's some kind of a catch-all for anything that's a violation of 24.2. I know for campaign finance violations, there's civil violations for those.

[05:41:08] I can go and dig that up. I didn't think we're going to be talking about stuff that's not in the bill today, but I can figure it out in about two minutes if you like. Senator from Roanoke. Madam President, ask the Senate for the yield, perhaps for a broader question than that. Will the Senator yield?

[05:41:24] Sure, will yield. Senator from Roanoke. Thank you, Madam President. Ask the Senate from Eastern Fairfax if the penalties are civil or criminal. Senator from Fairfax. Madam President, I think the answer to that is it depends. Sometimes they're civil, sometimes they're criminal, I believe. To what I think I said earlier. Madam President, another question? Will the senator yield?

[05:41:53] Senator from Roanoke. Madam President, I'd ask, are the violations for, are the penalties for violations on exceeding the limits, civil or criminal? Senator from Fairfax. Madam President, I would say I believe they're, I'm looking it up right now um they're under 24.2 953.4 there are penalties for incomplete filings um and uh incomplete general provisions um and there's uh for willful violations it's a class one misdemeanor

[05:42:30] so i would just say that again it depends on the nature of the conduct thank you madam president since no other senators wish to speak senator from eastern fairfax would you like to complete your Sure. No one else decides to speak, speaking to the bill. I didn't realize this little sub was going to create so much conversation, but this is a campaign finance trigger law, just like the trigger law that was a trigger tactic that was used with regard to Roe v. Wade

[05:43:04] becoming constitutional. I want to point out that campaigns, the Senator from Hanover mentioned that campaigns would be restricted on what they can spend. That's not accurate. These amendments specifically allow a candidate's campaign to spend whatever they want, the two campaigns can spend whatever they want. The people spending against them have some restrictions. So people shouldn't be concerned about that. I would hope we could clarify with this floor sub and we'll debate the rest of this tomorrow. The question is, shall the floor substitute for Senate Bill 688 now be agreed to? All in favor of that motion will

[05:43:44] say aye. Those opposed, no. The ayes have it. The floor substitute is agreed to. Senator from Eastern Fairfax. The bill be engrossed in advance to his third reading. The question is, shall Senate Bill 688 now be engrossed in advance to his third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 2, a bill relating to paid family and medical leave insurance

[05:44:18] program, notice requirements, civil action reported from the Committee on Finance and Appropriations with a substitute and there is a floor substitute. Madam President. Senator from Hanover. Madam President, I talked to the senator before she left and advised that in the process of coming through the committee I was trying to ascertain which items applied to state employees versus the private sector and madam president when I asked for that I asked

[05:44:56] for it to be the bill to be fixed so I could see how that language would be but unfortunately when we asked that it got communicated with our others in the nature of substitute as opposed to just me seeing it so I'm gonna withdraw the floor substitute but but we'll talk about those items tomorrow that are different in the bill than what currently applies to state employees.

[05:45:24] Without objection the floor substitute from the floor substitute and then from the senator from Hanover is withdrawn. Senator from Alexandria. First, Madam President, I would move that the substitute from the Committee on Commerce and Labor with the recommendation to be rejected, I'd move that it be agreed to. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion

[05:46:00] will say aye. Those opposed, no. The no's have it. The substitute is rejected. Senator from Alexandria. Now I would move that the substitute from the Committee on Finance and Appropriations be accepted. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to. All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it.

[05:46:25] The substitute is agreed to. Senator from Alexandria. I would now move that SB2 be engrossed in advance to its third reading. The question is, shall Senate Bill 2 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it.

[05:46:42] The bill is engrossed in advance. Senate Bill 21, a bill to direct the office of the Secretary of Public Safety and Homeland Security, and the Office of the Secretary of Health and Human Resources to convene a stakeholder workgroup to submit a plan and recommended timeline for transferring responsibility for the Department of Juvenile Justice.

[05:47:07] Reported from the Committee on Finance and Appropriations. The Senator from Hampton. Thank you, Madam President. I move that the bill be engrossed in advance to his third reading. The question is, shall Senate Bill 21 now be engrossed and advanced to its third reading? All in favor of that motion will say aye.

[05:47:24] Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 72, a bill to reduce heating-related cost of living for low-income residents by requiring certain electric utilities to provide energy efficiency upgrades report, reported from the Committee on Commerce and Labor with a substitute.

[05:47:48] The junior senator from Loudoun. Thank you, Madam President. I move that the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor

be agreed to? All in favor of that motion will say aye. Aye.

[05:48:04] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Loudoun. Madam President, I now move that the bill be engrossed and advanced to its third constitutional reading. The question is, shall Senate Bill 72 now be engrossed and advanced to its third reading?

[05:48:19] all in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 191, a bill relating to railroad safety minimum train crew movement of freight civil penalties reported from the Committee on Commerce and Labor with a substitute.

[05:48:40] The senator from Norfolk. Thank you, Madam President. Madam President, I move that the substitute from Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to. All in favor of that motion will say aye. Aye. Those opposed, no.

[05:48:57] The ayes have it. The substitute is agreed to. Senator from Norfolk. Thank you, Madam President. I move that the bill be engrossed in advance to its third constitutional reading. The question is, shall Senate Bill 191 now be engrossed in advance to its third reading? All in favor of that motion will say aye.

[05:49:13] Those opposed, no. The ayes have it. The bill is engrossed in advance. Senate Bill 199, a bill relating to employment, paid sick leave, civil penalties reported from the Committee on Commerce and Labor with the substitute and from the Committee on Finance and Appropriations with the substitute.

[05:49:36] The Senator from Arlington. Madam President, I move that the substitute from the Committee on Commerce and Labor with the recommendation that it be rejected, I move that that substitute be agreed to. With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[05:49:58] All in favor of that motion will say aye. Those opposed, no. No. The no's have it. The substitute is rejected. Senator from Arlington. Thank you, Madam President. I now move that the substitute from the Committee on Finance and Appropriations be agreed to.

[05:50:15] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion, we'll say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Arlington. Thank you, Madam President. I move that the bill be engrossed in advance to its third reading.

[05:50:33] The question is, shall Senate Bill 199 now be engrossed in advance to its third reading? All in favor of that motion, we'll say aye. Those opposed, no. The ayes have it. The bill is engrossed in advance.

[05:50:49] bill 200 a bill relating to board of education standards of learning assessments and related assessment methods development administration scoring and release reported from the committee on education and health with the substitute and from the committee on finance and appropriations with an amendment the senator from Western Henrico thank you madam president man president move the education and health substitute the question is shall the substitute from the Committee on Education and Health be agreed to. All in favor of that motion will say aye. Aye. Those opposed say no. The ayes have it. The

[05:51:29] substitute is agreed to. Senator from Henrico. Thank you, Madam President. Madam President, members of the body, now I move the amendment from Senate Finance and Appropriations. The question is, shall the amendment from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye.

[05:51:46] aye aye those opposed no the ayes have it the amendment is agreed to senator from henrico thank you my president madam president i move the bill be engrossed and advanced to its third reading the question is shall senate bill 200 now be engrossed and advanced to its third reading all in favor of that motion will say aye aye those opposed no the ayes have it the bill is engrossed and advanced senate bill 209 a bill relating to conditional release of geriatric prisoners reported from the committee on rehabilitation and social services and there is a floor substitute

[05:52:24] the senior senator from virginia beach madam president i um move that the reading of the floor substitute be waived the question is shall the reading of the floor substitute be waived all in favor of that motion will say aye those opposed no the ayes have it the reading is waived senator from Virginia Beach. Madam President, I move the floor substitute. Speaking to that. The Senator has the floor. Madam President, I want to first thank the Senator from Richmond City for working

[05:53:01] on me with me to tighten up some of the crimes on this geriatric release program and truly thanking him because as we sat down and went through the details of this from 18 to 46 to um you know 18 to 41 we looked at things that truly should not have been included in that so we spent some time on this and went through it and i really appreciated that and uh with that madam president i move that we uh accept the floor substitute the question is shall the floor substitute be agreed to all in

[05:53:41] favor of that motion will say aye those opposed no the eyes have it the floor substitute is agreed to senator from Virginia Beach thank you madam president I move that we engrossed in advance this bill to its third and third constitutional reading the question is shall Senate bill 209 now be engrossed in advance to his third reading all in favor of that motion will say aye those opposed no the ayes have it the bill is engrossed and advanced Senate bill 220 a

[05:54:13] A bill relating to high school student-athletes eligibility enrollment reported from the Committee on Education and Health with the substitute. The Senator from Richmond City. Madam President, I move the committee substitute that came from Committee on Education and Health.

[05:54:34] The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Richmond City. Madam President, I then move the bill be engrossed and advanced to its third reading.

[05:54:53] The question is, shall Senate Bill 220 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 230, a bill relating to expungement of police and court records, reported from the Committee for Courts of Justice with a substitute and from the Committee on Finance and Appropriations with the substitute.

[05:55:23] Senator from Eastern Fairfax. With the recommendation to be rejected, I move the Courts of Justice Committee substitute. With the recommendation that it be rejected, the question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of the motion will say aye.

[05:55:39] Those opposed, no. No. The no's have it. The substitute is rejected. Senator from Fairfax. With a great deal of sadness, I move the Committee on Finance and Appropriations sub. The question is, shall the substitute from the Committee on Finance and Appropriations now be agreed to?

[05:55:58] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Madam President, I move what's left of my bill be engrossed in advance to its third reading.

[05:56:14] The question is, shall the limping Senate Bill 230 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[05:56:32] Senate Bill 253, a bill relating to electric utilities pilot program for energy assistance and weatherization for certain individual, cost recovery for certain electrical facilities, Reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations With an amendment and there is a floor amendment. The senator from Portsmouth. Thank you madam president. Madam president first thing I want to do is to agree to do

[05:57:05] To the amendment from the committee. I got to the first thing I want to do is to agree to the substitute from Commerce and labor the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion will say aye Those opposed no the eyes have it the substitute is agreed to senator from Portsmouth and now madam president I'd like to agree to The amendment from Senate finance and appropriation the question is shall the amendments from the committee on finance and Appropriations be agreed to all in favor of that motion will say aye those opposed no the ayes have it

[05:57:44] the amendments are agreed to. Senator from Hanover. Madam President, Madam President, I move to waive reading of the floor amendment. The question is, shall the reading of the McDougall, the Hanover, Senator from Hanover floor amendment be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The reading of the floor amendment is waived. Senator from Hanover. Thank you madam president. I move the floor amendment be agreed to in

[05:58:22] speaking to that. The senator has the floor. Madam president I'm happy to read the floor amendment it's not very long. I don't think the senator from Portsmouth really wants me to do it though. Madam president this bill as it's come through it does a couple things and in doing it in doing those things there allocations of cost and in different directions and at the end you You can read the fifth enactment clause that was added through the amendment process that says this act should be referred to as the Fair and Affordable Electric Rates and Reliability Act.

[05:59:01] Madam President, the amendment that I've been proposing, the sixth amendment is the sixth, I guess, clause to the bill is just very straightforward. It says really just two things: one, that when making decisions on rates for ratepayers, that means people who pay power bills, whether you're a cooperative ratepayer, or you have a cooperative power bill, or you get a power bill from one of the other two investor-owned

[05:59:35] utilities, that those determinations about power will be made for reliable electricity that's affordable and reasonable. That's it. So in making determinations, that's how we make the choices.

[05:59:51] The electricity is reliable and it has to be affordable and reasonable. So any of the other factors, any of the particular special interests that want a particular type of power or it to be presented in a particular way, the determination is exclusively focused on people paying the bills.

[06:00:12] that they will get power that's reliable, and then in the determination of what they have to pay for, they will pay for it in an affordable and reasonable manner. Madam President, this is very straightforward.

[06:00:29] It makes that fifth enactment clause true. This will make this a real reliable electricity at an affordable and reasonable cost. thank you madam president the senator from the senior senator from Prince William thank you madam president speaking to the amendment the senator has the floor thank you madam president so we've actually already debated this amendment and committee the good gentleman had submitted that and it's

[06:01:05] been defeated in committee once and he's now provided on the floor to us to spend more time to debate it and ignore our committee work but madam president I would submit to the gentleman and to the body that it sounds great, right? The gentleman had a fantastic speech just on the things that we do value in terms of affordable and reasonable.

[06:01:26] However, in our Constitution, we get to the State Corporation Commission. We've seen the history, and the history, when we get into what is the cheapest solution, quote, unquote, in this terms means affordable. But what it really means is the cheapest solution means environmental devastation to a lot of our communities.

[06:01:42] frankly just like mine we have heaps of coal ash that is will be there for probably centuries and so well it says the primaries when the primary concern becomes the lowest denominator our communities pay severely in environmental terms and we still have the Quantico Creek and Potomac watersheds having heavy metals and other environmental contaminants leached every day into our streams we have monitoring wells to figure out how much is going where that's a huge impact on our watermen huge impact on other people

[06:02:18] so not just in my community but down downstream right all this we impact each other in our communities then so while it sounds good it might look good for a brochure bill this is something that we've lived with a legacy we've already had that and it doesn't work we have to have measures that have understanding of impacts to communities and the SEC has that authority right now we're changing this and ignoring the histories of environmental justice are not a direction we need to repeat again thank you madam president the senator from Eastern Fairfax I'm speaking to the amendment senator has the floor thank

[06:02:58] you madam president ladies and I'm a senator the senator from the senior senator from Prince William County is absolutely correct you know we charged the SEC with looking at lots of things besides just cost and we actually had a hearing at the Commission on electrical utility regulation about a year and a half ago we looked at revising what the SEC is to look at to make it clear and try and put it all in one place just so everybody had an understanding of what matrix they were supposed to judge rate cases against but we asked if we looked at what we did was we surveyed Virginia law to figure out what the law currently

[06:03:32] is today and it's actually a lot more complex than this amendment purports to make it we obviously want to look at reasonableness of cost to ratepayers that's important but you also want to look at

risks associated with the investment. If you want to look at reliability, there's no question, but we also want to look at long-term potential savings for rate payers. And we also want to look at whether the same or greater benefits of a specific investment could be achieved by less expensive means or demand-side options or grid-enhancing technologies or other things. These are things we want the SEC to

[06:04:11] consider, not just cost. We want to look at whether or not it's necessary to do things to comply with federal law or whether or not the utility is able to comply with the legal charge we've given them like to go carbon free by a certain deadline you want to look at whether or not improving infrastructure in a certain location makes sense for long-term cost reasons you want to look at the positive negative effects on public safety health the environment greenhouse gas emissions these are issues that we need to look at because the decisions we make at the sec sometimes inflict costs on the rest of society like coal ash and prince william county that the rest of us are

[06:04:50] going to have to deal with sooner or later you also have to look at impacts on historically disadvantaged communities historic resources property value effects the social cost of carbon sorry if i trigger you by saying that you have to look at things like tax revenues job creation economic development these are all things that we charge our utility regulator with balancing when making these decisions not just cost and if you take a myopic view of cost you end up getting bad decisions which is why we couldn't get why the sec when it had a certain different people running it refused to approve our utility underground program repeatedly which is also in

[06:05:29] this bill by the way um but this is well this sounds good on paper it is um it is bad policy and i would encourage the body to vote against this floor amendment the senator from charlottesville and i don't want to repeat anything that's been said um the senator has the floor that reliable affordable reasonable we're all good sounding words but it is a whole lot more complicated than that this bill does two things it requires under or allows underground in certain ass certain areas and that calls freight payers a little bit of money but it also makes the data

[06:06:05] centers pay for their own substations and that means that the top rate payer comes out a little bit ahead under this bill this is a this is a good bill um this is amendment as i recall the gentleman from hanover had a bill in the commerce and labor committee that was considered um and was not moved forward because this issue is a lot more complicated than the simple nature of this bill and i'd i'd ask you not to not to approve this amendment senator from portsmouth thank you madam president i think enough has been said and i don't want to repeat anything either but i do recall

[06:06:45] that senate bill 772 which was the bill in commerce and labor was defeated with the same language in it so i would just move that um the floor may not be agreed to as well and so the question is shall the floor amendment introduced by the senator from hanover be agreed to all in favor of that motion we'll say aye aye those opposed no no the noes have it seeing at least eight

[06:07:20] hands this will be a recorded vote all those in favor of agreeing to the floor amendment will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll it's 19

[06:07:51] noes 20. Ayes 19, noes 20. The floor amendment is rejected. Senator from Portsmouth. Thank you, Madam President. Madam President, I move that the bill be engrossed and advanced to his third constitutional reading. The question is, shall Senate Bill 253 now be engrossed and advanced to his third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes

[06:08:23] have it. The bill is engrossed and advanced. Senate Bill 256, a bill relating to appliance, minimum energy and water conservation standards heating ventilation and air conditioning facilities and home appliances department of energy prohibited practices penalty reported from the committee on commerce and labor with the substitute the senior senator from prince william thank you madam president move the substitute be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion will say aye those opposed no the

[06:09:02] The ayes have it. The substitute is agreed to. Senator from Prince William. Thank you, Madam President. Move the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 256 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[06:09:19] Senate Bill 283, a bill relating to penalties for failure to appear contempt, reported from the Committee for Courts of Justice with the substitute. The senator from Western Henrico Eastern Henrico. Thank you madam president I just want to move that the committee stops it to be agreed to the question is shall the substitute from the committee for courts of Justice be agreed to all in favor of that motion will say aye those opposed no The ayes have it the substitute is agreed to senator from Henrico. Thank you I now move that it be engrossed and passed on to its final reading the question is shall Senate bill

[06:09:57] 283 now be engrossed in advance to his third reading all in favor of that motion will say aye Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 334, a bill relating to conveyances of interest in real property, public hearing required.

[06:10:17] Reported from the Committee on Local Government and from the Committee on Commerce and Labor with a substitute. The senator from Western Prince William. Thank you, Madam President. Madam President, move the committee substitute be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to?

[06:10:34] All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Prince William. Madam President, I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 334 now be engrossed in advance to its third reading?

[06:10:50] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 339, a bill to direct the State Corporation Commission to conduct proceedings to review cost allocation among different consumer classifications for certain electric utilities reported for the Committee on Commerce and Labor with a substitute. The senior senator from Loudoun. Thank you Madam President. Madam President, I move the substitute from the Committee on Commerce and Labor be agreed to. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion

[06:11:29] will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Loudon. Madam President, I move the bill be engrossed in advance to its third constitutional reading. The question is, shall Senate Bill 339 now be engrossed in advance to its third reading? All in favor of that motion will say aye.

[06:11:46] Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 375, a bill relating to Commonwealth Savers Plan, Virginia College opportunity endowment and fund established report from reported from the committee on education and health with amendments and from the

committee on finance and appropriations with a substitute the senator from Eastern Fairfax with the recommendation to be rejected and move the substitute from the committee on education and health the amendments amendments but with the

[06:12:25] recommendation that they be rejected the question is shall the amendments from the Committee on Education and Health be agreed to. All in favor of that motion will say aye. Those opposed, no. The no's have it. The amendments are rejected.

[06:12:40] Senator from Fairfax. I move the committee substitute from the Committee on Finance and Appropriations. The question is, shall the substitute from the Committee on Finance and Appropriations now be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed two. Senator from Fairfax. Move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 375 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[06:13:16] Senate Bill 378, a bill relating to collective bargaining by public employees, individual home care providers, Virginia Home Care Authority established, Public Employee Relations Board established exclusive bargaining representatives reported from the Committee on Commerce and Labor with a substitute and from the Committee on Finance and Appropriations with a substitute. The Senator from Eastern Fairfax. With the recommendation to be rejected I move the substitute from the Committee on Commerce and Labor. With the recommendation that it be rejected the question is shall the substitute from the Committee on Commerce and Labor be

[06:13:52] agreed to? All in favor of that motion will say aye. Those opposed no. The no's have it the substitute is rejected. Senator from Fairfax. Move the substitute from the Committee on Finance and Appropriations. The question is shall the substitute from the Committee on Finance and Appropriations now be agreed to. All in favor of that motion will say aye. Those opposed no. The ayes have it. The substitute is agreed to. Senator from Fairfax. Move the bill to be engrossed and advanced to his third reading. The question is shall Senate bill 378 now be engrossed and advanced to his third reading. All in favor of that motion will

[06:14:28] say aye. Those opposed no. The ayes have it. The bill is engrossed and advanced. Senate bill 386, a bill relating to distribution of sewage, sludge, whatever and whatever substances testing requirements, civil penalty. Reported for the committee on agriculture conservation and natural resources with a substitute and from the committee on finance and appropriations with a substitute.

[06:15:01] With the requirement that he pronounce those words, the chair calls on the senator from King George. The builder to outlaw distributing stuff you can't pronounce. With the recommendation that it be rejected, I move the substitute from agriculture, conservation, and natural resources be agreed to.

[06:15:20] With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Agriculture, Conservation, and Natural Resources be agreed to? All in favor of that motion will say aye. Those opposed, no. No. The noes have it. The substitute is rejected.

[06:15:37] Senator from King George. Thank you, Madam President. I move that the substitute from the Committee on Finance and Appropriations be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no.

[06:15:54] The ayes have it. The substitute is agreed to. Senator from King George. Thank you, Madam President. I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 386 now be engrossed in advance to its third reading? All in favor of that motion will say aye.

[06:16:09] Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 391, a bill relating to commission on the Virginia Alcohol Safety Action Program, reported from the Committee for Courts of Justice with amendments.

[06:16:27] The senator from King George. Thank you, Madam President. And I'd move that the amendments from the Courts Committee be agreed to. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no.

[06:16:42] The ayes have it. The amendments are agreed to. Senator from King George. Thank you, Madam President. I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 391 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Aye.

[06:16:58] Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 408, a bill relating to solicitation of contributions, enforcement, private right of action. Reported from the Committee for Courts of Justice with amendments.

[06:17:14] The senator from King George. Thank you, Madam President. I move the amendments be agreed to. The question is, shall the amendments from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The amendments are agreed to.

[06:17:31] Senator from King George. Thank you, Madam President. I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 408 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[06:17:49] Senate Bill 494, a bill relating to public institutions of higher education, governing boards, membership appointment terms, and composition, duties relating to shared governance requirements workgroup, reported from the Committee on Education and Health with a substitute.

[06:18:09] The Senator from Charlottesville. Madam President, I move that the substitute from the Committee on Education and Health be agreed to. The question is, shall the substitute from the Committee on Education and Health be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to.

[06:18:29] Senator from Charlottesville. Madam President, I move that the bill be engrossed in advance to his third constitutional reading. The question is, shall Senate Bill 494 now be engrossed in advance to his third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[06:18:47] Senate Bill 541, a bill relating to time zone, permanent Eastern Standard Time in the Commonwealth, reported from the Committee on General Laws and Technology with amendments. Senator from King George.

[06:19:03] Thank you, Madam President. I move that the amendments from General Laws and Technology be agreed to, reluctantly. The question is, shall the amendment from the Committee on General Laws and Technology be agreed to? All in favor of that motion, we'll say aye.

[06:19:20] Aye. Those opposed say no. The ayes have it. The amendment is agreed to. Senator from King George. Thank you, Madam President. I move the bill be engrossed in advance to its third reading. The question is, shall Senate Bill 541 now be engrossed in advance to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 542, a bill relating to cannabis control retail market penalties, Reported from the Committee for Courts of Justice with a substitute, and from the Committee on Finance and Appropriations with a substitute.

[06:20:02] I'm sorry. Reported from the Committee on Rehabilitation and Social Services with a substitute, from the Committee for Courts of Justice with a substitute, and from the Committee on Finance and Appropriations with a substitute.

[06:20:20] Senator from Eastern Henrico. Thank you, Madam President. With the recommendation that it be rejected, I move the substitute from the Committee on Rehab and Social Services. - With the recommendation that it be rejected, the question is, shall the substitute from the Committee on Rehabilitation and Social Services be agreed to?

[06:20:41] All in favor of that motion will say aye. Those opposed, no. The nos have it. The substitute is rejected. Senator from Eastern Henrico. - Thank you, Madam President. with another recommendation that the substitute be rejected.

[06:20:57] I ask that we move the substitute from the Committee of Courts of Justice. - With the recommendation that it to be rejected, the question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye.

[06:21:13] Those opposed, no. The nos have it. The substitute is rejected. Senator from Henrico. - And now, Madam President, I move that we accept the substitute from the Committee on Senate Finance and Appropriations.

[06:21:32] The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Madam President, I move the bill be engrossed and passed on to its...

[06:21:50] The question is, shall Senate Bill 542 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 543, a bill relating to marijuana and hemp products enforcement, reported from the Committee on Finance and Appropriations with a substitute.

[06:22:20] Senator from Eastern Henrico. Madam President, I move that the substitute from the Committee of Senate and Finance and Appropriations be agreed to. The question is, shall the substitute from the Committee on Finance and Appropriations be agreed to? All in favor of that motion will say aye.

[06:22:37] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Henrico. Madam President, I move this bill be engrossed and passed on to its third reading. The question is, shall Senate Bill 543 be engrossed and advanced to its third reading? All in favor of that motion will say aye.

[06:22:55] Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 565, a bill relating to Virginia Contractor Transaction Recovery Fund claim limits license threshold amounts reported from the Committee on General Laws and Technology.

[06:23:17] The senator from Colonial Heights. Madam President, I move that the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 565 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no.

[06:23:34] The ayes have it. The bill is engrossed and advanced. Senate Bill 598, a bill relating to Electric Utilities Renewable Energy Portfolio Standard Zero Carbon Electricity, Zero Emission Credits, Power Purchase Agreements, Reported from the Committee on Commerce and Labor with the substitute and there is a floor amendment.

[06:23:58] Madam Chair, I move that we adopt the committee substitute. The question is, shall the substitute from the Committee on Commerce and Labor be agreed to? All in favor of that motion will say aye.

[06:24:14] Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Hanover. Thank you, Madam President. Madam President, waive reading of the floor amendment. The question is, shall the reading of the floor amendment introduced by the Senator from Hanover on Senate Bill 598 be waived?

[06:24:38] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The reading is waived. Senator from Hanover. Thank you, Madam President. Madam President, I move the floor amendment be agreed to and speaking to that briefly. The Senator has the floor.

[06:24:54] Madam President, I came so close just a little while ago, I wanted to try it, try again. But I do want to, I did put a bill in that was very similar to this. It was not the exact same language. But Madam President, I do want to address a few things that were said in the last time. I do think that this version gives the State Corporation Commission discretion. It gives them discretion to look at reliability of electricity. That does include things like where lines need to go? Whether there needs to be redundancy? Do you have to upgrade systems, including

[06:25:31] the grid? So Madam President, I do think that discretion is present for the State Corporation Commission. And Madam President, I think the use of the language "affordable" and "reasonable" also grants discretion of how they're dealing with other things. It is certainly reasonable to think that you would have to pay for the coal ash cleanup that was used to create electricity. But in looking at things, the state corporation commission needs to make sure that those decisions are affordable. The language is not lowest,

[06:26:09] did not pick the choice of the words low, said affordable. And Madam President, nobody thinks the production of electricity is free. Nobody thinks it doesn't cost money, but we should be putting in place policies that are affordable. And many of the policies that the senator from Western Fairfax articulated are ones that cost a lot of money to people that pay power bills. We can debate whether being in Reggie is good or not, we can create whether us

[06:26:46] putting the thumb on the scale of what types of power should be generated are good or not, but we need to make no mistake that those decisions affect how much power cost, affect how affordable they are for Virginians. And Madam President, today as many Virginians are getting their power bills, they're

not affordable. They cost a lot. There's a reason and some of those are decisions that we've made in this body. This returns the balance to looking at

[06:27:24] reasonable, affordable, and reliable. So, Madam President, you can disagree with that assessment. You can want there to be other factors, but this puts people that pay the bills first. It does not mean that the environment is discounted or eliminated. Certainly, I did not hear anybody talk about how to dispose of all the solar panels, did not hear talk about all the runoff or the environmental impact to some of our communities have experienced, that's not in here.

[06:28:00] This talks about affordable and reliable and reasonable for ratepayers. That should be where our focus is. And this amendment does that, I hope that some of my friends will reconsider and vote in favor.

[06:28:16] The Senior Senator from Prince William. Thank you, Madam President, speaking to the floor amendment. The Senator has the floor. Thank you, Madam President. I appreciate the gentleman's persistence after failure in committee and failure of the previous floor amendment. If we did this all day, we would never get anything done.

[06:28:32] I would urge my colleagues to once again defeat this measure. It is again something that sounds great, but in its implications and its effect has great negative consequence across all Virginians. And I appreciate the body voting no. Thank you.

[06:28:49] The Senator from Western, Prince William. Thank you, Madam President. Madam President, speaking to the amendment. The Senator has the floor. Thank you, Madam President. President, here's one of the issues that comes up with this, is the SEC's default time and time and time again, when we've dealt with transmission line issues, has been to go with above ground options, even when our constituents have overwhelmingly demanded below ground, and the reason they will do that is they will cite cost over and over and over again. On an amendment like this, it is not going to make it more likely that a project that would otherwise be above ground

[06:29:29] would then become below ground by determination of the SEC because they would again be defaulting to cost standard. Now, why do we have existing press inference? How do we know this? Because in 2018, this body and the one down the hall passed, even though despite my vote against SB 966. That bill civically called for a pilot program in my district that was a hybrid route. Hybrid meaning partially underground. Had that legislation not been included or had that not been included in

[06:30:03] the legislation, the SEC would have highly likely defaulted to above grounding. But because the General Assembly had to tell them it was in the public interest to have below ground, that's what ended up happening even though that cost more money. Now I took a lot of exceptions with a lot of things in that part of the bill, along with other parts, blah, blah. I don't need to relitigate that. But I will note that when we look at the voting record of this, the senior senator from Prince William and I both voted against the bill, and yet the patron of this amendment voted for that bill. The existing history and the precedent that we have is that the state corporation

[06:30:40] commission will default to above ground transmission lines far more often than they will go with with undergrounding and this amendment will make that increasingly more likely to happen. Therefore, I motion against it. Thank you so much, Madam President. The Senator from Charlottesville. Speak to the amendment.

[06:31:02] Senator has the floor. Ladies and gentlemen, the Senate, I hope you'll reject this amendment. As my friends from Prince William County have pointed out, this is a far more complicated issue than the words of reliable, affordable and reasonable, which all seem very reasonable to us.

[06:31:22] This bill simply has the purpose of changing accelerated renewable energy buyer to accelerated clean energy buyer. So it will incentivize the use and development of nuclear power and fusion.

[06:31:38] And as we need more energy, that's simply what this bill is about. Adding these words just confuses the issue and makes it seem simpler to the people we represent and i would urge you to reject it the senator from eastern fairfax thank you madame president speaking to the motion the senator has the floor thank you madam president so you know there's there's a um a precept that native american populations used to live by particularly at the iroquois confederacy it was called the seventh generation principle and the

[06:32:17] idea that those societies live by was that every decision should be made with the idea that it's maximizing benefits for seven generations out. Because if you think about just your generation alone and what's important for you right up front, you end up making short-term decisions that end up having long-term consequences. And this kind of policy, this kind of policy prioritizes short-term benefit over long-term, or short-term gain over long-term benefit.

[06:32:54] You can see numerous examples of this over human society. I board you all with my discussion of mammoth and megafauna over hunting and species extinction across the Pacific Islands as humans rolled across the Pacific a year or two ago. We could talk about how the Mayans overbuilt on agriculture and basically end up collapsing their civilization. The Romans did the same thing.

[06:33:22] But I would submit to you that a lot of what we see going on today is all short-term thinking over long-term benefit and this kind of policy is is exactly that there's lots of things what might seem cheaper to burn certain fuels right now instead of investing in infrastructure that saves us money over the long term saves us by the way 118 million the VCA by the way which will save us 100 almost 120 billion dollars of fuel costs by 2050 there's a lot of other things that are

[06:33:59] expensive, like flooding, like dead crops, like floods, or things like cancer, which is what carbon emissions cause. These are all things that the SEC has to balance when making its decision, not just what's cheapest right here, right now, in the short term, that saves money on the front end. This is why we need to kill this amendment. It is short-term thinking over long-term benefit, and will hurt our children if we were to enact a policy like this. Senator from Hanover.

[06:34:38] Madam President, if no one else wishes to speak. Senator has the floor. Thank you, Madam President. Madam President, I heard the Senator talk about seven generations and looking forward, and I would say that you have to look at where your focus is and what you're trying to do.

[06:34:56] This bill says, this amendment says the primary focus of the State Corporation Commission, primary duty, does not say their only duty or single obligation, but it's to look at reliability, reasonableness, and affordability.

[06:35:13] Madam President, there are other factors that go into determination. There is not just one. And there are times when things are reasonable, like undergrounding, and you need to be smart. There's times when you need to make a decision to diversify your sources of energy.

[06:35:34] That is reasonable, and it can be done in an affordable way. But Madam President, I think sometimes people think that some of those ways don't have cost. And Madam President, I heard about the cost of the environment.

[06:35:51] I've seen it in my area. There have been the area that Senator Stewart and I have represented over the last decade have had some significant erosion problems, some significant sediment that have gone into our streams and ultimately into the bay.

[06:36:08] We've not talked about the cost of solar panels when they end their useful life. What do we do with them? How do we make sure that those materials, which are hazardous to us, are disposed of in the proper way? What is the cost to Virginians, people who pay the power bills?

[06:36:26] Madam President, you do have to have a goalpost and a guide when you're going through this process. You can make a decision. We want to do everything in a direction and forget about people that need power and need energy and have to pay for it.

[06:36:45] These are real people struggling with real bills and your guiding principle should be, are you making it reliable? Are you making it affordable? And is that reasonable? That is a logical guide that should direct the decisions of our state corporation commission.

[06:37:05] So Madam President, I understand some of the statements my colleagues, but a number of them I just disagree. The principles that we look at should be focused on the constituents that we serve and making power energy for them, making sure that they can keep their families warm, that they can keep cool in hot summers, make sure that they don't have to worry about whether they can run their refrigerator the full time. That should be a decision that we make and the State Corporation Commission should guide that

[06:37:42] through decisions about affordable, reasonable, reliable energy. The question is, shall the floor amendment introduced by the Senator from Hanover be agreed to?

[06:37:58] All in favor of that motion will say aye. Aye. Those opposed, no. Seeing at least eight hands, this will be a recorded vote. All in favor of agreeing to the floor amendment will record their votes. Aye. Those opposed, no. Are the senators ready to vote? Have all the senators voted. Do any senators desire to change their vote? The clerk will close the roll.

[06:38:31] Ayes 19, noes 20. Ayes 19, noes 20. The floor amendment is not agreed to. Senator from Charlottesville. Senator from Charlottesville. I move that the bill be engrossed and advanced to its third constitutional reading.

[06:38:53] The question is, shall the bill now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. Senate Bill 598 is engrossed and advanced. Senate Bill 600, a bill relating to nonjudicial disciplinary proceedings in the Virginia National Guard, reported from the Committee on General Laws and Technology.

[06:39:20] the senator from orange thank you madam president i move that the bill be engrossed and advanced his third constitutional reading the question is shall senate bill 600 now be engrossed and advanced to his third reading all in favor of that motion we'll say aye aye those opposed no the ayes have it the bill is engrossed and advanced senate bill 621 a bill to direct certain utility electric utilities to petition the state corporation commission for approval of electric grid utilization metrics reported from the

committee on commerce and labor with a substitute the senator from junior senator from Loudoun thank you madam

[06:39:59] president I move that the committee substitute be agreed to the question is shall the substitute from the committee on commerce and labor be agreed to all in favor of that motion will say aye aye those opposed no the ayes have it the substitute is agreed to senator from Loudoun thank you madam president I know move the bill be engrossed and advanced to its third constitutional reading the The question is, shall Senate Bill 621 now be engrossed in advance to his third reading?

[06:40:24] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 647, a bill relating to use of unnamed aircraft systems by law enforcement officers search warrants, reported for the Committee for Courts of Justice with a substitute.

[06:40:45] The Senator from Washington. Thank you, Madam President. I move the committee substitute be agreed to. The question is, shall the substitute from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The substitute is agreed to. Senator from Washington.

[06:41:01] Thank you, Madam President. I move the bill be engrossed and advanced to its third reading. The question is, shall Senate Bill 647 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced.

[06:41:16] Senate Bill 650, a bill relating to public utilities, water and sewage companies, discounted rates for low-income customers, reported from the Committee on Commerce and Labor. The Senator, Senior Senator from Fairfax. Thank you, Madam President. I move that the bill be engrossed and passed to its third reading.

[06:41:34] The question is, shall Senate Bill 650 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Senate Bill 689, a bill relating to oral threat to kill or to do bodily harm, employees of local or state department of social services penalty, reported from the Committee for Courts of Justice with amendment.

[06:42:02] The senator from Mecklenburg. Thank you, Madam President. I move the committee amendment be agreed to. The question is, shall the amendment from the Committee for Courts of Justice be agreed to? All in favor of that motion will say aye. Those opposed, no. The ayes have it.

[06:42:19] the amendment is agreed to senator from mecklenburg i move the bill being grossed in advance to its third reading the question is shall senate bill 689 now be engrossed in advance to his third reading all in favor of that motion will say aye those opposed no the ayes have it the bill is engrossed and advanced senate bill 738 a bill relating to hospitals emergency department physicians reported from the committee on education and health with a substitute the senator from isle of white thank you madam president move the committee substitute be agreed to the question is shall the

[06:42:57] substitute from the committee on education and health be agreed to all in favor of that motion we'll say aye those opposed no the ayes have it the bill the substitute is agreed to senator from isle of white thank you madam president i move that bill be engrossed and passed to its third constitutional reading the question is shall senate bill 738 now be engrossed in advance to his third reading all in favor of that

motion will say aye those opposed no the ayes have it the bill is engrossed and advanced senate bill 796 a bill relating to artificial intelligence

[06:43:33] companion chat bots and miners act established enforcement civil penalties individual action reported from the committee on general laws and technology with a substitute and there is a floor substitute the senator from stafford thank you madam president with the recommendation that we reject the committee substitute i move that we accept the committee substitute with the recommendation that it be rejected the question is shall the substitute from the committee on general laws and technology be agreed to all in favor of that motion we'll say aye those opposed

[06:44:08] no no the noes have it the substitute is rejected senator from Stafford thank you madam president I move to waive the reading of the floor amendment the question is shall the reading of the floor amendment now be waived all in favor of that motion we'll say aye aye those opposed no the ayes have it the reading of the floor amendment is waived senator from Stafford thank you madam president I move the floor amendment and speaking to the floor amendment and - And Senator, it's a substitute, I believe.

[06:44:39] - I apologize, Madam President, move the-- - Senator has the floor. - Thank you. Madam President, the substitute comes at some discussions with my colleagues, and I want to thank the Senator from Alexandria and Western and RICOS for working with me to kind of tighten up some of the scope of this.

[06:44:59] It's, we've made some, a couple of substantive changes about notification when it comes to the chat bots with minors and how that process will be implemented for unhealthy emotional dependence and pop-up notifications to make sure these children understand they're not speaking with a human, but they're actually interacting with a chat bot.

[06:45:27] So there are a couple more, I think, tweaks that we've got to move forward that we're committed to making that. But as it stands, I ask that we move it engrossed and advance it to its third rating. Senator, you have to move the substitute first, the floor substitute.

[06:45:45] I apologize. I move the floor substitute. The question is, shall the floor substitute be agreed to? All in favor of that motion will say aye. Aye. Those opposed, no. The ayes have it. The floor substitute is agreed to.

[06:46:02] Senator from Stafford. Thank you, Madam President. I move that we engrossed and advanced to its third reading. The question is, shall Senate Bill 796 now be engrossed and advanced to its third reading? All in favor of that motion will say aye. Those opposed, no. The ayes have it.

[06:46:17] The bill is engrossed and advanced. Senate Bill 819, a bill relating to Virginia Lottery, powers of the Virginia Lottery Board, advertising restrictions, age verifications, reported from the Committee on General Laws and Technology with a substitute and from the Committee on Finance and Appropriations with a substitute. The Senator from Roanoke. Madam President, with the recommendation that it be rejected, I move that the Senate adopt the Committee substitute from General Laws. With the recommendation that it be

[06:46:57] rejected, the question is, shall the substitute from the Committee on General Laws and Technology be agreed to? All in favor of that motion will say aye, those opposed no no the nose have it the substitute is rejected senator from Roanoke thank you madam president I move that the Senate adopt the committee substitute from the Committee on Finance the question is shall the substitute from the

Committee on Finance and Appropriations be agreed to all in favor of that motion we'll say aye aye those opposed no the ayes have it the

[06:47:32] substitute is agreed to senator from Roanoke thank you madam president I I move that the Senate engrossed and advanced Senate Bill 819 to its third constitutional reading. The question is, shall Senate Bill 819 now be engrossed and advanced to its third reading?

[06:47:50] All in favor of that motion will say aye. Those opposed, no. The ayes have it. The bill is engrossed and advanced. Returning to page 2, Senate Bill 118.

[06:48:09] Senator from Hampton. Madam President, I move that the Senate reconsider the motion by which Senate Bill 118 was passed by for the day. Would the request that it be, let me just find myself, I'm sorry.

[06:48:31] It's been a long day. The question is, shall the motion by which the Senate agreed to pass Senate Bill 118 by for the day be reconsidered?

[06:48:47] All in favor of that motion will record their votes aye. Those opposed no. Are the senators ready to vote? Have all the senators voted? Do any senators desire to change their vote? The clerk will close the roll.

[06:49:04] Ayes 36, noes 0. Ayes 36, noes 0. The motion by which the bill passed by for the day is reconsidered. Senator from Hampton.

[06:49:21] Thank you, Madam President. moved the senate bill 118 pass and this is this is the i gaming bill and i previously explained it the question is shall senate bill 118 pass all in favor of that motion will record their votes i those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote. The clerk will close the roll. Ayes 19, noes 17. Ayes 19, noes 17. Senate

[06:49:59] Bill 118 passes. Supplemental calendar number one, uncontested calendar, Senate bills on first reading. The blue calendar. Senator from Eastern Fairfax. Madam President, I move all the Senate bills on first reading on the uncontested and regular calendars, pages one through three, Senate bill 528 to 764 that the rules be suspended the first constitutional reading of the titles be dispensed with the question is shall the rules be suspended in the first constitutional reading of the titles of the Senate

[06:50:37] bills on the uncontested and regular calendars page 1 through 3 of the supplemental calendar number 1 Senate bill 528 through Senate bill 764 be dispensed with all in favor of that motion will record their votes aye those opposed no are the senators ready to vote have all the senators voted do any senators desire to change their vote the clerk will close the roll I was 39 no 0 I 39 no 0 the reading of the title is dispensed with senator from Eastern

[06:51:16] Fairfax the president asked that all those bills goodbye for the day the question is shall the Senate bills on the uncontested and regular calendars now on their second reading go by for the day all in favor of that motion will say aye those opposed no the eyes have it the bills will go by for the day senator from eastern fairfax uh inquiry the clerk does that complete today's pre-crossover calendar yes sir good times

[06:51:52] senators we will return briefly to the morning hour and the senator from alexandria is recognized thank you madam president rise for an introduction and for a point of personal privilege the senator has the floor uh first the introduction i want to thank and introduce to the senate uh some people

who've been really helpful in my office for the last um for this session and before first my chief of if they could stand my chief of staff ben jones who's been phenomenal my legislative aide parker trichel who's been a real asset to our office and also we have an intern

[06:52:32] and Derek Bryant who's a VCU sophomore who's been a valuable addition to our office this session I want to extend if you could extend to them to walk the welcome of the Senate thank you senator for that introduction and we recognize the hard and dedicated work of your staff mr. Benjamin Jones Parker treacle and Derek Bryant thank you for all that you have done to support our senator senators I ask that we give the warm welcome of the Senate to the staff of

[06:53:03] senator from Alexandria senator from Alexandria thank you madam president I have rise for a point of personal privilege the senator has the floor thank you madam president serving this body has been the greatest honor of my life representing northern Virginia in the General Assembly my adopted home since 1989 has been a responsibility that I haven't taken lightly I started off representing 80,000 people in the house and became a voice for 216,000 Virginians in a senate

[06:53:42] district that speaks more than 127 127 native languages from 10th generations to new americans i did it because i believe government could be a force for good not perfect not always fast and certainly not easy but transformative and after all these years i believe that more strongly than ever. We are a 406-year-old institution, but when I arrived, I had the distinct honor of being a first in the General Assembly, and being an openly gay elected official 22 years ago didn't earn you

[06:54:19] book deals or talk show appearances, just a seat in a deep minority across the hall. Still, being out was a fact that felt both deeply personal and unavoidably public. I was proud, but I was also that simply by being here I carried a responsibility larger than myself in a caucus of just 34 and 100 member chamber sometimes simply being here felt like all you could do but over the years Virginia has changed and thankfully so has this assembly today there are LGBT Virginians serving openly authentically

[06:54:56] and unapologetically at every level of government I see them in the hallways of of this institution every day call them colleagues future leaders even mr. secretary and that progress did not happen by accident and I'm deeply humbled to have played a role in helping move this Commonwealth closer to a place we can all be proud of I swore to myself that I wouldn't leave until there was at least one just one more out lesbian or gay general assembly member but when I leave I'm proud we'll have an eight member LGBTQ caucus and if anyone on the other side of the aisle wants to come out you will be more than welcome we're

[06:55:34] still waiting on that first openly gay Republican thank you we are we are lucky though we are all lucky we're lucky to have experienced more first than any other generation of legislators first women of color and leadership positions the senators from Portsmouth and Hampton first Muslim members first Asian American members first transgender member first Asian American first First female and first Jewish speaker, first black speaker, first black attorney general,

[06:56:12] and you, Madam President, the first Muslim lieutenant governor in the country. For all of us who are firsts, perhaps our greatest reward is reaching the next generation. When I was a kid, I feared that being openly gay meant you couldn't serve at all in public office or achieve much of anything if you're open.

[06:56:32] But I hope my service has made it easier for all young people who are different to know that they too can serve. And today, the General Assembly is truly a much more representative citizen legislature than Thomas Jefferson could have ever envisioned.

[06:56:48] This alone has led to the ability to craft more compassionate, more thoughtful, and more inclusive policies. As Mr. Jefferson said, laws and institutions must go hand-in-hand with the progress of the human mind. As that becomes more developed, more enlightened, and manners and opinions change, institutions must advance also to keep pace with the times and I'm pleased to say that we have. We enacted major policies that protect and advance civil rights, strengthen education, expand access to health care, safeguard our environment,

[06:57:24] stand up for working people, and yes we passed a few bills that required infinite patience. I'm particularly proud of the work that we did ensuring Virginia modernized state law to protect LGBT people from discrimination in their daily lives, including employment, housing, and public accommodations.

[06:57:45] The Virginia Values Act of 2020, my proudest achievement, established new protections for all Virginians. This law, the first of its kind in the South, passed with strong bipartisan support, including nine Republican votes.

[06:58:02] delegate Mark Sickles partnered with me on this legislation and former senator Jill Vogel provided key support and now this November after 20 years Virginians will finally be able to vote on the marriage equality amendment which will protect the ability to marry who you love it's time for our state constitution to accurately reflect the law of the land but I'd be remiss if I didn't talk about the elephant in the room and madam president pro tem would be disappointed if I didn't. Cannabis. When I first entered the General Assembly, I saw too many lives

[06:58:39] upended by a simple marijuana charge. Jobs lost, futures delayed, families hurt, and for too long that harm was baked into our lives. That is no longer the case. The times have changed and so have our laws. So many people have picked up the torch on cannabis. In 2020, House Majority Leader Cheryl Herring joined me to sponsor legislation decriminalizing marijuana.

[06:59:04] The next year, she and Senator Lucas worked closely with me to pass the law legalizing possession of marijuana, and now Senator Aird and Delegate Krizak will carry the bill across the finish line. I especially want to thank J.M. Padini and David May for their work on this issue.

[06:59:22] But as I reflect on the past two decades, I remember some special moments. in my time here, I would look up at the ceiling in this beautiful Capitol as a daily reminder of the rich history of the General Assembly. In 2006, I felt the full weight of history as the 400th anniversary of the signing of the Charter for the Virginia Company beneath the vaulted stone ceilings of the Honorable Society of the Middle Temple in London, where the legal profession was born. And on January 17th, we all witnessed Governor Abigail Spanberger

[06:59:56] Make history and shatter the glass ceilings ceiling to my colleagues on both sides of the aisle Thank you in a time when cynicism is easy This body has reminded me that public service at its best is still an honorable calling We are sent here to do big and important things But sometimes it's a seemingly small courtesies and human moments that remind us We do our best work when we engage with each other as people first I still remember Delegate Joanne Ward, soon to be the last serving member of the House class of 2004, who would bring me lox and bagels in her purse to make sure

[07:00:34] I had breakfast. Senator Reeves and his fiancée Cara provided interior decorating services for my offices both in the Pocahontas building and in the new GAB. And I will miss the fun moments I had with former Senators Jennifer Wexton, Jill Vogel, and Janet Howell. There are there are many people to thank.

[07:00:55] First I want to acknowledge my mother and stepfather. If they hadn't come to Alexandria and campaigned for me relentlessly in 2003, I would never have won by 43 votes in a five-way primary. They are my biggest supporters and I thank my family and loved ones for their patience and understanding of a job that rarely respects evening, weekends, or holidays. And I've been fortunate to know many great local officials who I've been able to turn to for advice and council. Among them Alexandria's Mayor Aliyah Gaskins, our former mayor Justin Wilson, delegate-elect Kirk McPike, and former Arlington board member Katie

[07:01:33] Crystal. Delegate Patrick Hope has been a great friend and partner on our multi-year effort to stop the sale of vapes to children. Senator Howell used to say that I was the best prepared senator, but the truth is I only looked good because of some phenomenal legislative aides including Benjamin Jones, Parker Reichel, Chris Lane, and Henry Watkins. To the Senate staff, the DLS, the Senate finance team, and the clerk's office, those that support our daily needs and especially my own team, you are extraordinary. You make us look smarter

[07:02:09] than we are, keep us on schedule, mostly, and ensure that the real people behind the policies are never forgotten. Any success attributed to me belongs just as much to you. However, it's only with the support of my constituents that I could be a force for progressive change. Thank you to the people of Alexandria, Arlington, and Fairfax, including the people I formerly represented in Mount Vernon, much to the great frustration of the senator from Eastern Fairfax, for trusting me to be your voice. The 39th district will be in excellent hands with

[07:02:46] senator-elect Elizabeth Bennett Parker, but as I reflect on the past 22 years, the words of a Jesus Jones song come to mind. Right here, right now, there's no place I'd rather be, watching the world wake up from history. I've been witness to and part of history. Together we've all made a difference. As I leave this chamber I do so with optimism. Optimism because of Virginia's story continues to be a story where even a short transplanted New Yorker who sometimes does know when to shut up can be welcomed and given a chance to join the oldest continuous

[07:03:25] operating legislative body in the Western Hemisphere. This will always be a noble arc that drives us toward opportunity, fairness, and inclusion. The people in this chamber and those that follow us care deeply about getting it right. I may be leaving this desk but I'm not leaving public life. I will always believe that who you are should never limit how fully you can serve. The day I As I was first sworn into the House, my late Aunt Janice gave me a note that I always kept behind my desk.

[07:03:58] It said, "Never forget the little guy." And Aunt Janice, if you're watching from above, I hope I've lived up to your words. Thank you, Madam President. Thank you, colleagues. And thank you, Virginia.

[07:04:11] Thank you, Senator.

[07:04:47] The chair recognizes the senator from Colonial Heights. Thank you, Madam President. I rise for an announcement. The senator has a floor. a bit of a lighter note we have our last basketball practice of the season tomorrow night 7:00 p.m. at MLK Middle School up the street in Churchill 7:00 p.m. we've had

really good turnouts the last couple of weeks this will be our last opportunity before the game next Monday a week from today so if you can make it out or if you have folks in your office who are interested in playing on the Senate team please send them out to practice tomorrow at 7:00 p.m. at MLK

[07:05:24] K middle school thank you senators senator from Eastern Fairfax thank you matter president rise for a point of personal privilege the senator has the floor thank you madam president so madam president you know you I guess you start to know you've been around here a long time when you have a seatmate that retires I think this might be the first time for me and Senator Evan and I have been at it now for a what thanks 17 years something like that and he and I

[07:05:59] started off uh in the house of delegates back in 2010 of course he preceded me there by seven years after he won his by his landslide vote of 43 votes in 2003 and um senator ebon and i back then uh was a very different place than it is today um i've been here 17 sessions now and um 10 of those sessions i served in the minority um i've only been in the majority for seven out of 17 and when And back when we served in the House, it was a very different environment.

[07:06:37] I think we were, I think when Senator Eben was there, I think it was 61-39 or 62-38, something like that. But if you go back and you look at the record of votes back when the Courts of Justice Committee was run by Morgan Griffith and, to a lesser extent, Dave Albo and Rob Bell, there were quite a few 98 to 2 votes and the two were often Curavel and Eben and Adam was somebody who was never scared to be on the losing side of a vote especially in 98 to 2 vote with me back in those days and so Adam and I bonded in those days

[07:07:15] we also bonded because you know that the other chamber operates a little differently and I used to have some fun over there for example one year I I remember that one member decided to put in a bill to prohibit chips from being implanted in human beings because he was afraid the mark of the beast was contained in the computer code somewhere.

[07:07:36] And we decided to bring tinfoil hats into the chamber one day. Adam didn't wear one. Adam didn't wear one, but he carried one in before we got caught. But in any event, he was always willing to play those kinds of games with me.

[07:07:54] He left me in 2013 to replace Senator Tyser, 12, who had the district right down the street. And we had a lot of fun.

[07:08:11] One of the first things we did was when Governor McDonald tried to tax hybrid cars, there was a great outrage. Adam and I collected about 8,000 signatures that we delivered in a box to the Patrick building the governor McDonald to make sure he knew of how offended the 90% of the hybrid drivers who lived in Northern Virginia were about this policy and then Adam decided to run for Congress and I made the mistake of not endorsing him

[07:08:42] which I still hear about every day but my I had other caucus politics I had to navigate at that time but Adam and I still remain good friends and that man he forgave me eventually but when I got over here I found myself very intertwined with Adam because Senator Eben because Senator Barker decided to draw his district line literally a baseball's throw from my compost pile in my backyard and half my neighborhood was represented by me and half my neighborhood was

[07:09:17] represented by Senator Eben for about six years and as he pointed out in his speech he got kind of it was kind of complicated back in those days you all might remember Senator Poehler used to give a

speech about George Washington every year.

[07:09:34] And after Adam got here, out of deference to her, he let her keep giving her speech even though his district had Mount Vernon, the Mount Vernon estate, and Toddy thought she still had it, I guess. But when I got here, Adam stole the speech from the 36th Senate district and he decided he had to give the Mount Vernon speech every year.

[07:09:53] And he also decided he was gonna carry the bill to make Mount Vernon's whiskey, the official whiskey of the state even though most of the wheat that created it was grown in my district but in the event we've we've had a lot of fun through the years representing a lot of the same people a lot of the same issues including one of the things Adam I think has never forgiven me about was I live downstream of Alexandria and Senator Stewart is very aware of all the fun we had over the things that came out of the pipes in Alexandria into the river which we were

[07:10:29] talking about a little bit. But the Alexandria sewage problem created an interesting, a lot of fun. But we solved that problem, had a big ribbon cutting. Alexandria is now very proud of their sewer. But I'll never forget some of the debates we had in ag where Adam tried to defend the only 10 million gallons of the sewage is raw sewage, the rest of it's water. And Richard and Senator Stewart pointed out that still makes 120 million gallons of raw sewage.

[07:11:02] But in any event, and then Senator Chafin pointed out it was a straight pipe, I think. But in any event, I'll never forget Adam. The thing I'm most envious of that Adam achieved was he appeared on The Daily Show. And if you all remember, John Stewart was very enticed by Senator Ebbins' bill to repeal the state's prohibition on lewd and lascivious cohabitation, which made it illegal for boyfriends and girlfriends to live together.

[07:11:35] and he ended up putting on his on screen a picture which Adam just Senator Ebbin texted me earlier today of Ebbins sangria sangria cohabitation and donkey washing stand did I get that right sidewalk donkey washing stand because Senator Ebbin was pointing out that he had repealed not only the law prohibiting lewd and lascivious cohabitation but he made it legal to serve sangria in virginia and he had repealed the state statute prohibiting donkey

[07:12:15] washing on a sidewalk oh that's for me okay anyway don john stewart's very impressed by this but um if i could only ever appear on the john stewart show like senator ebon i'll consider it a complete career he's also appeared by the way on the letterman show um on david letterman show which I think says a lot about his career, but it says a lot about his career and the issues he takes on.

[07:12:42] But I'll just say, you know, in all seriousness, you know, when I graduated law school, I didn't know many people who, in 1996, I didn't know many people who were willing to have the courage to say they were openly gay. And in 2003, when Senator Edmund, when Senator Edmund ran, it was still, you know, pretty new.

[07:13:04] remember that the state passed the ban on gay marriage in 2000 and the 2006 election and you know it took a lot of courage for him to run for public office in that environment today it seems you know pretty commonplace but back then it was different and I'm sure I wasn't here when when when Senator Evan arrived but I guarantee you that you know a lot of people had questions and and what What Adam did was, he proved everybody, he proved his reputation to everybody by working

[07:13:39] on it bill by bill, issue by issue, speech by speech, showing everybody how prepared, how thoughtful, how serious of a legislator he was, and he's going to walk out of this place with a quite an impressive set of achievements and a whole lot to be proud of for what he's done in the 17 years no in the 23 years he served in the general assembly and the service he's going to continue to provide and the cannabis control authority after he leaves and so um you know he's been a wonderful member of this body wonderful member of the general assembly uh he's a historic

[07:14:16] member and i don't think a lot of people realize or remember just how historic he is and is about to become and we're really going to miss him here and so adam i wish you well in your retirement I look forward to seeing you sit back here in the chair behind me when you come back and I have to give you special privileges to come in here.

[07:14:36] So thank you for your service. Thank you, Senator. The chair recognizes the senior senator from Fairfax. Thank you, Madam President. Rise for your point of personal privilege.

[07:14:52] The senator has the floor. Thank you, Madam President. I couldn't be more prouder of Adam Eben for representing the city that I was born in and And it still is a warm place in my heart for that great town. But to see him in this position being pulled into the administration because of who he is, and the wisdom, the steadfastness, the kindness, the humor, all of the things that go into making Senator Eben the wonderful legislator that he's been, was part of that decision by the Spanberger administration.

[07:15:25] Adam, we'll miss you. And Godspeed. Thank you. Thank you, Senator. chair recognizes the senator from Norfolk thank you madam president I rise for point of personal privilege the senator has the floor thank you madam president Friday was the beginning of love weekend and so many of you saw fit to adorn our desks with all kinds of candy and things that are sure to bring on sugar diabetes but I wanted to take the opportunity to thank the second gentleman for the gift that he left on our desk for love day so please madam

[07:16:03] president thank him on my behalf and all of us who received gifts from him thank you thank you senator the second gentleman only delivered to the ladies in the chamber the chair recognizes the senator from Roanoke thank you madam president or as for point personal privilege the senator has the floor happy George Washington day I always enjoyed over the years when the senator

[07:16:39] Alexandria would assert his seniority and speak about our first president much to the chagrin of our now majority leader I enjoyed that every year and I'm a little disappointed didn't happen today but I'm gonna miss the senator from Alexandria I really enjoyed working with you over the years when I came here I worked as an aide to senator Smith who represented Roanoke Valley and the New River Valley at the time and for most of that time in the old General Sully building our next-door neighbor was Senator Ebon and I really enjoyed it

[07:17:15] and we worked late we for whatever reason we always stayed at the office and during a lot of that time it coincided with the congressional race and when I would walk out in the evening I'd often walk out with Senator Ebon and I'd get the latest news on what was happening in a congressional race and elections are the most exciting when your friends in it and you're not and I supported him in that race I told all the I saw my friends who were Democrats that he was the best choice unfortunately went a different way but the good news was we got to keep him here longer and I got to be his neighbor

[07:17:53] over at the Pocahontas building and the kindness that he showed as my next-door neighbor both as an aide in the center significant you sometimes realize when you work around here. People treat you differently in different roles you have. That was not true with Senator Eben. He treated me great as an aide. He treated me great as a senator, and I appreciate our time together. Thank you, Senator. The chair recognizes the senator from King George. Thank you, Madam President. Rise for a brief point of personal privilege. The senator has the floor.

[07:18:29] Madam President, to Senator Eben, we will miss you a great deal. You have proved to be a very thoughtful and methodical legislator and the senator-elect coming in is gonna have big shoes to fill the thing that's impressed me the most about the senator from Alexandria is he was very passionate about certain issues but despite his passion if you didn't agree he was always a gentleman and he treated you as a gentleman and he treated people kindly and thoughtfully and I've always appreciated that a great deal I guess I've worked with him for nearly 15

[07:19:07] years in this chamber now and that that is one thing that we will miss but I hope we never lose in this chamber thank you senator the chair recognizes the senior senator from Virginia Beach thank you madam president I rise for a brief point of personal privilege the senator has the floor it's about present the senator from Alexander and I have not always seen eye-to-eye on a lot of the issues but we've always been friends and when I rode a bicycle through his town with 500 of my friends on bicycles he came out and visited us and waved and

[07:19:46] cheered us on as we did that but um what I've done for pretty much every senator retiring I've always worked with DMV to provide a plate so as folks retire they remember their years in the Senate and so I've always had this made and I want to make sure I gave it to the senator as his thank you for your service and your friendship to all of us. Thank you. Thank you Senator. The chair recognizes the senator from Western Prince William. Thank you Madam President. Madam President

[07:20:25] rise for a brief point of personal privilege. Senator has the floor. Thank you Madam President. One of the things about arriving in this this chamber from coming in down the hall is walking in and even when you're really familiar with what it's like to be the only person like you in every room you go to and Madam President, I know you know that feeling very well around this part, walking in here and seeing the center from Alexandria and just knowing there's someone who's family, someone who gets it.

[07:20:49] And when you feel really isolated, when you feel alone sometimes, you just need that reassurance that there's someone else who's been there, who's done it when it was harder, and someone who understands what it means to overcome obstacles that were designed for you to fail.

[07:21:07] and I hope the senator remembers that when he leaves here that we will have replaced if the voters decide to you know follow through the way we think they will this year they will replace the marshal newman amendment with the sickleless edmund amendment and we will always call always call it that and other uh thing i just want to mention here is how really well he's run the general laws committee and you never ever see senator evan raise his voice and scold someone you will instead see the most deadpan humor where he doesn't laugh and everyone else around him does

[07:21:46] and this happens a lot madam president like not only a couple times and it's he really really really epitaphs that value of like you know crush him with kindness and he has so much that he's brought to that and at the same time the way that he's run the committee he never has a bill that goes before gen laws that he doesn't understand first he'll ask questions and he'll have you know he kind of alluded that to

his staff he had a lot of people who helps him out along the way the senator from alexander has shown this is how you be prepared going into a committee hearing and

[07:22:22] that when you're the chair of that you've got to know as much as you can about everything on your docket. And the senator from Alexander is one of the best of the best with that. You've never catch the senator from Alexander flat-footed, ever. He's always on top of his game. And I hope that as, you know, other members are shuffling around after crossover, depending on, you know, who's going to get what committee chairs and stuff, that everyone takes that little page from the senator's playbook about making sure that you read the bills, you understand what they do, you ask good questions, and you never forget to rely on a little help from your friends here

[07:22:58] too. And so with that, I just wanted to express my gratitude for the trailblazer from Alexandria, who easily not only has made me being here possible, not only has the, back when he was representing part of South Arlington, did he represent my aunt, my uncle, my little cousins too, for a long time. But he did it with a level of humility, and he's done it with a level of humor and knowledge that i think makes this chamber and i think what makes a legis being a legislator something that's a worthwhile pursuit thank you madam president thank you senator the chair

[07:23:36] recognizes the senior senator from loudon thank you madam president madam president i rise for a point of personal privilege the senator has the floor um i'm going to speak just briefly about the senator from alexandria i say most of the things that i want to say to him in private um but i will say that um when i started running for office senator ebon the senator from alexandria was one of the most wonderful people to me and offered me help and would call me and check on me and sometimes he will say oh i'm willing to help you but um the senator from alexandria um always put his um his money where his mouth was and um did um relentless was relentless um and his supported

[07:24:14] me and when i got to the general assembly i can't say that there's a day that's gone by that that support has stopped and so I'm grateful to him but I will say in terms of his his wit and humor one of the very first times I was ever with Senator Eben he said to me I will always remember if you don't have something nice to say you can come sit by me and so I've always wanted to sit next to him and so senator you will be so dearly missed and it's such a loss of information and knowledge and

[07:24:51] wit and humor and kindness for all of us and as I haven't been here in this body that long but I feel like we keep losing person after person and it always just makes me concerned about whether or not there will be people who can step into those shoes and replace them. Madam President I also rise because yesterday we lost a different iconic Virginian Mr. Robert Duvall who was 95 years old and who was my constituent, Madam President.

[07:25:22] Mr. Duvall was a Navy brat, and he went on to serve in the United States Army and in the Korean War, and came back and used the GI Bill to go to school and work on his acting career, which he did for about seven decades, Madam President.

[07:25:42] And I'm certain everyone in this room has seen movies that he has been a member of. And he received numerous awards, including Golden Globe Awards, Emmy Awards, Oscar nominations, and was well known.

[07:26:01] What I know him most for is for his role in Apocalypse Now. And his famous line, I love the smell of napalm in the morning, Madam President. But in his later years, Mr. Duvall was also known for

his preservation work and he went out to Orange County and helped deal with some issues out there related to battlefield and about two years ago he came to a Warrington that's Falkyard County Warrington town council meeting to speak against a data center that was being proposed there

[07:26:40] madam president so even to the end I would suggest very involved in his community and in the things that that matter to him madam president and so madam president I would ask today that we adjourn in memory of a longtime resident of the Commonwealth of Virginia and certainly an icon mr. Robert Dupal thank you senator the chair recognizes the senior senator from Prince William rise for a point of personal privilege the senator has the floor thank you madam president I too wanted to share a few words about senator Eben and his service my first year he is one of my mentors when I joined the Senate and

[07:27:17] learned how to try not to speak too much to listen and learn from him and many others in the chamber what would I most appreciate I'll get to that in a moment maybe what I I don't know maybe most appreciate or at least appreciate was probably taking on the cannabis subcommittee assignment for rehab at the time we went to COVID and so we were in the science museum and so we had 400 people signed up for a subcommittee meeting to speak virtually on a I don't

[07:27:52] know twelve thousand eight hundred line item bill that actually broke DLS and if you were there you remember you remember it absolutely Adam Ebon broke DLS it would not load we could not see his substitute when they eventually brought to the floor and and personally thank you for the six hours of subcommittee testimony over the 400 people that decided they really wanted to talk about your bill.

[07:28:17] So thank you for that. I appreciate our time on subcommittee number three. If you know, you know. And all the advice after hours and the different things. But what really stuck out to me was sometimes we're challenged even our own caucus amongst our friends to vote no or be an opposing voice when it's difficult to do.

[07:28:41] And one of Senator Eben's constants has been towards good governance. And sometimes what he felt didn't quite meet that mark, he put the red up to say, you know what, I'm not quite there.

[07:28:57] And hitting that no button, sometimes even amongst our friends, is a really hard thing to do. And it takes courage and the wherewithal to do it. And that's something that Senator Eben has done. But he's done it in a way that has not been one of spite or taking back or challenging, but one of a constant North Star of is this towards the betterment of the Commonwealth of people and of good governance.

[07:29:24] I've seen a lot of the Senator's work on gaming throughout the years. The Gaming Commission we've served on for the last couple of years, which is always how do we make it better and leave it better than we found it. And so I say to you, Senator Eben, you have left it better than you found it. Thank you, Madam President. thank you senator the chair recognizes the junior senator from loudon thank you madam president i rise for a brief moment of personal privilege the senator has the floor thank you madam president i just wanted to say that we would miss the senator from alexandria dearly i remember him helping me when i ran for office when i was in the other chamber i had passed a bill and i had gone to

[07:30:01] his office one day early morning after crossover to lobby him for support and i will never forget the kindness he showed me and he shows everyone. And we will dearly miss him. I wish him the best as he continues to serve the Commonwealth. Thank you Senator for your service. Thank you Senator.

[07:30:21] The chair recognizes the Senator from Hampton. Thank you Madam President. I rise on a bit of trepidation. The Senator has the floor. I am going to request unanimous consent for the introduction of a joint resolution.

[07:30:45] And this resolution is reconstituting the Booker T. Washington Commemorative Commission as a joint commemorative commission. And if you want to blame anybody, blame this Senator from Roanoke. The question is, shall the joint resolution be agreed to?

[07:31:14] B, do we have consent to introduce the joint resolution? All in favor of the motion will say aye. those opposed no the ayes have it the consent is granted for the introduction of the resolution is there any other business to come before the senate the clerk will report any announcements

[07:31:46] on the desk february the 16th the committee on commerce and labor will not meet the finance and appropriation subcommittee on economic development and natural resources will not meet. The Northern Virginia Delegation Caucus will not meet. Tomorrow, Tuesday, February 17th, the Finance and Appropriations Subcommittee on General Government will meet at 7:30 a.m. in the Senate Finance and Appropriations Room, 13th Floor, GAB. The Committee on Finance and Appropriations will meet at 9:00 a.m.

[07:32:21] Senate Room A, GAB. The Democratic Caucus will meet 45 minutes before session in in Senate room one of the Capitol. The Republican caucus will meet 30 minutes before session in Senate room two of the Capitol.

[07:32:39] - The chair recognizes the senator from Portsmouth. - Thank you, Madam President. I didn't get to stand for point of personal privilege, but I just want to say before I make the announcement that if you've ever worked with Senator Eben on a bill, and especially on cannabis, you know what it's like to be down in the weeds.

[07:32:57] Madam President. Madam President, I move that the Senate do now adjourn until 10:30 a.m. tomorrow morning, and that we do so in honor and memory of Robert Duvall. - The question is, shall the Senate now adjourn until 10:30 a.m. tomorrow morning, and that as we adjourn, we do so in honor and memory of Robert Duvall.

[07:33:24] All in favor of that motion, we'll say aye. Those opposed, no. The ayes have it. The motion is agreed to.

[07:33:32] The Senate stands adjourned until 10:30 tomorrow.

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[07:36:34] sessions, catch up on past meetings, and explore our full archives anytime on the Senate of

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